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CITY OF BERKELY

BERKELEY CITY COUNCIL REGULAR MEETING

SEPTEMBER 9, 2025

>> CITY CLERK: READY.

>> MAYOR ISHII: ALL RIGHT. GOOD EVENING, EVERYONE. PLEASE SETTLE DOWN. TAKE YOUR SEATS. I'M GOING TO CALL TO ORDER THE BERKELEY CITY COUNCIL MEETING, TODAY IS TUESDAY SEPTEMBER 9TH, 2025. CLERK, PLEASE TAKE THE ROLL.

>> CITY CLERK: KESARWANI?

>> HERE.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: HERE.

>> CITY CLERK: BARTLETT IS ABSENT. TREGUB?

>> I. TREGUB: PRESENT. O'KEEFE? BLACKABY?

>> HERE.

>> LUNAPARRA?

>> HERE. HUMBERT?

>> HERE.

>> CITY CLERK: MAYOR ISHII.

>> MAYOR ISHII: WE HAVE BEEN TAKING TURNS SAYING THE LAND ACKNOWLEDGMENT AND TONIGHT IS COUNCILMEMBER KESARWANI'S TURN.

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>> R. KESARWANI: THANK YOU, MADAM MAYOR. THE CITY OF BERKELEY RECOGNIZES THAT THE COMMUNITY WE LIVE IN WAS BUILT ON THE TERRITORY OF THE OF XUCYUN (HUCHIUN (HOOCH-YOON)), THE ANCESTRAL AND UNCEDED LAND OF THE CHOCHENYO (CHO-CHEN-YO)-SPEAKING OHLONE (OH-LOW-NEE) PEOPLE, THE ANCESTORS AND DESCENDANTS OF THE SOVEREIGN VERONA BAND OF ALAMEDA COUNTY. THIS LAND WAS AND CONTINUES TO BE OF GREAT IMPORTANCE TO ALL OF THE OHLONE TRIBES AND DESCENDANTS OF THE VERONA BAND. AS WE BEGIN OUR MEETING TONIGHT, WE ACKNOWLEDGE AND HONOR THE ORIGINAL INHABITANTS OF BERKELEY, THE DOCUMENTED 5,000-YEAR HISTORY OF A VIBRANT COMMUNITY AT THE WEST BERKELEY SHELLMOUND, AND THE OHLONE PEOPLE WHO CONTINUE TO RESIDE IN THE EAST BAY. WE RECOGNIZE THAT BERKELEY'S RESIDENTS HAVE AND CONTINUE TO BENEFIT FROM THE USE AND OCCUPATION OF THIS UNCEDED STOLEN LAND SINCE THE CITY OF BERKELEY'S INCORPORATION IN 1878. AS STEWARDS OF THE LAWS REGULATING THE CITY OF BERKELEY, IT IS NOT ONLY VITAL THAT WE RECOGNIZE THE HISTORY OF THIS LAND, BUT ALSO RECOGNIZE THAT THE OHLONE PEOPLE ARE PRESENT MEMBERS OF BERKELEY AND OTHER EAST BAY COMMUNITIES TODAY. THE CITY OF BERKELEY WILL CONTINUE TO BUILD RELATIONSHIPS WITH THE LISJAN TRIBE AND TO CREATE MEANINGFUL ACTIONS THAT UPHOLD THE INTENTION OF THIS LAND ACKNOWLEDGEMENT.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. THE COUNCIL MET IN CLOSED SESSION ON SEPTEMBER 8TH. [BACKGROUND NOISE]

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>> MAYOR ISHII: OH BOY. PURSUANT TO 54956.59. APPROVED PARTICIPATION TO SETTLE CLAIMS AGAINST OPIOID MANUFACTURERS AND DIRECTED TO RECEIVE FUNDS DIRECTLY INSTEAD OF ALLOWING THEM TO FLOW TO ALAMEDA COUNTY. UNITED STATES BANKRUPTCY COURT SOUTHERN DISTRICT OF NEW YORK, CASE NUMBER 19-23649HSL AND IN RE OPIOID NATIONAL, EASTERN DIVISION, MDL284, CASE NUMBER 1: 17-MD/2804. THANK YOU, THAT'S JUST A READ-OUT FROM OUR CLOSED SESSION. MOVING ONTO CEREMONIAL MATTERS, WE HAVE A NUMBER OF CEREMONIAL MATTERS HERE THIS EVENING, INCLUDING TWO ADJOURNMENTS IN MEMORY. ALTHOUGH WE HAVE THE PLEDGE OF ALLEGIANCE WHICH WE HAVE YET TO ACTUALLY SAY HERE IN A MEETING I'VE PRESIDED OVER. I THINK I WILL LEAD US IN THE PLEDGE OF ALLEGIANCE. SO PLEASE RISE. [PLEDGE OF ALLEGIANCE OFF MIC] MOVING ON, WE HAVE TWO ADJOURNMENTS IN MEMORY. UNFORTUNATELY, THERE WERE MANY FOLK WHO'S PASSED IN OUR COMMUNITY OVER THE SUMMER. WE HAVE TWO TONIGHT AND A NUMBER THAT WILL BE COMING UP IN THIS UPCOMING SEPTEMBER MEETINGS. THE FIRST IS IN MEMORY OF CHRIS PEOPLES, AC TRANSIT DIRECTOR. THAT WILL BE READ BY COUNCILMEMBER TREGUB WHO WILL SHARE. ALSO WE HAVE A REPRESENTATIVE FROM AC TRANSIT. SO IF YOU WOULD LIKE TO COME UP, YOU ARE WELCOME TO. THANK YOU. OH, AND PERHAPS HIS FAMILY? OR FRIENDS?

>> OUR BOARD PRESIDENT IS ONLINE. AND I THINK WE ARE JUST GOING TO RECEIVE --

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>> MAYOR ISHII: SURE. THANK YOU. OKAY. FRIENDS ARE HERE.

>> I. TREGUB: OKAY. THIS IS A PROCLAMATION IN MEMORY OF H.E. CHRISTIAN, OR CHRIS PEOPLES, A.C. TRANSIT DIRECTOR. WHEREAS H.E. CHRISTIAN, OR CHRIS PEOPLES, FAITHFULLY SERVED AS A MEMBER OF THE A.C. TRANSIT DISTRICT BOARD OF DIRECTORS FOR OVER TWO DECADES. DEMONSTRATING EXCEPTIONAL LEADERSHIP, UNWAVERING COMMITMENT TO PUBLIC SERVICE AND A DEEP DEDICATION TO EQUITABLE AND ACCESSIBLE PUBLIC TRANSPORTATION. AND WHEREAS DIRECTOR PEOPLES BEGAN HIS TENURE ON THE A.C. TRANSIT BOARD IN 1997. SERVING MULTIPLE TERMS AS BOARD PRESIDENT AND VICE PRESIDENT AND EARNING WIDESPREAD RESPECT AS A THOUGHTFUL PRINCIPLED AND VISIONARY LEADER IN PLANNING TRANSIT AND POLICY. WHEREAS THROUGHOUT HIS SERVICE HE WAS A PASSIONATE ADVOCATE FOR ENVIRONMENTAL SUSTAINABILITY, ACCESSIBILITY, AND EXPANDING TRANSIT SERVICES FOR ALL RESIDENTS. PARTICULARLY THOSE FROM UNDERSERVED AND TRANSIT-DEPENDENT COMMUNITIES, BRINGING A UNIQUE BLEND OF LEGAL EXPERTISE, INTELLECTUAL RIGOR AND HUMILITY, AS WELL AS STRONG BELIEF IN THE POWER OF PUBLIC TRANSIT TO PROMOTE SOCIAL EQUITY, ENVIRONMENTAL STEWARDSHIP AND REGIONAL CONNECTIVITY. AND WHEREAS, DIRECTOR PEOPLES CONTRIBUTIONS HELPED SHAPE TRANSFORMATIVE PROJECTS AND INITIATIVES THAT HAVE STRENGTHENED A.C. TRANSIT AND IMPROVED THE LIVES OF COUNTLESS RIDERS THROUGHOUT THE EAST BAY AND BEYOND. AND WHEREAS, CHRIS

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PEOPLES WILL BE REMEMBERED NOT ONLY FOR HIS LONG AND DISTINGUISHED PUBLIC SERVICE BUT ALSO FOR HIS KINDNESS, INTEGRITY, AND UNWAVERING BELIEF IN PUBLIC GOOD. HIS PASSING IS A PROFOUND LOSS TO THE A.C. TRANSIT COMMUNITY, TO THE PUBLIC TRANSIT SECTOR, AND TO THE MANY COLLEAGUES, CONSTITUENTS AND FRIENDS OF WHICH WE ARE JUST SOME, OR HAVE THE PRIVILEGE OF WORKING ALONGSIDE HIM. NOW THEREFORE, THAT I ADENA ISHII, MAYOR OF THE CITY OF BERKELEY, DO HERE BY HONOR THE LIFE, LEGACY AND EXTRAORDINARY PUBLIC SERVICE OF H.E. CHRISTIAN, "CHRIS" PEOPLES. THE CITY OF BERKELEY OFFERS ITS DEEPEST CONDOLENCES TO THE FAMILY, FRIENDS AND COMMUNITY AND EXPRESSES ITS PROFOUND GRATITUDE FOR HIS ENDURING CONTRIBUTIONS TO PUBLIC TRANSPORTATION AND THE PEOPLE OF THE EAST BAY. AND JUST ON A PERSONAL NOTE, I FEEL LIKE PARTICULARLY IN THIS PAST MONTH WE HAVE LOST A NUMBER OF ALLIANCE, THOSE WHO HAVE MENTORED US EVERY STEP OF THE WAY. AND IT'S A TREMENDOUS AND PROFOUND LOSS. LET WHAT CHRIS PEOPLES DID ON THE A.C. TRANSIT BOARD BE AN INSPIRATION TO ANY OF US WHO CURRENTLY HOLD OR ASPIRE TO HOLD PUBLIC OFFICE. HE DIDN'T JUST ATTEND EVERY SINGLE MEETING, I DON'T THINK HE MISSED ONE SINCE 1997. BUT HE TRAVELED ALL THE WAY TO ACROSS THE CONTINENT TO THE FACTORY AND TALKED TO THE C.E.O. OF THE COMPANY, WHICH IS HOW WE ENDED UP EVENTUALLY, AFTER A LOT OF STEPS ALONG THE WAY, TO, I THINK, BE AMONG THE

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FIRST IN THE NATION TO ADOPT BATTERY-ELECTRIC BUSES AND ULTIMATELY HYDROGEN BUSES. AND HE WOULD TAKE PUBLIC TRANSIT EVERYWHERE, NO MATTER HOW FAR. HE WOULD LOOK UP TIMETABLES, EVEN IF IT TOOK HIM SIX HOURS TO GET TO A MEETING ACROSS THE STATE. HE WOULD DO IT. AND JUST WHAT A WAY TO LIVE YOUR VALUES BEGINNING TO END.

>> MAYOR ISHII: THANK YOU. THANK YOU SO MUCH. [APPLAUSE]

>> THANK YOU, CAN I, THIS IS DIANE CHIME, PRESIDENT OF THE A.C. TRANSIT BOARD. THANK YOU TO THE CITY COUNCIL, THE MAYOR AND EVERYONE INVOLVED IN THIS RECOGNITION. YOU KNOW, I DON'T WANT TO READ WHAT WAS JUST PUT IN THE PROCLAMATION, BECAUSE ALL OF THAT IS TRUE. CHRIS LIVED THIS WORLD; IT MEANT EVERYTHING TO HIM. HE WAS A FIERCE ADVOCATE FOR PUBLIC TRANSIT. HE BELIEVED IN WHAT HE DID, HE WAS ON OUR BOARD ALMOST 30 YEARS, WHICH IS AMAZING. HE WENT TO SO MANY DIFFERENT MEETINGS AND PARTICIPATED IN SO MANY DIFFERENT THINGS. HE WAS SUCH A CHAMPION FOR THE ENVIRONMENT. HE DID PUSH A.C. TRANSIT TO INNOVATE AND TO INVEST AND TO LEAD BY EXAMPLE IN THE FIGHT AGAINST CLIMATE CHANGE AND FOR THAT, WE ARE FOREVER GRATEFUL. HIS LOSS IS NOT ONLY A LOSS TO HIS FAMILY AND LOVED ONES AND TO US AT A.C. TRANSIT BUT ALSO TO THE BAY AREA. AND SO THANK YOU AGAIN FOR HONORING HIM AND DOING THIS. I HOPE HE'S LOOKING DOWN ON US AND HELPING US WHERE HE CAN. THANK YOU.

>> MAYOR ISHII: OKAY. SO WE HAVE ONE MORE JURNMENT IN MEMORY

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THIS EVENING THAT WILL BE PRESENTED BY COUNCILMEMBER HUMBERT.

OH, THERE YOU ARE.

>> M. HUMBERT: YES, THANK YOU, MADAM MAYOR. I'M WAITING TO READ UNTIL THE FAMILY OF JOHN BULARIER REACHES THE PODIUM. I JUST WANT TO CONFIRM, BULARIER IS THE CORRECT PRONUNCIATION? THE FRENCH PRONUNCIATION. WELCOME, THIS IS JOHN'S FAMILY. I WILL READ A PROCLAMATION IN MEMORY OF JOHN BELARIER. IN MEMORY, FATHER, AND COMMUNITY ADVOCATE. WHEREAS JOHN BELARIER WAS A BELOVED SON, BROTHER, HUSBAND, FATHER, AND COMMUNITY ADVOCATE, WHO LEFT US WAY TOO SOON, AND WHOSE MEMORY CONTINUES TO INSPIRE HIS FAMILY AND COMMUNITY, AND WHEREAS JOHN DEDICATED HIS PROFESSIONAL LIFE TO ADVANCING SCIENTIFIC UNDERSTANDING, GROUNDBREAKING RESEARCH AND EXPANDING KNOWLEDGE IN THE MICRO BIOLOGICAL SCIENCES. AND, WHEREAS JOHN WAS DEEPLY EMPATHETIC AND DEVOTED TO IMPROVING THE LIVES OF OTHERS, EXEMPLIFIED BY HIS VISIT TO LOUISIANA AFTER HURRICANE KATRINA WHO STAYED TO HELP WITH CLEAN-UP EFFORTS. AND WHEREAS JOHN WAS AN AVID CYCLIST WHO ADVOCATED FOR MORE SAFER AND MORE SUSTAINABLE TRANSPORTATION, SERVING ON SEATTLE'S BICYCLE ADVISORY BOARD AND CHAMPIONING IMPROVEMENTS TO BIKE INFRASTRUCTURE IN BOTH BERKELEY AND SEATTLE, AND WHEREAS JOHN DREW ON HIS FIRST-HAND EXPERIENCES IN CITIES SUCH AS PARIS AND COPENHAGEN WHERE INNOVATIVE BIKE SAFETY MEASURES TRANSFORMED URBAN LIFE TO INFORM HIS VISION FOR A

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HEALTHIER AND MORE CONNECTED BERKELEY. AND WHEREAS JOHN PORED HIS ENERGY IN THE SUCCESSFUL CAMPAIGN FOR MEASURE FF, STRIVING TO IMPROVE BERKELEY'S BIKING AND PEDESTRIAN INFRASTRUCTURE, SO THAT HIS SON AND THE ENTIRE COMMUNITY MIGHT INHERIT A SAFER, MORE SUSTAINABLE CITY, NOW THEREFORE BE IT RESOLVED THAT I, I'M ANOTHER ADENA ISHII, MAYOR OF THE CITY OF BERKELEY, DO HEREBY HONOR THE LIFE, LEGACY, AND COMMUNITY ADVOCACY OF JOHN BELARIER. THANK YOU.

>> MAYOR ISHII: THANK YOU SO MUCH. I DON'T KNOW IT YOU WANTED TO SAY ANYTHING IN ACCEPTING THE PROCLAMATION?

>> WELL, AMIL, I LET HIM KNOW WHY JOHN WAS BEING HONORED BECAUSE OF HIS ADVOCACY IN BRINGING BIKE LANES AND SAFETY BUT THERE AREN'T MANY BIKE LANES IN BERKELEY. THAT'S WHY THE MEASURE WAS PASSED AND THEY ARE GOING TO WORK ON IT NOW. WE ARE GRATEFUL AND THANK YOU FOR HELPING TO HONOR THE MEMORY OF JOHN.

>> MAYOR ISHII: THANK YOU. AND THANK YOU SO MUCH FOR SHARING YOUR THOUGHTS. [APPLAUSE]

>> MAYOR ISHII: OKAY, THERE ARE ACTUALLY TWO MORE CLOSED SESSION READ-OUTS I HAVE TO DO. APOLOGIES, BEAR WITH ME, A COUPLE MORE PARAGRAPHS TO READ. THE COWN SL MET IN CLOSED SESSION SEPTEMBER 8, 2025, PURSUANT TO CODE SECTION 54956.9 SUBSECTION D2 AND PROVIDED DIRECTIONS TO OUTSIDE COUNSEL AND APPROVED A SETTLEMENT BY COMPROMISE AND RELEASE WITH RELEASE OF FUTURE MEDICAL CARE OR

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ALTERNATIVE STIPULATIONS FOR REQUEST FOR AWARD WITH FUTURE MEDICAL CARE AS TO A WORKERS COMPENSATION MATTER, BER-2200136, BER, 2300016, AND BER1700136. AND WCAB CASE NUMBERS ADJ164 -- 6496099 AND ADJI6494098. SIMILARLY, THE COUNCIL MET IN CLOSED SESSION SEPTEMBER 8, 2025, PURSUANT TO CODE SECTION 54956.9 SUBSECTIONS D2 AND PROVIDED DIRECTIONS TO OUTSIDE COUNSEL AND APPROVED A SETTLEMENT BY COMPROMISE AND RELEASE WITH FUTURE MEDICAL CARE OR ALTERNATIVE BY STAPLE LEGISLATIONS WITH OPEN FUTURE MEDICAL CARE AS TO WORKERS COMPENSATION MATTER ASSIGNED CLAIM NUMBER BER2200047 AND WCABADJ1 *6 0822308. OKAY, THANK YOU. ALL RIGHT, CITY MANAGER COMMENTS?

>> CITY MANAGER BUDDENHAGEN: THANK YOU, MADAM MAYOR. THREE THINGS TO ADDRESS. ONE, I WOULD LIKE TO REMOVE FROM THE ITEM TONIGHT, THE FLOCK CAMERA AGENDA ITEM 24 AND BRING IT BACK ON OCTOBER 28TH.

>> MAYOR ISHII: FOLKS!

>> CITY MANAGER BUDDENHAGEN: THAT WOULD GIVE US AN OPPORTUNITY --

>> MAYOR ISHII: WE CAN'T HEAR THE CITY MANAGER'S COMMENTS; WOULDN'T YOU LIKE TO HEAR THEM?

>> CITY MANAGER BUDDENHAGEN: TO BRING THE USE POLICY IN LINEMENT WITH THE PROPOSED CONTRACT AS WELL AS DO A COMMUNITY MEETING TO HEAR FROM, TO DISCUSS BOTH PRESENT AND POTENTIAL FUTURE CAMERA

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USES. LOOK AT OTHER CAMERA PROVIDERS FOR THEIR SECURITY FEATURES AND UNDERSTAND THAT BETTER AND ALSO TO RESEARCH OTHER CITIES WHO HAVE DECIDED THEY WANT TO USE THE SERVICES OR HAD ISSUES WITH IT. TO DO THOSE THINGS AND COME BACK ON OCTOBER 28TH. I WOULD ALSO LIKE TO REMOVE ITEM 8; WE NEED MORE TIME TO BRING THAT BACK AND CHANGE THE PROVIDER. AND ITEM 15, WHICH WAS ACTUALLY ADOPTED BY THE VOTERS AND CANNOT BE CHANGED BY COUNCIL, SO WE WON'T BRING THAT ONE BACK.

>> MAYOR ISHII: THANK YOU, MR. CITY MANAGER. [CROWD CHANTING "FLOCK, FLOCK, FLOCK".]

>> MAYOR ISHII: PLEASE DON'T DO THAT. WE WANT TO LEAVE TIME FOR PUBLIC COMMENT. WE WILL NOW HAVE PUBLIC COMMENT ON NON-AGENDA MATTERS.

>> CITY CLERK: ALL RIGHT, THERE WILL BE FIVE CARDS DRAWN FOR PEOPLE IN PERSON, AND THEN WE WILL GO TO THE FIVE HANDS RAISED, FIRST FIVE HANDS RAISED ON THE ZOOM FOR PUBLIC COMMENT ON ITEMS THAT ARE NOT ON THE AGENDA. EACH SPEAKER WILL HAVE ONE MINUTE EACH. SO THE FIVE IN-PERSON SPEAKERS ARE RUSSELL BATES, KIM MALCHESKY, ERICA, A. MARTINO. AND ANDREA PRITCHETT. THOSE ARE THE FIVE IN-PERSON SPEAKERS FOR NON-AGENDA ITEMS. COME UP IN ANY ORDER.

>> MAYOR ISHII: JUST SO FOLKS KNOW, EVEN THOUGH THE ITEM WAS PULLED, I'M GOING TO LEAVE TIME FOR PEOPLE TO GIVE PUBLIC

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COMMENT ON THE FLOCK ITEM DURING THAT TIME PERIOD. SO IT'S NOT ON THE AGENDA, BUT THE TIME TO SPEAK ON IT WILL BE LATER IN THE AGENDA, JUST SO YOU KNOW.

>> OKAY, I JUST WANTED TO SAY --

>> MAYOR ISHII: WHEN IT'S ON THE AGENDA.

>> MY NAME IS RUSSELL BATES; I'VE LIVED IN BERKELEY FOR 52 YEARS NOW. WEDNESDAY, THURSDAY, FRIDAY MORNINGS I'M AT 100 MONTGOMERY IN SAN FRANCISCO, WHERE AS LONG AS PEOPLE ARE OUTSIDE THERE'S ONLY BEEN TWO ABDUCTIONS BY I.C.E. FROM THERE. IT'S VERY IMPORTANT PEOPLE SHOW UP THERE TO AVENGE THE ABDUCTIONS FROM I.C.E. WHEN IT COMES TO BERKELEY, I WOULD HOPE IT WOULD BE LIKE WHEN THE GANGS IN CHICAGO HAVE SAID WHEN THE MILITARY COMES -- RADICAL BERKELEY WOULD HAVE RESISTED A DIFFERENT KIND OF WAY. [INDISCERNIBLE] BUT STILL THERE ARE RADICAL PEOPLE WHO WILL STAND IN THE WAY AND MAKE SURE I.C.E. DOESN'T KIDNAP AND ABDUCT PEOPLE IN THE COMMUNITY. I HOPE THE CITY COUNCIL WILL BACK US UP ON THAT.

>> MAYOR ISHII: THANK YOU. THANKS, RUSSELL. [APPLAUSE]

>> GOOD EVENING. MY NAME IS KIM MACHESKY, I'M A RETIRED ATTORNEY IN BERKELEY. I DON'T KNOW IF YOU WATCH THE NEWS WHAT'S GOING ON IN GAZA ABOUT THE STARVATION OF CHILDREN. HOW HYPOCRITICAL, HOW RACIST. YOU DO THIS LAND ACKNOWLEDGMENT AT THE BEGINNING OF EVERY MEETING ABOUT INDIGENOUS PEOPLE HERE. WHAT ABOUT THE

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INDIGENOUS PEOPLE OF PALESTINE WHO ARE BEING SLAUGHTERED WITH YOUR TAX DOLLARS? 15,000 CHILDREN HAVE DIED. THE B.B.C. DID A REPORT THAT PALESTINIAN CHILDREN HAVE BEEN SHOT IN THE HEAD AND THE CHEST BY ISRAELI FRICKIN' SNIPERS. THAT'S WHERE YOUR TAX DOLLARS ARE GOING. OUR TAX DOLLARS ARE GOING TO SLAUGHTER PALESTINIAN CHILDREN AND BABIES. AND YOU WON'T EVEN PASS A RESOLUTION CONDEMNING THE GENOCIDE, HOW FUCKING RACIST CAN YOU BE? SERIOUSLY! HOW RACIST CAN YOU BE? HAVE YOU NO SHAME? HAVE YOU NO SHAME? HAVE YOU ALL EXCEPT FOR ONE --

>> MAYOR ISHII: THANK YOU. YOUR TIME IS UP. THANK YOU FOR YOUR COMMENT.

>> CITY CLERK: YOUR TIME IS UP. YOUR TIME IS UP.

>> MAYOR ISHII: EXCUSE ME, EXCUSE ME.

>> CITY CLERK: PLEASE STEP AWAY FROM THE PODIUM. YOUR TIME IS UP.

>> MAYOR ISHII: PLEASE STOP ADDRESSING OUR CITY CLERK. YOU HAVE HAD YOUR TIME, IT'S THE NEXT PERSON'S OPPORTUNITY, THANK YOU. EXCUSE ME, YOUR TIME IS UP, PLEASE SIT DOWN, THERE ARE OTHER PEOPLE WHOSE TURN IT TO SPEAK. WHOEVER IS SPEAKING NEXT, PLEASE COME UP TO THE PODIUM.

>> [OFF MIC]

>> MAYOR ISHII: EXCUSE ME, PLEASE SIT DOWN AND DON'T REFER TO INDIVIDUAL COUNCILMEMBERS.

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>> PARDON ME!

>> MAYOR ISHII: NEXT SPEAKER.

>> CITY CLERK: WE WILL MOVE ON.

>> STEVE MARTINO. I AM SHOCKED THAT THE KILLING HAS GONE ON KIDS IN GAZA FOR MORE THAN A YEAR AND A HALF AND THIS COUNCIL CAN STILL NOT GET IT TOGETHER TO PASS A CEASE FIRE ORDINANCE TO GIVE TO THE UNITED STATES OF AMERICA. WHICH IS COMPLICIT IN THIS. I'M JUST TALKING TO YOU GUYS BECAUSE NONE OF THE PEOPLE OUT HERE COUNT, BECAUSE OF RULES THAT YOU GO ALONG WITH THAT THEY ARE SHUT OUT OF YOUR PROCEDURES. THEY CAN SPEAK, BUT THEY CANNOT CALL FOR PROPOSITIONS THAT ARE ON CONSENT, AND THEY CANNOT HAVE A DISCUSSION WITH YOU ON THOSE MEASURES OR FIND OUT WHAT YOU THINK ABOUT MEASURES THAT YOU HAVE PUT ON CONSENT AND NOT ON ACTION.

>> MAYOR ISHII: THANK YOU, THANKS FOR YOUR COMMENT. IF THERE'S A SPECIFIC ISSUE YOU ARE INTERESTED IN TALKING TO OUR OFFICE ABOUT, YOU CAN REACH OUT. ANDREA, DID YOU WANT TO COME UP FOR YOUR COMMENT?

>> CITY CLERK: OH, OKAY. TWO MINUTES.

>> COUNCILMEMBERS I WANT TO ADDRESS ITEM #5 THAT WAS PULLED. IN 1973 THERE WERE FOUR MEASURES, POLICE REFORM MEASURES PASSED BY THE VOTERS OF BERKELEY. I WANT YOU TO KIND OF GO BACK IN TIME FOR A SECOND. REMEMBER WHAT WAS HAPPENING IN BERKELEY IN 1973.

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IT WAS A CHAOTIC TIME. MARTIAL LAW HAD BEEN DECLARED AND BERKELEY WAS COMING OUT OF IT AND REALISING, WOW, FEDERAL POWER, IT'S HEAVY, IT'S REAL, IT KILLS PEOPLE. REVIEWING THOSE MUTUAL AID AGREEMENTS WITH FEDERAL AND STATE AND OTHER LAW ENFORCEMENT AGENCIES SHOULD NOT BE A LOW-PRIORITY, ESPECIALLY AT THIS TIME. WE HAVE TO REVIEW OUR AGREEMENTS WITH I.C.E. WE HAVE TO REVIEW OUR AGREEMENTS WITH CUSTOMS AND BORDER PATROL, WITH FBI, WITH ALL OF THEM. THAT SHOULD NOT BE A SMALL THING YOU DO EVERY THREE YEARS. I KNOW IT'S EASIER FOR THE CHIEF. I KNOW THE CHIEF ISN'T REALLY AS WORRIED ABOUT THE FEDERAL FASCIST TAKE OVER AS MUCH AS WE ARE, BUT WE ARE WORRIED ABOUT RACIAL PROFILING. WE ARE WORRIED ABOUT KIDNAPPERS ON OUR STREETS. WE ARE WORRIED ABOUT THE LEGALIZATION OF THE NEUTRALIZATION OF THE CONSTITUTION. WE DO NOT HAVE DUE PROCESS. AND TO ENGAGE WITH OTHER AGENCIES THAT FLAUNT OUR RIGHTS IS SOMETHING THE VOTERS VERY CLAIRELY GAVE YOU THE POWER TO PREVENT. WE ARE NOT SUPPOSED TO BE ENGAGING WITH ABUSIVE DEPARTMENTS. THAT'S AN ANNUAL REQUIREMENT. THE FACT IT'S NOT BEEN FOLLOWED SHOULD NOT BECOME REASON WHY IT SHOULDN'T BE FOLLOWED. IT'S THE LAW. YOU ARE OBLIGED TO FOLLOW IT. AS IS OUR POLICE DEPARTMENT. SO WE ARE EXPECTING ANNUAL REVIEWS. AND WE ARE VERY ATTUNED TO I.C.E., BORDER PATROL AND D.H.S. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: OKAY, GOING TO THE ONLINE SPEAKERS. THE FIRST

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SPEAKER ON ZOOM IS GAIL SIMPSON. THIS IS FOR NON-AGENDA COMMENTS. YOU HAVE ONE MINUTE. GAIL? YOU SHOULD BE ABLE TO --

>> YES, CAN YOU HEAR ME?

>> MAYOR ISHII: YES, WE CAN HEAR YOU.

>> I YIELD MY TIME TO MADELEINE RICH.

>> CITY CLERK: MADELAINE IS THE NEXT SPEAKER; SHE WILL HAVE TWO MINUTES.

>> HOWDY, CITY COUNCIL. I AM TRUSTING YOU CAN HEAR ME, I HAVE KIDS IN THE BACKGROUND. I'M THE BENEFICIARY OF GOING TO HIGH SCHOOL IN BERKELEY. THREE MATTERS HE WOULD LIKE TO BRING UP. I HOPE I GET TO THE THIRD, WE WILL SEE. FIRST IS, I JUST RETURNED FROM THE ASTOUNDING CALIFORNIA BRAZIL CAMP IN THE BEAUTIFUL CACEDERO. IT'S USED BY THE MUSIC CAMP AND FAMILY CAMP. WHILE IT WAS THERE, IT WAS UNCLEAR TO ME WHETHER PHASE II IS ONGOING FOR THE SOIL EROSION. I WANT TO MENTION IT'S SUPER CRITICAL THAT PHASE TWO GETS UNDER WAY AND COMPLETED PROMPTLY. IF NOT, IT PUTS AT RISK THE DINING HALL AT CASADERO, AND THE DINING HALL IS EXTREMELY IMPORTANT TO THAT CAMP. IF SOMETHING WERE TO COMPROMISE THE DINING HALL IT WOULD COST THE CITY MILLIONS TO FIX. MOREOVER IT WOULD HAVE TO BE MOVED HUNDREDS OF FEET FROM THE CREEK BED SO IT WOULD VERY MUCH CHANGE THE SPIRIT OF THE CAMP AND IT WOULD TAKE YEARS TO BUILD. I WOULD REALLY PUT PRESSURE ON CITY MANAGER AND RELEVANT DEPARTMENTS TO MAKE SURE

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PHASE 2 IS UNDER WAY AND WILL BE COMPLETED PROMPTLY. I APPRECIATE THE CITY COUNCIL FUNDING PHASE TWO, HOWEVER. THE SECOND MATTER IS ABOUT CIVIC CENTER PARK. I WANT TO COMMEND THE CITY AND ALL OF YOU AND THE CITY MANAGER FOR GETTING THAT OPEN IN TIME FOR THE SCHOOL YEAR. THE TIMING IS CRITICAL BECAUSE AS A BERKELEY HIGH ALUM, I KNOW JUST HOW IMPORTANT HAVING ACCESS TO CIVIC CENTER PARK IS FOR THOSE 3,000 PLUS STUDENTS AT BERKELEY HIGH. IT'S THE SOCIAL LIFE BLOOD OF THAT SCHOOL AND IT'S SUPER IMPORTANT IT'S ACCESSIBLE FOR THOSE STUDENTS. SO I REALLY APPRECIATE YOUR EFFORTS TO GET THAT DONE PROMPTLY. WITH THAT IN MIND, I ABSOLUTELY AGREE WE NEED HOUSING SOLUTIONS FOR ALL, PARTICULARLY OUR MOST VULNERABLE. BUT YOU THINK PRAGMATICALLY THAT --

>> MAYOR ISHII: SORRY, YOUR TIME IS UP. SORRY, I KNOW IT'S HARD TO HEAR. SOMEONE TOLD ME IT'S HARD TO HEAR ON ZOOM. APOLOGIES, BUT THANK YOU FOR YOUR COMMENTS.

>> CITY CLERK: NEXT IS PHONE NUMBER ENDING IN 000.

>> HI, GOOD EVENING. THE ASSISTANT [INDISCERNIBLE] CAREFUL. MAYOR ARREGUIN WILL PROBABLY END UP THE WORST MAYOR THE CITY OF BERKELEY EVER HAD. HE WAS CORRUPTED AND INCOMPETENT. THE PARKING -- DESTROY WHATEVER BUSINESS BERKELEY HAD. PEOPLE WOULD COME AND BUY SOMETHING FROM US; THEY WOULD GET A $60 TICKET ON THEIR CAR. OKAY, SO RIGHT NOW WE NEED TO [INDISCERNIBLE] MAYOR ISHII, I

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CALLED YOU ON THE WEEKEND, YOU DIDN'T CALL ME BACK. CALL ME BACK, I THINK IT WOULD BE VERY BENEFICIAL FOR ALL OF US. OUR BUSINESS HAS BEEN IN BUSINESS FOR 60 PLUS YEARS. MAYOR ARREGUIN REALLY DESERVES HIS TITLE GENOCIDE JESSE.

>> MAYOR ISHII: THANKS FOR YOUR PUBLIC COMMENT.

>> CITY CLERK: NEXT IS DELLA LUNA, THE NEXT SPEAKER.

>> YES, THANKS. YOU WANTED TO SAY ABOUT THE AUDIO, IT'S REALLY, TO LISTEN TO THE ROOM IS SUPER QUIET. AND THEN WHEN WE LISTEN ON ZOOM TO A ZOOM SPEAKER IT'S LIKE SUPER LOUD. SO WE HAVE TO STAND BY THE VOLUME BUTTON TO TURN IT DOWN, OTHERWISE IT WILL BLAST OUT THE SPEAKERS. SO IF THERE'S A WAY TO GET WHAT'S HAPPENING IN THE ROOM TO BE LOUDER ON ZOOM. BECAUSE AS RIGHT NOW, I WOULD SAY IT'S AT LIKE 50%, OR SORRY, EXCUSE ME, I MEANT 5%. IT'S REALLY, REALLY LOW. SO I HAVE TO TURN IT UP TO 95 TO HEAR YOU ALL. AND THEN TURN IT DOWN TO LIKE 14 SO THAT I CAN HEAR, NOT BLAST OUT MY SPEAKERS. I'M HOPING IF I SAY SOMETHING NOW IT COULD BE FIXED FOR THIS MEETING.

>> MAYOR ISHII: THANK YOU, DELLA, SO SORRY ABOUT THAT. I'VE HEARD THAT'S AN ISSUE, I THINK THEY ARE WORKING BEHIND THE SCENES TO TRY TO FIX THAT. I WILL MAKE SURE OUR COUNCILMEMBERS SPEAK UP AS LOUDLY AS POSSIBLE SO YOU CAN HOPEFULLY HEAR US BETTER.

>> CITY CLERK: OKAY, LAST SPEAKER IS PHONE NUMBER ENDING IN 211.

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AND YOU SHOULD BE ABLE TO UNMUTE. PHONE NUMBER ENDING IN 211. PRESS *6 TO UNMUTE ON THE PHONE. OKAY, THEY DROPPED OFF. SO LAST SPEAKER IS CHERYL DAVILA, FORMER COUNCILMEMBER.

>> GOOD EVENING, CAN YOU PUT THE MIC ON? CAN YOU START MY TIME OVER? THANK YOU. GOOD EVENING, I'M CHERYL DAVILA, A FORMER COUNCILMEMBER IN THE CITY OF BERKELEY. AND FORMER HUMAN WELFARE COMMUNITY ACTION COMMISSIONER WHERE I ADDED TO THE AGENDA IN 2014 TO DIVEST FROM ISRAEL APARTHEID. WAS REMOVED AND BECAME A COUNCILMEMBER BEATING A 12-YEAR INCUMBENT. DIVESTMENT FROM ISRAEL APARTHEID DIDN'T HAPPEN THEN, BUT YOU KNOW, THERE'S STILL TIME. THAT WAS 11 YEARS AGO. AND NOW IT'S NOT REAL HAS BEEN BOMBING, STARVING, GENOCIDING, HOLOCAUSTING PALESTINIANS. HUMANITY? WHERE IS YOUR HUMANITY? DO YOU HAVE ANY HUMANITY? I DON'T KNOW, BECAUSE YOU ALL LOOKIN' NOT GOOD. BUT YOU KNOW, YOU HAVEN'T SHOWN ANY HUMANITY AND IT'S REALLY DISGUSTING THAT YOUR ELECTED OFFICIALS NOT SHOWING HUMANITY WHEN PEOPLE ARE DYING AND STAFFING. -- STARVING, I KNOW MY TIME IS UP BUT I'M NOT FINISHED.

>> MAYOR ISHII: YOUR TIME IS UP.

>> MAYOR ISHII: HER TIME IS OVER. WE HAVE SO MANY SPEAKERS, PLEASE. DECORUM. WE ARE GOING TO TAKE A TWO-MINUTE BREAK. EXCUSE ME, I'M SPEAKING. WE ARE GOING TO TAKE A TWO-MINUTE BREAK TO TRY TO FIX THE SOUND ISSUES. THANK YOU ALL FOR YOUR PATIENCE. [

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BREAK TO FIX SOUND ISSUES]

>> MAYOR ISHII: OKAY, I'M SORRY, EVERYONE. THIS HAS BEEN FRUSTRATING, WE HAVE HAD A LOT OF ISSUES WITH SOUND OVER THE LAST YEAR. AND I KNOW THEY DID SOME WORK AND AN UPDATE BUT WE ARE STILL HERE, APOLOGIES. WE ARE GOING TO CALL THE MEETING BACK TO ORDER. FOLKS, IF I CAN HAVE YOU QUIET DOWN, PLEASE. FOLKS? I KNOW THERE'S A LOT OF WHISPERING GOING ON. IF WE COULD JUST, IF WE COULD BE QUIET FOR A MOMENT SO I CAN MOVE US ONTO THE NEXT PIECE. THE NEXT THING ON OUR AGENDA IS THE PUBLIC COMMENT BY EMPLOYEE UNIONS. ARE THERE ANY UNIONS HERE THIS EVENING? MAYBE SOMEONE ONLINE?

>> CITY CLERK: IF THERE'S ANY REPRESENTATIVE AN EMPLOYEE UNION THAT IS HERE DURING THE DESIGNATED TIME ON ZOOM, PLEASE RAISE YOUR HAND. IF NOT, WE WILL MOVE ON. I WASN'T AWARE OF ANY REQUESTING TO SPEAK.

>> MAYOR ISHII: BE SURE TO LET US KNOW SO THEY CAN TURN DOWN THEIR VOLUME.

>> CITY CLERK: NO HAND.

>> MAYOR ISHII: WE HAVE TWO URGENT ITEMS. I WILL ALLOW COUNCILMEMBER BLACKABY AND THEN LUNAPARRA TO INTRODUCE THOSE ITEMS.

>> B. BLACKABY: GREAT, THANK YOU, MADAM MAYOR AND MY COLLEAGUES. WE SUBMITTED OUR URGENT ITEM, A LETTER FROM THE COUNCIL IN

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SUPPORT OF THREE KEY STATE BILLS SUPPORTING WILDFIRE MITIGATION. THESE BILLS ADVANCED OUT OF THE SUSPENSE BILL IN THE ASSEMBLY APPROPRIATIONS COMMITTEE RECENTLY. AFTER THE DEADLINE FOR SUBMISSION FOR THE AGENDA FOR THIS MEETING. THESE THREE BILLS ARE NOW HEADED TO THE FLOOR OF THE SENATE AND ASSEMBLY WITH FINAL CONSIDERATION WITH A FRIDAY DEADLINE TO BE PASSED AND SENT TO THE GOVERNOR. I WOULD LIKE TO RECOMMEND THE COUNCIL SEND A SINGLE LETTER OF SUPPORT FOR ALL THREE BILLS TO THE ASSEMBLY SPEAKER, BUFFY WIXSOM AND JESSE ARREGUIN. THE LETTERS WOULD GO OUT TOMORROW AHEAD OF THE FRIDAY DEADLINE. SB326 WOULD ESTABLISH A WILDFIRE RISK MITIGATION FRAMEWORK, HELP THE STATE TARGET INVESTMENTS TO MAKE THE GREATEST IMPACT INCLUDING HOMEOWNER ASSISTANCE FUNDS WHICH WOULD BE NECESSARY AND USEFUL FOR WHAT WE ARE DOING HERE IN BERKELEY. AB1433 WOULD CHAMPION HOME HARDENING DURING RENOVATIONS. AND AB888 WOULD BRING FINANCIAL ASSISTANCE BY ESTABLISHING THE CALIFORNIA SAFE HOMES GRANT PROGRAM. ALL THREE BILLS WOULD MAKE A BIG DIFFERENCE STATEWIDE BUT REALLY HELP SUPPORT BERKELEY AS WE WORK TO IMPLEMENT EMBER. I WOULD ASK MY COLLEAGUE'S SUPPORT BEFORE FRIDAY'S DEADLINE. THANK YOU.

>> MAYOR ISHII: THANK YOU VERY MUCH. I THINK WE NEED TO VOTE IN ORDER TO ADD IT ON TO THE AGENDA.

>> CITY CLERK: DO YOU WANT TO DO THEM TOGETHER?

>> MAYOR ISHII: LET'S DO THEM TOGETHER. GO AHEAD, COUNCILMEMBER

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LUNAPARRA.

>> C. LUNAPARRA: THANK YOU. THIS ITEM IS A LETTER TO THE GOVERNOR'S OFFICE ON SEPTEMBER 6, 2025, THE GOVERNOR'S DEPARTMENT OF FINANCE REPORTED IT WOULD NOT BE FINALIZE THE PROMISED LOAN AGREEMENT TO PUBLIC TRANSIT BAY AREA PUBLIC TRANSIT AGENCIES UNTIL JANUARY 2026 BUT OUR TRANSIT AGENCIES CANNOT WAIT ANY LONGER BEFORE CUTS. PUBLIC TRANSIT IS WHAT CONNECTS OUR CITIES AND CREATES PROFOUND RICH AND DIVERSE REGIONAL COMMUNITY IN THE BAY AREA. WITHOUT FUNDING WE FORCE RESIDENTS TO RELY MORE ON GAS VEHICLES. THEY KEEP OUR REGION, CITY RUNNING MOVING AND THRIVING.

>> MAYOR ISHII: THANK YOU SO MUCH.

>> C. LUNAPARRA: I WOULD LIKE TO ADD COUNCILMEMBER KESARWANI AS A CO-SPONSOR.

>> MAYOR ISHII: THAT'S GREAT. THANK YOU. OKAY, SHALL WE VOTE THEN TO --

>> B. BLACKABY: I MOVE WE ADOPT BOTH URGENT ITEMS AS PART OF THE CONSENT CALENDAR TONIGHT.

>> I. TREGUB: SECOND.

>> CITY CLERK: SECOND BY TREGUB. TO ADD THE TWO ITEMS. WHO WAS THE CO-SPONSOR BEING ADDED TO YOUR ITEM, COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: COUNCILMEMBER KESARWANI.

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>> CITY CLERK: TO ADD THOSE TWO ITEMS TO THE AGENDA, PURSUANT TO THE BROWN ACT REQUIREMENTS, REQUIRES A TWO-THIRDS VOTE. I WILL CALL THE ROLL. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> B. BLACKABY: YES.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: THOSE ARE ADDED TO THE CONSENT CALENDAR.

>> MAYOR ISHII: OKAY, THANK YOU. AT THIS TIME IF THERE ARE ANY

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COUNCILMEMBERS WHO HAVE COMMENTS ON CONSENT, PLEASE PRESS YOUR BUTTON. COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. I WOULD LIKE TO GIVE $500 TO ITEM 23, THE WATER SIDE WORKSHOP ITEM AND THANK COUNCILMEMBER TAPLIN FOR WRITING THIS. I ALSO WANTED TO SAY I'M VERY GRATEFUL TO THE COMMUNITY MEMBERS THAT NOTICED ITEM 15 VIOLATED THE 1973 BALLOT MEASURE LEADING TO ITS REMOVAL FROM THE AGENDA AND THANK YOU TO THE CITY ATTORNEY AND CITY MANAGER FOR THEIR DILIGENT WORK MAKING SURE WE COMPLYING WITH THE LAWS APPROVED BY THE VOTERS. THANK YOU.

>> MAYOR ISHII: THANK YOU. MY PARLIAMENTARIAN ISN'T WORKING. YOU WILL GO COUNCILMEMBER TREGUB, THEN HUMBERT THEN BLACKABY.

>> I. TREGUB: THANK YOU, ON ITEM 23, I WOULD LIKE TO THANK COUNCILMEMBER TAPLIN FOR DOING THE ITEM. I WOULD LOVE TO REQUEST TO BE ADDED AS A CO-SPONSOR AND WILL CONTRIBUTE $100 FROM MY D-13 ACCOUNT.

>> T. TAPLIN: YES, THANK YOU.

>> I. TREGUB: I WANTED TO UPLIFT ITEM 3, A CONTRACT OF THE THRONE LAB PORTABLE TOILET PILOT PROGRAM. THIS IS A PILOT FOR PORTABLE TOILET SERVICES. AT TWO LOCATIONS, RUNNING FOR FOUR MONTHS. AND YOU KNOW, WITH THE POSSIBILITY OF BEING EXTENDED. ONE OF THE LOCATIONS IS AT CIVIC CENTER PARK. AND IT WAS BEAUTIFUL TO SEE IT GO UP SOMETIME EITHER YESTERDAY, OR MAYBE

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EVEN BEFORE THAT. AND I WOULD LIKE TO THANK THE CITY MANAGER AND ALL THE STAFF WHO MADE THIS POSSIBLE. TREMENDOUS GRATITUDE FOR EVERYTHING STAFF HAS DONE AND CONTINUES TO DO TO ENSURE THAT OUR BEAUTIFUL PUBLIC SPACES ARE OPEN FOR PUBLIC USES, CIVIC CENTER PARK LOOKS BEAUTIFUL AND WITH A PORTABLE TOILET INSTALLATION, IT IS EVEN MORE ACCESSIBLE. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER BARTLETT?

>> B. BARTLETT: THANK YOU, MADAM MAYOR. I WOULD LIKE TO CO-SPONSOR ITEM 23 WITH THE VICE MAYOR, WATERSIDE WORKSHOPS?

>> T. TAPLIN: YES, THANK YOU VERY MUCH.

>> B. BARTLETT: THANK YOU, VICE MAYOR. AND GIVE $250 FROM MY D 13 ACCOUNT IN SUPPORT OF THIS WONDERFUL EVENT.

>> MAYOR ISHII: THANK YOU. WE ARE GOING TO GO BLACKABY, HUMBERT, KESARWANI AND THEN O'KEEFE.

>> B. BLACKABY: GREAT, THANK YOU, MADAM MAYOR. A COUPLE COMMENTS, I WANT TO JOIN COUNCILMEMBER TREGUB IN THANKING THE CITY COUNCIL AND TEAM FOR LAUNCHING THE THRONE PILOT PROGRAM, IT WAS GREAT TO SEE IN CIVIC CENTER PARK AND LOOK FORWARD TO OTHER INSTALLATIONSMENT ON BEHALF OF DISTRICT 6 WE WOULD LIKE TO CONTRIBUTE $300 TOWARD THE WATERSIDE WORKSHOPS. INFORMATION ITEM #26, THE ZONE ZERO IMPLEMENTATION PLAN FROM THE FIRE DEPARTMENT, I JUST WANT TO APPRECIATE THE WORK THAT CHIEF SPRAGUE AND ASSISTANT CHIEF ARNOLD DID. THIS IS ONE OF THE RECOMMENDATIONS

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YOU AUTHORED AND THE CITY COUNCIL UNANIMOUSLY A PROEED IN JUNE. DO THIS IMPLEMENTATION CLAN AND I'M GLAD TO SEE IT BACK BEFORE US TONIGHT. I WANT TO HIGHLIGHT A FEW THINGS BECAUSE IT'S EXCITING TO SEE WHAT'S HAPPENING AROUND EMBER. IT'S BEEN MOVED FROM 9,000 PARCELS TO 1400. THESE ARE THE KEY PROPERTIES AROUND THE GRIZZLY PEAK AND PANORAMIC, HIGH FIRE ZONE, GIVING INSPECTORS MORE TIME FOR INSPECTION, TYPICALLY AN HOUR OR MORE TO HOMEOWNERS IN WUI. TWO WALK-THROUGHS, ONE BASED ON EXISTING STANDARDS AND TWO, BASED ON WHAT THE 2026 CODE REQUIREMENTS WILL BE AND WORKING WITH RESIDENTS FOR A PHASED STEP-BY-STEP WORK PLAN. THIS IS AN AMAZING APPROACH WITH GUIDANCE AND SUPPORT WITH OUR FIRST DEPARTMENT WORKING HAND IN HAND WITH OUR RESIDENTS. I APPRECIATE THAT DETAILED WORK, THAT'S WHAT IT WILL REQUIRE. THANKS TO THIS WORK WE HAVE SEEN A SIGNIFICANT INCREASE IN RESIDENT PARTICIPATION. YOU KNOW, THE NUMBER OF PROPERTIES THAT ARE GETTING FULL 360° INSPECTIONS HAS INCREASED SINCE THEY HAVE BEEN DOING THIS NEW WORK. MORE AND MORE RESIDENTS ARE WALKING AROUND WITH THE INSPECTORS IT'S GONE FROM 13 TO 47%. PARTICIPATION IN THE CITY'S CHIPPER PROGRAM HAS SUBSTANTIALLY INCREASED FROM THIS YEAR VERSUS LAST YEAR. I'M SEEING THIS HAPPEN IN MY OWN NEIGHBORHOOD. NEIGHBORS ARE SELF-ORGANIZING SAYING LET'S ORGANIZE VEGETATION MANAGEMENT WEEKENDS; WE HAVE HAULED MORE THAN 2300 CUBIC YARDS OF MATERIAL OUT OF THE HILLS

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THIS YEAR. INCREASED OVER LAST YEAR. THEY ARE UPDATING WITH GIS MAPS YOU CAN INPUT YOUR ADDRESS AND SEE WHICH FIRE ZONE YOU ARE IN. THEY DESIGNED AND LAUNCHED A NEW RESIDENT ASSISTANT PROGRAM DISTRIBUTING THE $1 MILLION CALFIRE GRANT FOR HOMEOWNERS WHO NEED MORE SUPPORT. WE ARE HAVING A WEBINAR THIS WEEKEND ABOUT WHO QUALIFIES AND HOW TO APPLY. THEY LAUNCHED THIS WUI VEGETATION WORK GROUP, A GROUP OF LOCAL RESIDENTS WITH STAFF GIVING LANGUAGE IN THE FIRE CODE THAT WILL COME BACK TO THE COUNCIL LATER THIS YEAR. THERE'S SO MUCH GOING ON AND I WANT TO UPLIFT THE WORK THE FIRE DEPARTMENT IS DOING. I LOOK FORWARD TO THIS IMPACT THEY ARE HAVING. AND I ENCOURAGE THE DEPARTMENT TO COME BACK TO COUNCIL WITH ANY ADDITIONAL SUPPORT YOU NEED TO SUCCESSFULLY IMPLEMENT EMBER. I THINK WE ARE OFF TO A GOOD START. THERE'S A LOT OF WORK TO DO BUT I APPRECIATE THE DILIGENCE IN PULLING THIS TOGETHER. TWO OTHER ITEMS. ITEM 27 WAS THE FIRE DEPARTMENT'S FIRE PREVENTION AUDIT, THANK YOU FOR THAT, IN RESPONSE TO THE AUDIT OUR AUDITOR JENNY WONG DID. ALSO ITEM 30, BERKELEY POLICE DEPARTMENT'S UPDATE ON THE CITY GATE STAFFING REPORT. I WILL NOTE THERE WERE 54 RECOMMENDATIONS IN THAT REPORT ABOUT HOW TO ADJUST STAFFING AND STRUCTURE OF THE DEPARTMENT. THEY HAVE ALREADY IMPLEMENTED OR IN PROCESS OF IMPLEMENTING 14. I APPRECIATE THAT UPDATE AND LOOK FORWARD TO CONTINUING UPDATES ON THAT WORK. THAT'S A LOT. THANK YOU.

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>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. EXCITING WORK BEING DONE. COUNCILMEMBER HUMBERT?

>> M. HUMBERT: THANK YOU, MADAM MAYOR AND THANK YOU, COUNCILMEMBER BLACKABY FOR THE SUMMARY OF THE REPORT. I WILL READ THE REPORT, IT'S IMPORTANT. AS TO ITEM 23, THE WATERSIDE WORKSHOP, RELENGTH QUILCHENAMENT OF COUNCIL FUNDS FOR LAND AND SEA, VICE MAYOR TAPLIN HAS ASKED ME TO BE A CO-SPONSOR ON THIS ITEM, I GUESS I'M THE FOURTH. IT WOULD BE MY PRIVILEGE. THANK YOU FOR INVITING ME. THIS IS ONE MY FAVORITE BERKELEY NONPROFITS AND GO-TO PLACE FOR BIKE REPAIRS, I GOT A COUPLE BIKES I WILL CONTRIBUTE TO THEM AS WELL. I WOULD LIKE TO CONTRIBUTE $500 FROM D-8 DISCRETIONARY BUDGET, LAND AND SEA 2025. THANK YOU.

>> MAYOR ISHII: THANKS. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: THANK YOU VERY MUCH. I WOULD LIKE TO BE RECORDED AS DONATING $100 TO WATERSIDE WORKSHOPS. I BELIEVE IT'S ITEM 23 FROM COUNCILMEMBER TAPLIN. THANK YOU VERY MUCH, THAT'S ALL I HAVEMENT

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: YES, I DON'T HAVE ANYTHING PREPARED TO SAY BUT I WANT TO MAKE SURE I'M ON RECORD AS DONATING $250 TO THE WATERSIDE WORKSHOP ITEM. IT'S A WONDERFUL ITEM, THANK YOU, VICE MAYOR TAPLIN.

>> MAYOR ISHII: THANK. VICE MAYOR TAPLIN?

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>> T. TAPLIN: THANK YOU, MADAM MAYOR ANDER ONE, THANK YOU TO COUNCILMEMBER HUMBERT AND LUNAPARRA FOR THEIR EMERGENCY ITEMS. I WANT TO ENCOURAGE EVERYONE TO ATTEND THE LAND AND SEA PROGRAM AND COMMEND THE PARTNERS FROM WATERSIDE WORKSHOPS AND PROVIDING ECONOMIC OPPORTUNITY TO YOUTH OF COLOR. THANK YOU.

>> MAYOR ISHII: I WILL BE THERE SATURDAY AND I WOULD LIKE TO PUT $250 FROM OUR BUDGET TOWARDS IT. THANKS. MOVING ON, WE WILL CLOSE THE COMMENT PERIOD FOR COUNCILMEMBERS AND MOVE ONTO COMMENT ON CONSENT CALENDAR OR INFORMATION ITEMS ONLY.

>> GOOD EVENING, MAYOR AND MEMBERS OF THE CITY COUNCIL, I WANT TO THANK COUNCILMEMBER LUNAPARRA AND COUNCILMEMBER FOR THE URGENCY ITEM ON B.A.R.T. FUNDING. COMMISSIONER TWU AND I ARE BRINGING A SIMILAR ITEM TO THE RENT BOARD, LATER THIS MONTH, MAYBE A LITTLE TOO LATE BUT I WANT TO ENCOURAGE YOU ALL TO DO EVERYTHING YOU CAN IN YOUR CAPACITY FOR THIS. THIS IS A REALLY CRITICAL ISSUE FOR TENANTS THEY ARE DISPROPORTIONATELY RELIANT ON TRANSIT AND I WANT TO OFFER MY SUPPORT, IF THERE'S ANYWAY MYSELF OR THE RENT BOARD CAN ADVOCATE IN SACRAMENTO, I WANT TO BE A PART OF.

>> MAYOR ISHII: THANK YOU. THANKS FOR COMING.

>> HELLO, RYAN LAU, AT A.C. TRANSIT, I WANT TO CORRECT THE RECORD, IT'S NOT EXCLUSIVELY B.A.R.T. FUNDING. THANK YOU TO THE COUNCIL FOR CONTINUED SUPPORT FOR PUBLIC TRANSIT, PARTICULARLY

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COUNCILMEMBER LUNAPARRA AND YOUR CO-SPONSORS. THIS $750 MILLION LOAN IS CRITICAL TO BRIDGE THAT GAP TO A POTENTIAL REVENUE MEASURE, THERE'S NOTHING EVEN ON THE BALLOT OR ANYTHING LIKE THAT YET. BUT IT WILL HELP AVERT SOME REALLY CRITICAL IMPACTS TO OPERATIONS. ECHOING THE SERVICE LEVELS THAT WE SAW DURING THE PANDEMIC. WE REALLY DON'T WANT TO REPEAT THAT. THIS BRIDGE FUNDING WILL DEFINITELY MAKE A DIFFERENCE. THERE'S A LOT OF DETAILS STILL NOT NAILED DOWN. WE ENCOURAGE IF THE CITY COUNCIL CAN ENCOURAGE THE GOVERNOR'S OFFICE TO MAINTAIN COMMUNICATION WITH US TO REALLY NAIL DOWN THOSE DETAILS I THINK THAT WILL BE REALLY IMPORTANT. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HI MAYOR AND MEMBERS OF THE COUNCIL, MY NAME IS ASIEN ASINI, I'M HERE IN SUPPORT OF THE LAND TRUST. I'M HERE IN SUPPORT OF COUNCIL AGENDA ITEM 11. AS A LAND TRUST IN BERKELEY WE LOOK FORWARD TO SEEING THAT LOT DEVELOPED AND ARE SUPPORTIVE OF THE PLANS AND DEVELOPMENT TEAM. THANK YOU FOR INVESTING IN PRE-DEVELOPMENT DOLLARS THAT'S REALLY IMPORTANT FOR EMERGING DEVELOPERS AND WE LOOK FORWARD TO ENGAGING WITH YOU PLANS FOR THE EAST LOT. THANKS SO MUCH.

>> MAYOR ISHII: THANK YOU.

>> HI, GOOD AFTERNOON, COUNCIL.

>> MAYOR ISHII: DO YOU WANT TO PULL DOWN THE MIC?

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>> HI, I WANT TO USE THIS ITEM TO URGE THE COUNCIL TO ADOPT ITEM 25, TO MAKE BERKELEY A SANCTUARY CITY, TO CODIFY THAT.

>> MAYOR ISHII: SORRY, THIS IS JUST FOR CONSENT CALENDAR/INFORMATION ITEMS ONLY. BUT YOU ARE WELCOME TO COME BACK TO SPEAK DURING THAT TIME. THANK YOU. HI, CAROL.

>> HI, IT'S NOT CLEAR TO ME IF THE OPIOID LITIGATION YOU JUST SPOKE TO THE SETTLEMENT IS INCLUDED NOW IN THE CONSENT CALENDAR. I'M HOPING THIS MONEY COMES DIRECTLY TO BERKELEY. WE VERY MUCH NEED IT.

>> MAYOR ISHII: SORRY, THAT'S ACTUALLY NOT ON THE CONCEPT CALENDAR. IT WAS FROM A CLOSED SESSION READ-OUT. THAT'S WHAT IT WAS. JUST SO YOU KNOW. THANK YOU. IT'S COMING TO BERKELEY. THAT WAS WHAT THE ITEM WAS. THANK YOU. OKAY, COME ON UP.

>> GOOD EVENING, COUNCILMEMBERS, JUSTIN SMITH, I REPRESENT ADELINE ALLIANCE TEAM. I WANT TO THANK ALL OF YOU FOR ACKNOWLEDGING AND BEING PART OF ITEM 11, WHICH IS ON THE CONCEPT AGENDA. THANK YOU FOR YOUR SUPPORT OF THAT. I WANT TO THANK THE COMMUNITY FOR YOUR SUPPORT OF THE ADELINE ALLIANCE AND ASHBY B.A.R.T. STATION. WE WERE THE SELECTED DEVELOPERS FOR THE WEST LOT. SO BRINGING AFFORDABLE HOUSING, BRINGING ECONOMIC OPPORTUNITIES, BRINGING HEALTHCARE, BRINGING OTHER TYPES OF THINGS TO THAT PARTICULAR LOT IS VERY IMPORTANT TO US AND IS IMPORTANT TO THE COMMUNITY. I WANT TO THANK YOU FOR YOUR SUPPORT

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OF THAT ITEM. THANK YOU.

>> MAYOR ISHII: THANK YOU. OKAY, ANYONE ELSE?

>> SO IT'S NICE YOU ARE SUPPORTING THE WATERSIDE ORGANIZATION. BUT YOU KNOW, SADLY, IN GAZA, THERE'S HUNDREDS OF THOUSANDS OF PEOPLE THAT HAVE BEEN DISABLED AND DON'T HAVE AN OPPORTUNITY TO USE THOSE KINDS OF SERVICES BECAUSE THEY ARE BEING STARVED, THEY ARE BEING MARTYRED, THEY ARE BEING SHOT TO KILL. THEY ARE BEING BOMBED. THEY DON'T HAVE WATER. THEY DON'T HAVE OPPORTUNITIES LIKE THEY WOULD IF THEY WERE NOT BEING KILLED AND GENOCIDED. AND THE HOLOCAUST IN GAZA DOESN'T GIVE THEM AN OPPORTUNITY TO HAVE PROSTHESIS OR ANY OF THE THINGS THAT MIGHT HELP THEM LIVE AND SURVIVE.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> YOU'RE WELCOME, MAYOR.

>> AS A DISTRICT 2 RESIDENT, I ALSO WANT TO ADD MY APPRECIATION FOR THE SUPPORT YOU ARE GIVING TO THE WATERSIDE BIKES. IT'S A GREAT OPERATION. THEY DO GREAT WORK. THEY ARE SO ACCESSIBLE, YOUR MONEY IS WELL-SPENT THERE. I ALSO WANT TO JUST NOTICE THAT IN TERMS OF WHERE WATERSIDE IS, IT'S KIND OF PERILOUS, IF GO TO AQUATIC PARK, YOU SEE THIS GIANT, I THINK OF IT AS A WHITE ELEPHANT, BUT THIS EMPTY LAB SPACE THAT TOOK OVER OUR PARK. YOU KNOW WHAT I'M TALKING ABOUT. IF YOU GO DOWN THERE THERE USED TO BE A PARK AND YOU COULD KIND OF GIVE A SENSE YOU ARE IN A PARK

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AND NOW IT FEELS LIKE BEING ON THE FRONT LAWN OF SOME CORPORATE ENTERPRISE THAT HAS NO RELATIONSHIP REALLY TO THE COMMUNITY DOWN THERE. SO I'M HOPEFUL MY COUNCILMEMBER IS HEARING ME, I'M HOPEFUL MY COUNCILMEMBER WILL RESPOND TO PHONE CALLS OR EMAILS. AND I'M HOPEFUL THAT DISTRICT 2 CAN HAVE SOME COMMUNITY BASED DEVELOPMENT RATHER THAN CORPORATE BIO LABS.

>> MAYOR ISHII: THANK YOU.

>> I'M QUITE SHORT SO I WILL NEED TO TURN THIS UP. HELLO, I WOULD LIKE TO SPEAK IN SUPPORT OF THE LOANS PLAN AND LETTER PLAN TO BE SENT TO GOVERNOR GAVIN NEWSOM. PT BERKELEY HAS A STUDENT POPULATION AND MANY RELY ON B.A.R.T. TO GET TO SAN FRANCISCO, PARTS OF THE BAY, SAN JOSE, ET CETERA. THIS IS IMPORTANT ESPECIALLY FOR THE COMMUNITY AND I WOULD LIKE TO EMPHASIZE, I THINK IT'S GREAT, AND YEAH, THAT'S ALL. THANK YOU.

>> MAYOR ISHII: THANK YOU, I MEANT TO MENTION, I ALSO SENT A STATEMENT ON MONDAY TO THE RALLY THAT HAPPENED. AND ALSO SENT MY OWN LETTER TO THE GOVERNOR, SO THANK YOU FOR SPEAKING ON BEHALF, IN SUPPORT OF THAT. DID YOU HAVE A COMMENT ON THE CONSENT CALENDAR?

>> YEAH, YOU DID SAY WE COULD SPEAK ON FLOCK CAMERAS EVEN THOUGH IT WAS TAKEN OFF.

>> MAYOR ISHII: DURING THAT TIME. WHERE IT WOULD HAVE BEEN ON THE ACTION CALENDAR, IT WOULD HAVE BEEN ITEM 24, SO YOU CAN

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SPEAK ABOUT IT THEN. AFTER THIS. YOU WILL LET YOU KNOW, I PROMISE. -- I WILL LET YOU KNOW, I PROMISE. THANK YOU. HI, MARIA, THANK YOU FOR YOUR HELP EARLIER.

>> THAT'S WHY I WANTED TO COME UP. FIRST OF ALL, I HOPE YOU ALL HAD A GOOD MONTH OFF. OR AS GOOD AS IT COULD BE. AND I'M REALLY HAPPY YOU ALL ARE BACK. AND ESPECIALLY MAYOR, THAT YOU HAVE THIS OPEN SPACE ENOUGH FOR ALL OF US TO COME, EVEN THOUGH SOME OF US ARE QUITE UNIQUE, RIGHT? IT'S LIKE YOU STILL PROVIDE THE SPACE, AND THAT'S WHAT I'M TRYING TO SPEAK TO BECAUSE WE CAN'T CREATE PEACE IF WE ARE NOT IN PEACE. IF I WANT TO SAY NO TO ABUSE, WHICH I ALWAYS DO, I DON'T WANT TO BE ABUSIVE.

>> MAYOR ISHII: SORRY.

>> THAT CERTAINLY DOESN'T MAKE ME WIMPY.

>> MAYOR ISHII: AGREED. SORRY, I WANT TO CHECK IF THERE'S SOMETHING ON THE CONSENT OR INFORMATION.

>> THE CONSENT IS I'M THANKING YOU FOR THIS SPACE AND COMING BACK AND FOR ALLOWING US TO SOMEHOW WORK TOGETHER, HOPEFULLY. THANK YOU.

>> MAYOR ISHII: THANK YOU. IN SUPPORT OF THE CONSENT CALENDAR. ALL RIGHT. THANK YOU. THANKS MARIA.

>> CITY CLERK: SO THIS WOULD BE THE TIME IF THERE'S ANY ATTENDEES ON ZOOM WHO WISH TO SPEAK TO A CONSENT CALENDAR ITEM, OR AN INFORMATION ITEM, NOW WOULD BE THE TIME TO RAISE YOUR

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HAND. PUBLIC COMMENT ON ITEMS ON CONSENT. OKAY, ONE SPEAKER. IPHONE. YOU SHOULD BE ABLE TO UNMUTE.

>> HI, CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> THANK YOU, MY NAME IS MARILYN KUNG, I LIVE BY THE ASHBY B.A.R.T. STATION, I WOULD LIKE TO CALL IN SUPPORT OF ITEM 11 FOR THE FUNDS FOR DEVELOPMENT OF AFFORDABLE HOUSING. I URGE THE COUNCIL TO ADOPT IT. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: AND WE HAVE ONE MORE HAND THAT IS RAISED FOR CONSENT CALENDAR, AND THAT IS DELLA LUNA.

>> YES. THANK YOU. I JUST WANTED TO SAY THAT AUDIO PROBLEM HAS BEEN FIXED. EVERYTHING IS GREAT ONLINE. THANK YOU SO MUCH. AND ALSO WANTED TO SAY THAT THE IMPROVEMENTS ARE NOTICED. SO THE CAMERA, THE VIEW, EVERYTHING IS MUCH BETTER AND I JUST WANTED TO SAY THANK YOU.

>> MAYOR ISHII: SO GLAD TO HEAR THAT. I'M GLAD YOU CAN HEAR, I'M GLAD THAT THE ONLINE FOLKS ARE NO LONGER SCREAMING IN YOUR EARS. SO THANK YOU SO MUCH FOR LETTING US KNOW.

>> CITY CLERK: AND THAT'S IT FOR CONSENT CALENDAR COMMENTS.

>> MAYOR ISHII: OKAY, VERY GOOD, THANK YOU. IS THERE A MOTION TO APPROVE THE CONSENT CALENDAR?

>> SO MOVED.

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>> SECOND.

>> MAYOR ISHII: CLERK, CAN YOU TAKE THE ROLL, PLEASE?

>> CITY CLERK: OR YOU COULD, EVERYBODY IS HERE.

>> MAYOR ISHII: THANKS. OKAY. ARE WE ALL IN AGREEMENT? NO ONE HAS ANYTHING ELSE THEY WANT TO ADD? OKAY, IT'S APPROVED THEN. THANK YOU. SASSING ME TODAY. [LAUGHTER] WE ARE NOW MOVING ONTO THE ACTION CALENDAR BUT I WILL CHECK TO SEE IF FOLKS WANT TO TAKE A QUICK BREAK? I THINK WE SHOULD TAKE LIKE A 5-10 MINUTE BREAK. OKAY, THANK YOU, EVERYONE. WE WILL BE BACK IN 10 MINUTES. [RECORDING STOPPED] [BREAK]

>> MAYOR ISHII: OKAY. HI, FOLKS. WE ARE BACK. I'M SORRY, IT TOOK US A LITTLE LONGER THAN I THOUGHT TO GET BACK TOGETHER. WE ARE HERE. EVERYONE TAKE YOUR SEATS, PLEASE. I THINK WE ARE MISSING A COUPLE COUNCILMEMBERS. THEY WILL BE BACK SOON. NOW WE ARE MOVING ONTO THE ACTION CALENDAR. AND FOR ITEM 24, WHICH HAS BEEN REMOVED FROM THE CALENDAR, IF FOLKS HAVE COMMENTS, THEY CAN STAND UP AND SPEAK STILL. YOU WILL GIVE FOLKS ONE MINUTE EACH TO SPEAK. AND YEAH, AND WE WILL START OVER WITH KIT. IF YOU COULD PLEASE WALK OVER QUIETLY SO WE CAN HEAR KIT SPEAK. GO AHEAD, KIT.

>> JULI DICKEY, WHO IS ON ZOOM, IS GIVING ME A MINUTE. SO CAN I HAVE TWO MINUTES?

>> MAYOR ISHII: TYPICALLY WE ALLOW PEOPLE WHO ARE HERE IN

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PERSON, IF THERE IS SOMEONE WHO WILL GIVE YOU A MINUTE IN THE AUDIENCE? NO?

>> I HAVE TO SAY THE LAST TIME I SPOKE HERE IT WAS THE SAME ARRANGEMENT AND I WAS GIVEN A MINUTE FROM JULI DICKEY ON ZOOM.

>> CITY CLERK: SHE HAS HER HAND UP.

>> MAYOR ISHII: OKAY, GO AHEAD.

>> I WANT TO CALL YOUR ATTENTION TO THE ACTUAL WORDING OF WHAT WE ARE LOOKING AT IN THE PIECE THAT HAS NOW BEEN DELAYED. THAT IS, I'M ACTUALLY GOING TO START WITH A PIECE OF P.R. FLOCK PUT OUT. FLOCK HAS ACCEPTED BERKELEY'S CONTRACT LANGUAGE FORBIDDING THEM SHARING INFORMATION WITH FEDERAL AGENCIES, UNLESS COMPELLED BY LAW. THAT UNLESS COMPELLED BY LAW IS A VERY IMPORTANT PART. A DIFFERENT WORD FROM IF, IF WE ARE COMPELLED BY LAW, WE WILL HAND OVER THE DATA. IT SAYS IF FLOCK RECEIVES A LEGAL REQUEST OR DEMAND INCLUDING SUBPOENAS, COURT ORDERS OR OTHER LEGAL PROCESSES, ET CETERA, TO THE EXTENT LEGALLY PERMITTED, FLOCK WILL PROMPTLY NOTIFY CUSTOMER. IN OTHER WORDS IF THEY ARE NOT LEGALLY PERMITTED TO NOTIFY THE CUSTOMER, THEY WON'T. YOU NEED TO BE AWARE, IF YOU ARE NOT ALREADY OF FISA WARRANTS. THERE'S A COURT, STILL TOTALLY IN EXISTENCE, ALL MEMBERS ARE APPOINTED BY CHIEF JUSTICE ROBERTS. IT SAYS YOU GET THIS WARRANT, GO TO A SOURCE *F INFORMATION, THEY ARE NOT ALLOWED TO TELL ANYBODY THEY GOT THE WARRANT, THEY ARE NOT ALLOWED TO REVEAL TO EVERYBODY

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WHAT THEY HAVE PRODUCED IN RESPONSE TO THE WARRANT. IF SOMEBODY DOESN'T WANT TO RESPOND TO THIS WARRANT THEY CAN GO TO PRISON. YOU MAY NOT BE AWARE OF THAT. THIS LANGUAGE IS BASICALLY ADVERTISING, GET A FISA WARRANT, THAT WILL TELL US WE AREN'T GOING TO TELL BERKELEY ANYTHING ABOUT WHAT WE ARE HANDING OVER TO THEM. IT DOESN'T SAY BY THE WAY, WE ARE UNABLE TO GET THE INFORMATION, IT DOESN'T SAY THEY ARE UNABLE TO GET BERKELEY'S INFORMATION. YOU KNOW WHO YOU ARE UP AGAINST, THIS TRUMP GOVERNMENT. YOU SHOULD NOT DOUBT THEY WILL USE THIS METHOD. THANK YOU SO MUCH. [APPLAUSE]

>> MAYOR ISHII: THANKS, KIT. COME ON UP. WE'VE GOT A LOT OF PEOPLE. AS SOON AS SOMEONE STEPS DOWN, MOVE ON UP.

>> MY NAME IS STEVE KANOVSKI, I'M A RESIDENT AND SHOWING UP FOR BERKELEY AMERICA. IT'S MORE CRUCIAL OUR POLICIES PROTECT OUR IMMIGRANT POPULATIONS AND ALL OF US FROM FURTHER FEAR, INTIMIDATION AND POTENTIAL DEPORTATION. FLOCK SAFETY HAS BEEN VIOLATING ITS CONTRACTS WITH OTHER MUNICIPALITIES BY SHARING THEIR DATA WITH THE FEDERAL GOVERNMENT. DO WE REALLY BELIEVE THAT FLOCK WON'T DO THE SAME HERE REGARD THES OF PROMISES MADE OR CONTRACTS SIGNED THAT OUR DATA MAY NOT BE SHARED WITH FEDERAL AGENCIES. WHICH HAS THIS ADMINISTRATION OR UPPER COURTS FOLLOWED ANY DUE PROCESS WHEN IT FITS THEIR EXTREMIST AGENDA. MORE SURVEILLANCE ISN'T THE ANSWER, IT HELPS SOME US FEEL SAFER AT

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THE COST OF PERCEIVED SAFETY OF OTHER PEOPLE, IMMIGRANTS AND PEOPLE OF COLOR. OF COURSE WE ALL WANT TO FEEL SAFE, THE EVIDENCE IS KRYSTAL CLEAR, SAFETY FOR ALL OF US, NOT THROUGH SURVEILLANCE. S THANK YOU FOR YOUR COMMENT.

>> I CEDE MY MINUTE TO REBEKAH.

>> HI, MAYOR ISHII AND BERKELEY COUNCILMEMBERS, MY NAME IS REBEKAH GERNY, EBSC TO SUPPORT LOW INCOME IMMIGRANTS AND PEOPLE FLYING VIOLENCE AND PERSECUTION. WE REACH OVER 12,000 PEOPLE A YEAR AND HELP THEM ON THEIR PATH FROM A SIGH LUMP ASYLUM TO CITIZENSHIP. MANY PEOPLE WE SERVE EXPERIENCED ATROCIOUS VIOLENCE AND DESERVE TO BE WELCOMED AND NOT DEMONIZED AND FORCED INTO THE SHADOWS. A PRACTICE OF RACIAL PROFILING YESTERDAY THE SUPREME COURT RULED COULD CONTINUE. THE FULL WEIGHT OF THE FEDERAL GOVERNMENT BEING USED TO VILLAINIZE IMMIGRANTS AND SEPARATE FAMILIES WE LOOK TO THIS COUNCIL FOR SUPPORT AND PROTECTION. THE BERKELEY CITY COUNCIL HAS BEEN A STEADFAST PARTNER IN THIS WORK FOR THE PAST DECADE. THE COUNCIL SHOULDN'T JEOPARDIZE THIS NOW BY STARTING A CONTRACT WITH FLOCK THAT HAS BROKEN CONTRACTS WITH OTHER CITIES TO ILLEGALLY SHARE INFORMATION WITH THE FEDERAL GOVERNMENT. THEY CAN'T OUTWEIGH THE THREAT THAT FLOCK POSES TO OUR COMMUNITY ACTIVELY UNDER ATTACK. AND ALL OF US AS WE RESIST FEDERAL OVERREACH INTO OUR DATA. WE WANT PEOPLE TO FEEL COMFORTABLE GOING TO WORK, SCHOOL, HOME OR GOING TO THE HOSPITAL

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WITHOUT FEAR OF THE VERY SECURITY CAMERAS SUPPOSED TO KEEP THEM SAFE ARE INSTEAD EXPOSING THEM TO FEDERAL GOVERNMENT ENFORCEMENT. THE BEST WAY TO PROTECT OUR DATA IS TO NOT COLLECT IT AT ALL. FLOCK IS UNTRUSTWORTHY AND HAS A TRACK RECORD OF WORKING WITH TRUMP AND I.C.E. MANY ARE TERMINATING THEIR CONTRACTS WITH I.C.E. WHY WOULD BERKELEY RISK OUR SAFETY GIVEN THE EVIDENCE WE HAVE BEFORE US. [APPLAUSE]

>> HI, EVERYBODY, I DON'T EXPECT WHITE PEOPLE CAN UNDERSTAND THIS, BUT IF YOU HAVE EVER BEEN IN A CROWD AND HEAR THE COPS SAY GET THE REDHEAD, YOU KNOW WHAT IT MEANS TO STAND OUT. THE DEPARTMENT OF HOMELAND SECURITY WORKING WITH THE FLOCK CAMERAS AND ALL THAT, GOT A NOTE FROM A PERSON, SISTER-IN-LAW GOT THIS MESSAGE YESTERDAY AND SHE IS A NATURALIZED CITIZEN. MESSAGE FROM D.H.S., SELF-DEPORT WITH DIGNITY, GET A FREE FLIGHT, $1,000 PER FAMILY MEMBER AND CIVIL FINES FORGIVENESS, LEARN MORE AT DHS.GOV. PEOPLE OF COLOR WILL BE SINGLED OUT AND ARE BEING SINGED OUT EVERY DAY. GET THE REDHEAD THE COPS ARE AFTER, YOU GOT TO STAND WITH THE PEOPLE OF COLOR AND DEFINITELY DO NOT GO FOR THIS FLOCK STUFF. IT'S GOING TO GO TO I.C.E., SOONER THAN LATER, THE COPS ARE GOING TO REPORT PEOPLE. DON'T DO IT. GET RID OF FLOCK. THANK YOU.

>> MAYOR ISHII: THANKS. COME ON UP.

>> SOME ENTERPRISING FOLKS IN A SMALL MIDWEST CITY USED A PUBLIC

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RECORDS REQUEST TO GET LOGS OF FLOCK SEARCHES CONDUCTED BY OUTSIDE JURISDICTIONS. IT SHOWS THOUSANDS OF NATIONWIDE SEARCHES JUST IN THE LAST FEW MONTHS FOR IMMIGRANT, IMMIGRATION, I.C.E., E.R.O., ENFORCEMENT AND REMOVAL OPERATIONS. DESPITE NON COOPERATION LAWS. TEXAS, ARIZONA, AND GEORGIA. WHY? MAYBE I.C.E. USES POLICE AROUND THE COUNTRY AS FRONTS. HERE IS A FEW PAGES OF THOSE RECORDS. WITH PERSONAL INFO REDACTED. BY THE WAY, FLOCK'S LEAD INVESTOR IS PRIVATE EQUITY FORM HOROWITZ EXPECT THE SAME MULTI-BILLION MARK ANDRESON --

>> MAYOR ISHII: THANK YOU. SORRY, YOUR TIME IS UP.

>> KNOW WHO YOU ARE GETTING IN BED WITH.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING, I WOULD LIKE TO YIELD MY MINUTE TO ABIGAIL.

>> HI, GOOD EVENING, EVERYONE. ABIGAIL WITH SOCIAL JUSTICE COLLABORATIVE, BASED IN BERKELEY AND PROVIDES LEGAL SERVICES AND SOCIAL SUPPORT TO IMMIGRANTS WITH LOW INCOME. I WANT TO START BY SHARING GRATITUDE. I KNOW THE LAST FEW MONTHS A LOT OF PEOPLE HAVE COME TOGETHER TO FACE THREATS AND HARMS AGAINST OUR CITY. THE SANCTUARY ORDINANCE WAS ANOTHER EFFORT BORN OF COLLABORATION AND WE WILL TALK ABOUT THAT SOON. I THINK OUR COMMUNITY HAS WORKED TOGETHER TO KEEP EACH OTHER SAFE AND HONESTLY SANE. FLOCK IS NOT THE SOLUTION TO COMMUNITY SAFETY. SAFETY COMES WITH INVESTING IN ONE ANOTHER AND MAKING SURE OUR COMMUNITIES HAVE

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WHAT THEY NEED. NOT ONLY HAS FLOCK COLLUDED WITH FEDERAL AGENCIES BUT THEY HAVE ALSO LIED ABOUT DOING SO. IT'S TIED TO THE SAME SYSTEMS OF HARM THAT SHJE AND PARTNERS WORK EVERY DAY. SURVEILLANCE AND DATA COLLECTION ARE THE SAME COMMUNITIES TARGETED BY THIS ADMINISTRATION. THE SUPREME COURT REMINDED US YESTERDAY. COUNCILMEMBER KESARWANI AND I MET WITH YOU THE MORNING FROM. I HAD JUST DROVEN FROM SONOMA COUNTY I WAS RESPONDING TO A REQUEST. HOPING IT WAS A FALSE ALARM. FOUR MASKED MEN AND ONE AGENT ALONG WITH ONE AGENT ABDUCT A COMMUNITY MEMBER IN THE BACK OF A BROWN VAN. I THINK ABOUT WHAT I COULD AND SHOULD HAVE DONE DIFFERENTLY. MY FRIEND SHARED WITH ME, I.C.E. WABTED TO SHOW UP WITH NO RESISTANCE. LEGAL OB SERVERS MADE THEIR JOB A FRACTION MORE DIFFICULT. MAKE THE ADMINISTRATION'S JOB MORE DIFFICULT. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THANK YOU, ABIGAIL.

>> HI, OKAY, SORRY, ROUND TWO. I WANT TO URGE THE BERKELEY CITY COUNCIL TO ADOPT ITEM 25 AS A RESIDENT OF BERKELEY.

>> MAYOR ISHII: SORRY. WE ARE ON ITEM 24. SORRY. THAT'S ALL RIGHT. THIRD TIME'S A CHARM. THANK YOU FOR COMING. HANG IN THERE. ONE MORE.

>> MY NAME IS GLENN TURNER, DISTRICT 5. I WAS HERE WHEN FLOCK EXPLAINED EVERYTHING TO YOU GUYS. IT WAS REALLY LATE AT NIGHT. IT WAS A VERY LONG NIGHT. IT WAS A VERY PERSUASIVE SALES.

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EVERYBODY SHOULD HAVE AND DID ASK WOULD YOU BE SHARING THIS? OH, NO, NO, WE WON'T BE SHARING THIS. I COULDN'T BELIEVE THAT YOU ACTUALLY BELIEVED HIM. THAT TOTALLY SHOCKED ME. WITH ONE ABSTENTION AND EVERYBODY SAYING THIS WAS OKAY. YET WE KNOW THERE'S A BACK DOOR TO ALL THESE FLOCK CAMERAS. WE KNOW THEY HAVE ALREADY ABUSED THE SYSTEM. WE ARE MILITARIZING OUR POLICE AND REALLY, THERE'S ONLY ONE WAY WE SHOULD GO IS SANCTUARY, NOT SURVEILLANCE. PLEASE. DELAY THIS, OR VETO IT, PLEASE, DO NOT TAKE THIS STEP.

>> MAYOR ISHII: IT'S BEEN DELAYED. JUST SO YOU KNOW. [APPLAUSE] JUST FOR FOLKS WHO WEREN'T HERE AT THE BEGINNING. SO THIS ITEM, WE ARE HEARING THE PUBLIC COMMENTS SINCE FOLKS CAME AND IT WAS AGENDIZED BUT IT'S NOT GOING TO BE VOTED ON AND WE'RE NOT GOING TO DISCUSS IT THIS EVENING. IT'S BEEN PUSHED. AND THE CITY MANAGER SHARED SOME THINGS WE WILL BE LOOKING AT AND INCLUDING AN INFORMATION SESSION ABOUT THIS IN PARTICULAR, SO THANK YOU. GO AHEAD.

>> HELLO, MY NAME IS LILY GRODSONS, I WANT TO START BY THANKING THE PEOPLE OUTSIDE MAKING NOISE FOR PALESTINIAN, THANK FOR NOT LETTING THE PEOPLE STARVING IN GAZA BE FORGOTTEN. I WANT TO ADDRESS THE ISSUE OF FLOCK CAMERAS AS A BERKELEY STUDENT. REGARDLESS WHAT YOU SAY ABOUT THE CRIME RATE, I FEEL INCREDIBLY SAFE. IN FACT THE ONLY PEOPLE I AM SCARED OF IN THIS CITY ARE

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COPS. I THINK IT IS INCREDIBLY IMPORTANT TO REMEMBER THAT MOST PRIVATE BUSINESSES ALREADY HAVE CAMERAS THAT DON'T, THAT CANNOT BE COMPELLED TO SHARE THEIR FOOTAGE WITH I.C.E. AND TO ABDUCT COMMUNITY MEMBERS. I NEED YOU GUYS NOT ONLY TO REAFFIRM SANCTUARY STATUS BUT ACTUALLY PUT TEETH BEHIND THAT. DON'T SAY YOU ARE GOING TO REAFFIRM SANCTUARY STATUS WHILE ADOPTING CAMERAS THAT LEGALLY HAVE TO SHARE THEIR FOOTAGE WITH I.C.E. IF I.C.E. ASKS THEM TO DO SO. MAKE SURE YOU ARE MAKING I.C.E.'S JOB DIFFICULT, NOT JUST SAYING YOU ARE GOING TO STAND UP FOR OUR COMMUNITY. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> A LOT OF PEOPLE HAVE MADE A LOT --

>> MAYOR ISHII: COME A LITTLE CLOSER, YEAH.

>> A LOT OF PEOPLE HAVE MADE A LOT OF REALLY GOOD COMMENTS. I AM TOTALLY IMPRESSED WITH THAT. I JUST WANTED TO SAY TO HAVE THIS ITEM EVEN CONSIDERED, AND IT IS BEING CONSIDERED NOW, EVEN THOUGH IT'S BEING DELAYED, FOLLOWED BY 25, THE SANCTUARY CITY ITEM IS AN ENORMOUS IRONY. WHAT DOES THE CITY OF BERKELEY REALLY WANT TO BE? I WANT CITY OF BERKELEY TO BE A TRUE SANCTUARY CITY. THAT'S ALL.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING, I'M A FOUR PLUS YEAR RESIDENT OF BERKELEY. IN THE COURSE OF MY CAREER I HAVE SPOKEN AT MANY CITY COUNCILS BUT

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NOT THIS ONE UNTIL TODAY. I'M HERE TO SPEAK ON BEHALF OF PEOPLE WHO ARE AT RISK AND WE NEED TO HELP PROTECT. SO PLEASE, TAKE WHATEVER ACTION YOU NEED TO NOT ENTER INTO THIS CONTRACT IN OCTOBER. IF THERE'S OTHER M.O.U.'S OR OTHER SIDE AGREEMENTS THAT HAVE BEEN AGREED TO, PLEASE DIRECT THE CITY ATTORNEY TO REVIEW THOSE AND FIGURE OUT HOW TO EXIT THEM PRIOR TO CONSIDERING THIS ITEM IN OCTOBER, OR WHENEVER IT COMES BACK. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING, COUNCILMEMBERS, MY NAME IS JASON, I'M HERE TO SPEAK ABOUT SURVEILLANCE, I HATE GIVING PUBLIC COMMENT BUT HERE I AM. TODAY BERKELEY IS VOTING TO ADD SANCTUARY CITY, I APPLAUD, BUT THIS SEEMS LIKE AN EMPTY GESTURE IF WE INSTALL SURVEILLANCE SYSTEMS. THEY HAVE BEEN PROVEN TO COLLABORATE WITH I.C.E., FUNDAMENTALLY INCOMPATIBLE WITH OUR SANCTUARY CITY COMMITMENTS. WE ARE NOW LIVING IN AN AUTHORITARIAN REGIME. WHATEVER POLICIES OR PROTECTIONS WE MIGHT WISH TO IMPLEMENT, THEY ARE NOT SUFFICIENT TO PROTECT THE DATA FROM BEING SHARED AS RECENT EXAMPLES WITH FLOCK HAVE SHOWN. SURVEILLANCE DOES NOT KEEP US SAFE; I URGE THE COUNCIL TO USE THIS MONEY IN MORE PRODUCTIVE THINGS THAT ARE REIMAGINING PUBLIC SAFETY TASK FORCE RECOMMENDED. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> HELLO, MY NAME IS AMELIA, I'M A RESIDENT OF DISTRICT 4. AND I

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JUST WANT TO URGE YOU GUYS NOT TO PROCEED WITH THE CONTRACT WITH FLOCK. AND URGE YOU TO THINK ABOUT WHAT IT SAYS TO THE RESIDENTS OF BERKELEY IF WE RESIGN A CONTRACT WITH A COMPANY THAT'S BEEN PROVEN TO LIE TO PEOPLE ABOUT WHAT THEY ARE FOR AND WHAT THEY DO. THAT DOESN'T MAKE US FEEL VERY SAFE AND PROTECTED AND CONCERNLY SENDS A WRONG MESSAGE TO OUR MARGINALIZED COMMUNITIES IN BERKELEY. THERE'S A BUNCH OF CITIES THAT HAVE ALREADY MOVED TO TERMINATE THEIR CONTRACT WITH FLOCK. WE NEED TO FOLLOW THEIR LEAD AND NOT TAKE THIS LIGHTLY. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> HELLO, MY NAME IS MELISSA MCGRATH, I'M A MEMBER OF DISTRICT 4, I RECEPTLY MOVED TO BERKELEY. ESPECIALLY FOR THE SCHOOL. I'M A PH.D. STUDENT THERE, BUT I MOVED TO BERKELEY BECAUSE OF ITS VALUES OF WELCOMENESS, AND DIVERSITY. I THINK IF YOU ARE A REPRESENTATIVE OF BERKELEY YOU SHOULD PROTECT THE IMMIGRANTS. I THINK IT'S CLEAR THAT THE TRUMP ADMINISTRATION BLINDLY TARGETS PEOPLE OF COLOR, IRREGARDLESS OF THEIR LEGAL STATUS. SO I URGE YOU TO VOTE NO AND NOT ALLOW THE FLOCK TO CONTINUE WITH BERKELEY. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> HELLO, CITY COUNCIL, I WOULD LIKE TO START BY THANKING YOU FOR ALLOWING US TO MAKE PUBLIC COMMENT ON THIS ITEM EVEN THOUGH IT'S BEEN TABLED TO OCTOBER, I REALLY APPRECIATE THAT. I ALSO

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WANT TO POINT OUT THAT I KNOW YOU GUYS HAVE GOTTEN OUR EMAILS, I KNOW HAVE BEEN MEETING WITH US, I KNOW YOU SEE HOW MANY PEOPLE HAVE COME TO THIS MEETING, EVEN THOUGH IT'S LATE AND WE ALL HAVE SCHOOL AND WORK. THIS IS JUST THE BEGINNING FOREUS. WE ARE NOT GOING TO GET TIRED OR GIVE UP, WE WANT A REAL SANCTUARY CITY WE ARE GOING TO KEEP FIGHTING AND BADGERING AND BOTHERING YOU UNTIL WE HAVE AN ACTUAL SANCTUARY CITY. THAT MEANS NOT MAKING NEW CONTRACTS WITH FLOCK, THAT MEANS CANCELING EXISTING CONTRACTS WITH FLOCK BECAUSE WE HAVE ALPR, AUTOMATIC LICENSE PLATE READERS CONTRACTED WITH FLOCK ALREADY. WE WON'T BE DONE UNTIL THIS UPCOMING CONTRACT IS CANCELLED AND EXISTING CONTRACTS ARE CANCELLED AND AGAIN WE WILL BE CALLING YOU, EMAILING, SHOWING UP TO CITY COUNCIL, BOTHERING YOU OVER AND OVER AND OVER AGAIN UNTIL WE TRULY HAVE A CITY THAT IS SAFE FOR ALL US. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING, MAYOR AND CITY COUNCILORS, I'M A U.C. BERKELEY STUDENT AND I'M SPEAKING ON BEHALF OF THE CAL BERKELEY DEMOCRATS. PLEASE WHEN YOU END UP CONSIDERING THIS ITEM NOT APPROVE THE CONTRACT WITH FLOCK, NOT NOW, NOT EVER. I KNOW YOU ARE ALL GOOD PEOPLE, THAT YOU CARE DEEPLY ABOUT PUBLIC SAFETY BUT THIS CONTRACT PUTS IMMIGRANT COMMUNITIES IN BERKELEY AT AN UNACCEPTABLE RISK LEVEL. WE ALL KNOW THE TRUMP ADMINISTRATION WILL SUBPOENA THE FLOCK INFO, I KNOW IT, YOU KNOW IT, EVERYONE

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IN THIS ROOM KNOWS IT. WHILE IT MIGHT SEEM A WORTH TRADE OFF TO YOU IF YOU GO FORWARD WITH THIS CONTRACT, I WOULD ENCOURAGE YOU TO THINK IT THROUGH FULLY AND THINK ABOUT WHETHER IT WILL STILL BE A WORTHWHILE TRADE OFF IF YOU ARE FACED WITH A RELATIVE OR A FRIEND OR SOMEONE WHO KNOWS SOMEONE WHO IS DEPORTED USING THE INFORMATION THEY GOT FROM FLOCK YOU LET THEM GET. AND IF THEY COME UP HERE AND ASK YOU WHETHER IT WAS WORTH IT THEN IN THE FUTURE, WILL YOU STILL FEEL THE SAME WAY. THANK YOU VERY MUCH FOR YOUR TIME.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING, COUNCILMEMBERS, MAYOR ISHII, MY NAME IS AUDREY KRAMER, I'M A STUDENT IN U.C. BERKELEY LIVING IN DISTRICT 6. I'M URGING YOU TO OPPOSE THE PROPOSED CONTRACT WITH FLOCK SAFETY. CALIFORNIA STATE LAW PROHIBITS POLICE FROM SHARING ALPR DATA WITHOUT OTHER STATE AND FEDERAL AGENCIES, FLOCK HAS ALLOWED FOR MANY VIOLATIONS OF THIS LAW. FLOCK HAS SHARED MUCH OF THEIR DATA WITH FEDERAL AGENCIES, NOTABLY I.C.E., I'M PROUD TO LIVE IN A SANCTUARY CITY WHICH IS WHY I'M PERPLEXED WHEN CITIES ACROSS THE COUNTRY ARE CURRENTLY TERMINATING THEIR CONTRACTS WITH I.C.E. YOU SWORE TO KEEP UNDOCUMENTED CITIZENS SAFE, BUT WHAT THEIR DATA? GIVING IT AWAY WILL NEVER MAKE THEM SAFER. FLOCK REPEATEDLY VIOLATED STATE LAW, I AM ASKING YOU TO OPPOSE THE PROPOSED FLOCK CONTRACT. THANK YOU FOR YOUR TIME.

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>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING, CITY COUNCIL MEMBERS,MY NAME IS TODD, I SERVE AS DISASTER AND FIRE COMMISSIONER BUT I'M SPEAKING ON MY OWN PERSONAL ACCORD, SPEAKING IN OPPOSITION OF THE PROPOSED CONTRACT WITH FLOCK. I BELIEVE THIS APPROACH RISKS INFRINGING ON THE CIVIL LIBERTIES THAT MAKE BERKELEY UNIQUE. OUR CITY HAS ALWAYS STOOD AS A BEACON FOR FREE PRESS AND FREE SPEECH. -- RESIDENTS SHOULD NOT HAVE TO WEIGH THEIR RIGHT TO FREE ASSEMBLY AGAINST THE FEAR OF BEING MONITORED. SURVEILLANCE CAMERAS HAVE A MIXED RECORD. WHAT CAMERAS DO CREATE IS PERMANENT INFRASTRUCTURE OF MONITORING THAT OUT LASTS THE ORIGINAL STATED PURPOSE.

>> MAYOR ISHII: THANK YOU. ONE MINUTE FROM HERE.

>> ONCE INSTALLED THEY CAN BE USED IN WAYS NOT ANTICIPATED. WE HAVE TO BE HONEST ABOUT BERKELEY'S HISTORY. THE BERKELEY POLICE DEPARTMENT HAS GONE FAR BEYOND REASONABLE LIMITS WHEN IT COMES TO SURVEILLANCE. ERODING COMMUNITY TRUST AND STONE WALLING FOIA DATA REQUESTS. THIS ISN'T JUST RISKY IT'S A STEP BACKWARDS FOR A CITY THAT PRIDES ITSELF ON CIVIL LIBERTIES. I SUPPORT THE USE OF TECHNOLOGY WHEN FOR A PUBLIC SAFETY NEED. ONE THREAT IS DANGEROUS DRIVING. THESE HARMS ARE NOT THEORETICAL; THEY ARE REAL PREVENTABLE TRAGEDIES THAT AFFECT FAMILIES AND MOTORISTS ALIKE. WE ARE GOING TO INVEST IN HALF A MILLION IT SHOULD BE ON MEASURES THAT SAVE LIVES, INSTEAD OF SPEED SAFETY CAMERAS.

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>> MAYOR ISHII: SORRY, YOUR TIME IS UP. THANK YOU. [APPLAUSE]

>> HELLO. I WOULD JUST LIKE TO PREFACE THIS WITH A GENERAL STATEMENT I DON'T BELIEVE ANYBODY IN OPPOSITION TO THIS BILL IS IN OPPOSITION TO PUBLIC SAFETY. I THINK PUBLIC SAFETY ESPECIALLY IN AN URBAN ENVIRONMENT LIKE BERKELEY SHOULD BE A CARED FOR ISSUE. HOWEVER, GIVEN THE GROWING AUTHORITARIANISM IN THE WHITE HOUSE I DON'T BELIEVE SURVEILLANCE IS A GOOD IDEA, ESPECIALLY WITH A COMPANY THAT HAS IN DAYS AND MONTHS UNDER DURESS IT WILL SURRENDER DATA TO THE FEDERAL GOVERNMENT. I THINK IF IT'S DECIDED SURVEILLANCE IS THE WAY FORWARD FOR SAFETY IN THE CITY IT SHOULD BE THROUGH A MORE REPUTABLE AND TRUSTED PARTNER THAN FLOCK, WHICH IS THE CURRENT CONTRACTOR. I ALSO BELIEVE THAT IF YOU LOOK AT THE PAST WITH TRUMP'S ACTIONS SENDING IN THE MILITARY, TAKING OVER INDEPENDENT AGENCIES, IT'S CLEAR HIS AUTHORITARIANISM MAY GROW AND AS A RESULT WE SHOULD --

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING, MAYOR, AND MEMBERS OF THE CITY COUNCIL. FIRST OF ALL I WANT TO THANK THE CITY MANAGER FOR WITHDRAWING THE ITEM AND PUTTING IN PLACE PROCEDURES TO GATHER MORE INPUT BEFORE THIS IS CONSIDERED. BERKELEY RENT BOARD IS STRONGLY IN SUPPORT OF SANCTUARY POLICIES AND THANKFUL TO EFFORTS THE COUNCIL HAS TAKEN SO FAR. I THINK THIS CONTRACT WOULD BE A STEP IN THE WRONG DIRECTION. I THINK OFTEN FOLKS WILL SAY ABOUT SURVEILLANCE IF

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YOU HAVE NOTHING TO HIDE, IF YOU AREN'T BREAKING THE LAW WHAT DO YOU HAVE TO WORRY ABOUT. I DON'T THINK BEING AN IMMIGRANT IS AGAINST THE LAW OR SHOULD BE. I DON'T THINK BEING BROWN OR SPEAKING SPANISH IS AGAINST THE LAW OR BEING TRANS IS AGAINST THE LAW OR PROVIDING HEALTHCARE TO TRANS YOUTH IS, OR PROVIDING OR GETTING AN ABORTION SHOULD BE A CRIME. I DON'T THINK THE FEDERAL AGREEMENT AGREES WITH ME ON THOSE ISSUES. I DON'T THINK THE SUPREME COURT DOES AFTER WHAT WE SAW YESTERDAY. ARE YOU CONFIDENT YOU CAN PROTECT THE PEOPLE OF BERKELEY WHEN, NOT IF, BUT WHEN THE DATA WE GATHER IS ASKED FOR BY TRUMP. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> HI, COUNCILMEMBERS. MY NAME IS ELLA POLLOCK; I'M A FOUR YEAR BERKELEY RESIDENT AND PUBLIC SCHOOL TEACHER IN OAKLAND. I THINK MANY OF THE OTHER SPEAKERS HAVE MADE A GREAT CASE AS TO WHY EVEN WITH SOMETHING LIKE A SANCTUARY CITY ORDINANCE FLOCK COLLECTING THE DATA IT DOES, MAKES IT LIABLE TO BE SHARED WITH IMMIGRATION ENFORCEMENT. I JUST WANT TO OFFER MY PERSPECTIVE AND HOW I HAVE SEEN THAT AFFECT THE SCHOOLS AND THE KIDS I TEACH AT. A MORBID SENSE OF HUMOR ABOUT I.C.E. BECAUSE I THINK THAT'S HOW THEY DEAL WITH IT. I HAVE SEEN KIDS AFRAID TO COME TO SCHOOL AND IN FACT BE MISSING SCHOOL BECAUSE THEY ARE AFRAID FOR THEMSELVES OR THEIR FAMILIES. AND THAT BREAKS MY HEART. AND I DON'T WANT TO SEE BERKELEY BE COMPLICIT IN THAT. I SAY NO ON FLOCK. THANK YOU.

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>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING, CITY COUNCIL MEMBERS I SPEAK FOR MINE AND OTHERS HERE CONCERN OVER THE CONTRACT ON THE FLOOR. IT'S MORE IMPORTANT THAN EVER YOU AS ELECTED REPRESENTATIVES UNDERSTAND THAT PEOPLE ARE SCARED RIGHT NOW. SCARED OF WHAT THEIR GOVERNMENT IS TRULY CAPABLE OF DOING TOWARDS THEM. AND IT'S FOR THIS REASON YOU SHOULD NOT CONCEDE A SINGLE INCH OF GROUND. A VIPER WILL NOT STOP WITH THE UNDOCUMENTED. THEY WILL ALWAYS KEEP COMING. THEY WILL ALWAYS KEEP FINDING NEW THINGS TO ATTACK HERE. AND BY THE TIME THEY STOP, WHEN YOU HAVE GIVEN UP EVERYTHING ALL THAT WILL REMAIN WILL BE PRACTICALLY NOTHING. EVERYTHING THAT HAS TAKEN SO LONG TO BUILD HERE WILL BE EASILY DESTROYED FROM YOUR CONCESSION TOWARDS THIS CONTRACT. A BETRAYAL NOT ONLY TO PEOPLE HERE BUT FUTURE GENERATIONS TO COME. INSTEAD REMAIN A BASTIAN OF RESISTANCE BECAUSE EVERY DAY YOU DON'T AGREE WILL BE A FUTURE FOR GENERATIONS TO COME, THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING, MAYOR, AND CITY COUNCIL MEMBERS. BRIAN HILFER ON BEHALF OF -- YOU CAN BE A SANCTUARY CITY OR YOU CAN BE A FLOCK CUSTOMER. YOU CANNOT BE BOTH. AS AN ADVOCATE, MY JOB IS TO OPPOSE MASS SURVEILLANCE, I KNOW THAT'S A LOT EASIER, I ACKNOWLEDGE THAT. AS AN INDIVIDUAL, YOUR JOB IS OBVIOUSLY MUCH HARDER. I EMPATHIZE WITH YOU, YOU HAVE CONSTITUENTS, I'M NOT

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RESPONSIBLE FOR SOLVING VIOLENT CRIME. THAT'S UNFORTUNATELY MY SEGUE TO THE FOLLOWING; DESPITE THE TABLING YOU ARE STILL GOING TO GET AN UNCOMFORTABLE LAWYER FROM US. THERE'S TOO MANY LEGAL OBSTACLES HERE FOR YOU TO CURE AND AWARD THIS CONTRACT. MY ASK TONIGHT IS YOU EITHER QUIETLY KILL THIS IN THE INTERIM OR SPEND TIME FINDING ANOTHER VENDOR. SAVE YOURSELVES FROM A FUTURE HEADACHE AND LOSS OF TAXPAYER RESOURCES. FLOCK HAS REVEALED TO YOU WHO THEY ARE, BELIEVE THEM. THANK YOU FOR LISTENING.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> I WOULD LIKE TO GIVE MY MINUTE TO EMMA.

>> HI, GOOD EVENING. I JUST WANTED TO THANK YOU FOR ALLOWING US TO SPEAK ON THIS TOPIC, ASIDE FROM IT BEING DELAYED. I'M A CURRENT U.C. BERKELEY STUDENT. I GREW UP IN A TOWN IN SOUTHERN CALIFORNIA WHERE I WAS SURROUNDED BY IMMIGRANTS IN A VERY HISPANIC NEIGHBORHOOD. I COME FROM A FAMILY OF IMMIGRANTS SO COMING TO BERKELEY I LOOKED FOR AWE PIECE OF HOME IN MY NEIGHBORS, CLASSMATES AND COMMUNITY. AND I FOUND A CITY THAT WAS BUILT UPON THE HARD WORK OF IMMIGRANTS AND IS STILL BEING SUPPORTED BY THE WORK OF IMMIGRANTS. WHILE FLOCK IS MEANT TO PROTECT AND SERVE OUR CITY I THINK WE NEED TO THINK ABOUT THE SAME PEOPLE THAT HARMS AND WHILE IT IS MEANT TO PROTECT AND PROVIDE SAFETY TO BERKELEY, IT IS ALSO TAKING AWAY FROM THE SAFETY OF IMMIGRANTS AND THE SAFETY OF IMMIGRANTS IN BERKELEY.

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AND WE NEED TO THINK ABOUT OUR FELLOW NEIGHBORS, BUSINESS OWNERS, PROFESSORS AND EVEN CLASSMATES WHO ARE ALL VULNERABLE AND TARGETED BY FLOCK AND THE FEDERAL GOVERNMENT. BERKELEY CAN'T STATE ITS STATUS AS A SANCTUARY CITY WHILE BE A CUSTOMER OF FLOCK. IMMIGRANTS AS WE KNOW ARE VERY VULNERABLE UNDER OUR ADMINISTRATION. FLOCK HAS LIED ABOUT THEIR ACTION AND SUBJECTED COMMUNITIES TO PERSECUTION FROM FEDERAL AGENCIES. SO VOTING TO APPROVE THIS CONTRACT PUTS BERKELEY RESIDENTS IN DANGER AND RENDERS OUR SANCTUARY CITY AS SYMBOLIC STATUS. I THINK AT A TIME WHEN IT'S MOST IMPORTANT FOR US TO STAND UP FOR IMMIGRANTS AND PROTECT THEIR RIGHTS WE NOT ONLY NEED TO DELAY BUT VOTE NO TO THIS CONTRACT WITH FLOCK SAFETY. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING, I MAY NEED ONE MINUTE FROM HER. THANK YOU. SO I WANT TO FOCUS ON ONE ASPECT THAT HAS NOT BEEN DISCUSSED THAT MUCH, THE PREVIOUS SPEAKER A BIT. WHICH IS THE DISHONESTY WHICH FLOCK APPROACHES THIS COUNCIL. IT WAS BAD ENOUGH WHEN IT WAS JUST A MATTER OF FINDING A BACK DOOR THROUGH SOME DALLAS POLICE DEPARTMENT OR WHATEVER THAT GOES INTO FLOCK, FLOCK DOESN'T EVEN KNOW ABOUT IT, OR WE DON'T KNOW ABOUT IT. AND THEY COULD SAY, WELL, WE DON'T HAVE A RELATIONSHIP WITH FLOCK AS, IT TURNS OUT NONE OF THAT WAS TRUE. THEY HAVE CREATED PILOT PROGRAMS THAT FACILITATED 80,000 HITS ON IMMIGRANTS IN FLOCK'S DATABASE. SO

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THEY LIED TO YOU. AND NOW THEY ARE SAYING, WELL, WE TERMINATED THAT PILOT PROJEKTS. OH THAT'S NICE. NOW WE ARE SUPPOSED TO TRUST YOU? IT'S LIKE YOU ARE IN A RELATIONSHIP. IN THIS CASE A BUSINESS RELATIONSHIP. AND YOU HAVE A LIAR AND THE OTHER SIDE OF THE CONTRACT. THERE'S NO WAY THAT CONTRACT CAN GO FORWARD. WE ARE NOT EVEN TALKING ANY MORE ABOUT FLOCK. FLOCK IS OFF THE TABLE. I THINK THE QUESTION FOR THIS BODY IS WHAT DO WE WANT TO DO ABOUT SURVEILLANCE. THAT'S REALLY WHERE WE ARE AT. BULK DATA COLLECTION, MASS DATA COLLECTION, BULK SURVEILLANCE, THESE ARE THE THINGS EDWARD SNOWDEN TAUGHT US ABOUT AND IT'S MASSIVE IN THIS COUNTRY. WE HAVE TO LOOK AT WHAT HAPPENED YESTERDAY IN THE I.C.E., WE DON'T HAVE TIME RIGHT NOW. BUT IN THE I.C.E. LAWSUIT ABOUT LOS ANGELES THAT CAME TO THE SUPREME COURT AND THEY SAID, ACTUALLY RACIAL PROFILING IS FINE. THAT'S WHERE WE ARE GOING.

>> MAYOR ISHII: THANKS, GEORGE. SORRY, YOUR TIME IS UP.

>> THIS BODY WILL HAVE TO DEAL WITH THAT.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> WE ARE IN AN ERA WHERE THE U.ER S. SUPREME COURT JUST UPHELD WHAT IS TANTAMOUNT TO RACIAL PROFILING. DEMANDS REEVALUATION OF EARLIER POSITION. AS A FORMER ATTORNEY TO THE ILLINOIS DEMOCRATIC, ABUSES OF PERSONS WITH MENTAL HEALTH ISSUES I WORK OUT OF AN OFFICE OF ILLINOIS. IT'S A PROGRESSIVE CITY FOCUSING ON PUBLIC SAFETY AND CIVIL LIBERTIES. THEY IMPLEMENTED THE FLOCK

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CAMERAS BECAUSE THEY BELIEVED THEM. AND NOW THEY HAVE TERMINATED THE CONTRACT BECAUSE THEY HAVE LEARNED THAT FLOCK MISREPRESENTED THAT THEY WOULD NOT BE SHARING INFORMATION WITH FEDERAL IMMIGRATION AUTHORITIES. SO THEY REEVALUATED THEIR POSITION. IT'S TIME FOR BERKELEY TO REALLY REEVALUATE THE POSITION. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> I WOULD CERTAINLY HOPE THAT FLOCK IS OFF THE TABLE AT THIS POINT. I DON'T KNOW HOW MANY TIMES A COMPANY HAS TO LIE TO YOU BEFORE YOU BELIEVE THEY ARE A LIAR. BUT WHAT THE CITY MANAGER MENTIONED EARLIER HE WILL BE LOOKING FOR OTHER BEST PRACTICES OR LOOKING FOR OTHER CITIES OR STATES THAT HAVE A PROGRAM THAT WORKS, ET CETERA, YOU KNOW, I DON'T THINK WE SHOULD TAKE LIGHTLY THE FACT THAT WE ARE ON A TARGETED LIST. WE ARE A SANCTUARY CITY THAT IS IN THE CROSS HAIRS OF THE TRUMP ADMINISTRATION AND THEIR FASCIST JACK BOOTED THUGS, I GUESS THAT'S WHAT THEY ARE THESE DAYS. THE BURDEN OF PROOF, COUNCILMEMBERS, IS ON YOU. YOU HAVE TO PROVE TO US THAT WE ARE SAFE. THAT THE BENEFITS OF SOME KIND OF SURVEILLANCE SYSTEM OUTWEIGH THE RISKS. AND RIGHT NOW WE ARE VERY SKEPTICAL OF THAT. AND THE PROBLEM IS THAT YOU CAN'T DO THAT. BECAUSE YOU CANNOT CALCULATE -- CAN I GET ANOTHER MINUTE PLEASE?

>> MAYOR ISHII: A MINUTE FROM OVER HERE.

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>> YOU CAN'T CALCULATE WHAT KIND OF SECRET AND COVERT DATA SHARING IS HAPPENING. YOU DON'T KNOW IF IT'S A COP AT A BAR WHO IS GIVING HIS PASSWORD TO SOMEBODY FROM I.C.E. SO THEY CAN ACCESS THE SYSTEM. UNDERSTANDING THIS NETWORK OF CAMERAS, YOU KNOW, THERE'S ALL KINDS OF POLICE DEPARTMENTS ALL UP AND DOWN THE STATE, INCLUDING THE UNIVERSITY OF CALIFORNIA. YOU ARE NOT ACCOUNTABLE FOR WHAT HAPPENS THERE. IF THEY DECIDE TO LET I.C.E. ACCESS THAT SYSTEM. YOU CANNOT KEEP US SAFE IN THIS SYSTEM. IT'S NOT THE WAY TO GO. I WANT TO REDIRECT YOU TO, YES, FIVE YEARS AGO. GEORGE FLOYD. AND THE MOMENTUM AND THE MOVEMENT THAT SAY OUR SAFETY LAY IN A DIFFERENT DIRECTION. NOT BY GIVING THE POLICE UNLIMITED POWERS BUT BY UNITING OUR COMMUNITY AROUND IDEAS OF SAFETY AND CARE AND CONTACT. NOBODY WANTS SHOOTINGS AT THE SCHOOLS.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT. [APPLAUSE]

>> HI, I REALLY APPRECIATE THE COUNCIL HAS TAKEN THE INITIATIVE TO POSTPONE THIS VOTE AND I THINK THAT'S AN INDICATION THAT FOLKS HAVE GOTTEN THROUGH TO YOU GUYS. WHEN WE WERE HERE TWO WEEKS AGO THERE WERE THREE PEOPLE IN PUBLIC COMMENT LONG AND ALMOST UNANIMOUS SUPPORT IN THE COUNCIL FOR THE BILL. THIS MORE A MESSAGE FOR THE FOLKS HERE WE HAVE TO TURN UP THE HEAT SEPTEMBER 9TH AND TURN UP THE HEAT ALL THE WAY TO OCTOBER 28TH AND SHOW EVERY SINGLE PERSON ON THIS CITY COUNCIL THAT SANCTUARY

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IS THE OPPOSITE OF SURVEILLANCE. AND THAT THE VOTERS ARE GOING TO REMEMBER THAT WHEN THEIR SEATS ARE UP. SO WE GOT TO TURN ON THE POLITICAL PRESSURE RIGHT NOW. LET'S STAY ACTIVE. [APPLAUSE]

>> I'M STILL SO LITTLE. THANK YOU FOR THE OPEN WINDOWS AND THE FANS. I WANT TO FOLLOW-UP ON ANDREA'S POINT. WHAT PROVIDES SAFETY? I'M SO COMMITTED TO SAFETY. SO THOROUGHLY COMMITTED TO SAFETY. AND DIFFERENT THINGS MAKE, I HAVE AN EXTRA MINUTE, BY THE WAY, THIS LOVELY WOMAN IN THE BACK THERE, SORRY, THANK YOU. IF WE PERCEIVE A THREAT OR AN ENEMY, IT COULD BE ANYBODY. ANYBODY OR ANYTHING. AND THAT HAS SOMEHOW JUSTIFIED THE MASS SLAUGHTER OF MILLIONS OF PEOPLE SO THAT, I'M GOING TO GET SO YOU DON'T GET ME. SO COMING BACK TO ANDREA, IT'S LIKE COMMUNITY UNITED. AND AGAIN, CAMERAS, THERE'S AN INCIDENT AT A CLINIC WHERE A WOMAN WAS ASSAULTED, WHERE WERE THE CAMERAS? A CAMERA TAKES A PICTURE AFTER THE FACT. IT DIDN'T PREVENT THE HARM. IT DIDN'T EVEN ACTUALLY PREVENT THE HARM. SO I'M INTO PREVENTING HARM. IT'S MOSTLY OUR DISPOSITION. ARE WE GOING TO JUST, INSTEAD OF WORRYING ABOUT ALL THE THINGS THAT ARE ANTI-US AND AGAINST US AND DOOM AND GLOOM, LET'S UNITE AND CREATE A COMMUNITY THAT STANDS TOGETHER, CARES ABOUT EACH OTHER, WORKS TOGETHER. I HEARD THAT THERE'S A POLICE DEPARTMENT SOMEWHERE IN THE STATE THAT IS LITERALLY WRITING UP THEIR REPORTS NHI. NO HUMAN INVOLVED. THEY

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ARE WILLING TO NOT HAVE ANY DATA ON THE PEOPLE THEY JUST DISAPPEAR. I WANT TO WATCH THEM MORE. I WOULD LIKE THEM TO JUST LET US BE AND COME TOGETHER LIKE WE CAN, IN UNITY. THIS IS BERKELEY. AND WE ARE NOT GOING TO DO IT BY FIGHTING EACH OTHER. WE GOT TO WORK TOGETHER. THANK YOU SO MUCH. [APPLAUSE]

>> MAYOR ISHII: THANKS, MARIA. OKAY. IS THERE ANY PUBLIC COMMENT ONLINE? YES, THIS IS PUBLIC COMMENT FOR PEOPLE ON ZOOM FOR ITEM #24. THERE'S CURRENTLY 11 HANDS RAISED ON ZOOM. FIRST SPEAKER IS MARISSA.

>> HELLO, THANK YOU. I APPLAUD ALL PREVIOUS COMMENTS AND DON'T WANT TO REPEAT WHAT HAS ALREADY BEEN SAID. I JUST WANT TO SAY I'M VERY PROUD OF EVERYTHING THIS COUNCIL HAS DONE SO FAR REGARDING PROTECTING THE MOST VULNERABLE MEMBERS OF OUR COMMUNITY. BUT EVEN CONTEMPLATING A CONTRACT WITH FLOCK, GIVEN WHAT WE KNOW, THE REASONS THAT HAVE BEEN GIVEN HERE TODAY, SEEMS TO ME TO BE SIMPLY INCOMPATIBLE WITH SANCTUARY VALUES. I.C.E. KEEPS ON BREAKING THE LAW. I HOPE YOU WON'T ASSOCIATE OUR CITY WITH THE CRIMINAL INTENT OF I.C.E. AND FLOCK ENDEAVORS. IN A TIME WITH AUTHORITARIAN RULE IS THREATENING OUR DEMOCRACY, I HOPE YOU WILL STAND FOR THE PEOPLE AND NOT AGAINST THE PEOPLE. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THANK YOU, MARISSA.

>> CITY CLERK: NEXT IS LAURA CORNWALL.

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>> HI, MY NAME IS LAURA, DISTRICT 6. I AM APPALLED OUR CITY COUNCIL WOULD CONSIDER THIS FLOCK CONTRACT WHILE PAYING LIP SERVICE TO BEING A SANCTUARY CITY AS STATED BY OTHERS IN THIS AMAZING SHOWING TONIGHT, I.C.E. USED TO TARGET AND KIDNAP COMMUNITY MEMBERS AND IT WOULD BE UNCONSCIONABLE FOR CITY OF BERKELEY TO USE TAXPAYER MONEY TO EXPAND THAT. THERE'S EVIDENCE THE SHERIFF'S OFFICE IN TEXAS USED ALPR DATA TO TRACK DOWN A WOMAN. THERE'S EVIDENCE FLOCK IS BEING USED BY I.C.E. THIS HAS NO PLACE IN OUR CITY. THANK YOU.

>> MAYOR ISHII: THANKS FOR YOUR COMMENT. AND JUST FOR FOLKS THAT ARE ONLINE WHO STILL HAVE COMMENTS WE ARE NOT TALKING ABOUT ALPR'S TONIGHT. ACTUALLY WE AREN'T TALKING ABOUT THIS ISSUE TONIGHT, NOT DISCUSSING IT, BUT TALKING ABOUT FIXED CAMERAS.

>> CITY CLERK: NEXT IS DANIEL BROWNSON.

>> HI. SO, OBVIOUSLY, I.C.E. IS GOING AFTER IMMIGRANT COMMUNITIES RIGHT NOW. WE ALL KNOW THEY ARE FASCISTS, THAT THIS REGIME IS FASCISTS. DO FASCISTS EVER STOP AT THEIR FIRST TARGET? NO, THEY NEVER DO THAT. WHAT HAPPENS WHEN THEY SICK THEIR I.C.E. GAONS ON THE CITY OF BERKELEY AND THE PEOPLE COME OUT TO TRY TO OPPOSE THEM AND PROTEST? THEY ARE GOING TO USE THOSE CAMERAS TO IDENTIFY PROTESTORS. AND THEY ARE ALREADY TALKING ABOUT DEPORTING NATURALIZED CITIZENS. AND THEY ARE NOT GOING TO STOP THERE. THE VERY NAME FLOCK IS AN INSULT. ARE WE SHEEP? TO BE

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HERDED TO THE SLAUGHTERHOUSE? THE ONLY WAY TO KEEP THE FEDERAL GOVERNMENT FROM COLLECTING OUR DATA ON OUR MOST VULNERABLE MEMBERS OF OUR COMMUNITY IS NOT TO RECORD IT IN THE FIRST PLACE.

>> MAYOR ISHII: SORRY, YOUR TIME IS UP. THANK YOU FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS KATIE WINDHAM.

>> HI, MY NAME IS KATIE. I AM PRETTY NEW TO BERKELEY. I JUST AM STARTING MY PUBLIC POLICY DEGREE. I CAME HERE FROM WASHINGTON D.C. AND IN ADDITION TO JUST PLUS-ONING EVERYTHING THAT EVERYBODY ELSE SAID SO FAR, I WANT TO USE MY OTHER HOME AS AN EXAMPLE OF THE FACT THAT CITIES DON'T ALWAYS HAVE FULL CONTROL OVER WHAT HAPPENS TO THE DATA THAT THEY CREATE IN THESE KINDS OF CIRCUMSTANCES. AS OTHERS HAVE SAID, KNOW, WE ARE ON TARGETED LISTS FOR THIS ADMINISTRATION. AND THE ONLY WAY TO KEEP DATA PRIVATE IS NOT TO COLLECT IT IN THE FIRST PLACE. I'M CONCERNED ABOUT WHAT HAPPENS IF THE NATIONAL GUARD GETS CALLED IN HERE. ALL OF THESE THINGS WHICH I'M SURE YOU HAVE THOUGHT ABOUT FAR MORE THAN I HAVE. BUT --

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT. MARK, GIVE ME A SENSE HOW MANY FOLKS ARE LEFT?

>> CITY CLERK: THERE'S SEVEN HANDS RAISED.

>> MAYOR ISHII: OKAY, THANK YOU.

>> CITY CLERK: NEXT IS JOHN CANER.

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>> HELLO, MAYOR, AND COUNCIL. JOHN CANER DOWNTOWN BERKELEY ASSOCIATION. WE NEED SECURITY CAMERAS TO DETER AND PROSECUTE TIME AND PROTECT OUR MERCHANT AND PROPERTY OWNERS. OUR STRATEGIC PLANNING PROCESS, SAFETY BY FAR WAS THE FOREMOST CONCERN IN OUR STAKEHOLDER ROUND TABLES AND COMMUNITY SURVEY. ALL YOU NEED TO DO IS SEE THE SCANNERS TO SEE CAMERAS SOLVING CRIME IN BERKELEY AND READ THE COMMENTS ON "BERKELEYSIDE" AND BERKELEY SCANNER TO SEE THE COMMUNITY OVERWHELMINGLY SUPPORTING THIS PROGRAM. WITH LIMITED B.P.D. STAFFING WE NEED TO PROVIDE THEM THE TOOLS TO DO THEIR JOB. SAN FRANCISCO HAS 1500 SURVEILLANCE, OAKLAND SEVERAL HUNDRED AND GROWING. ARE WE THEN WORRIED ABOUT ANOTHER 16 CAMERAS IN BERKELEY? DO WE REALLY WANT TO BE KNOWN AS A COMMUNITY THAT DOESN'T HAVE SECURITY CAMERAS. PLEASE FEEL FORWARD WITH MODEST EXPANSION, HOWEVER, ALONG WITH PROPER CONTROLS TO MAKE SURE INFORMATION STAYS WITH B.P.D. --

>> MAYOR ISHII: SORRY, YOUR TIME IS UP. THANKS FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS PHONE NUMBER ENDING IN 211. YOU SHOULD BE ABLE TO UNMUTE.

>> HI. CAMERAS HAVE BEEN KEEPING THE CITY SAFE FOR MANY YEARS, BUT THEY AREN'T JUST AFTER IMMIGRANTS, THEY ARE AFTER EVERYBODY. DISCUSS DISCUSS -- [INDISCERNIBLE] THE FACT IS, THIS IS A FASCIST REGIME. TRUMP IS AWFUL, JUST AWFUL. FACING THE END OF A CIVILIZATION, NOT JUST THE END OF AMERICA. WHAT DO WE SAY, WHAT

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DO WE SAY, EVERYBODY? BY THE WAY, I WOULD LIKE TO SAY DURING TRUMP ADMINISTRATION, 1.2 MILLION AMERICANS DIED FROM COVID BECAUSE OF HIS DENIAL. IMMIGRANTS BUILT THIS COUNTRY. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS JERRY.

>> HELLO, THIS IS JESSE SHEAHAN, HOW IS EVERYBODY THIS EVENING? I WOULD LIKE TO POINT OUT THAT AS WE TALK ABOUT FLOCK IN THE CITY'S REALM, WHAT IS HAPPENING, ESPECIALLY IN THE BUSINESS DISTRICTS, THE BUILDING OWNERS ARE ALLOWING THE FLOCK SAFETY CAMERAS TO BE INSTALLED ON THE ROOFS OF THEIR BUSINESSES. YOU KNOW, I WOULD LIKE TO HAVE THAT ADDRESSED. KEVIN GORDON IS ALLOWING LARGE FLOCK SAFETY CAMERAS TO BE PLACED ON HIS BUSINESSES ON TELEGRAPH AVENUE AFTER OUR LOCAL COUNCILMEMBER OBJECTED TO THEM, THEY ARE BEING PLACED, ONE ON TOP OF WEB CORE'S CORPORATE OFFICES, ONE OF THE LARGER ONES. HERE WE HAVE PRIVATE COMPANIES WORKING WITH FLOCK COLLECTING OUR DATA AND TURNING IT OVER. IN MAINLY THE BUSINESS DISTRICTS. I WOULD LIKE KEVIN GORDON AND ALEX KNOX TO ADDRESS THOSE CAMERAS BEING ALLOWED AROUND THE UNIVERSITY. AND THE UNIVERSITY ITSELF.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS CHERYL DAVILA, FORMER COUNCILMEMBER.

>> MY HUSBAND ROBERT IS ON THE LINE GIVING ME A MINUTE.

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>> CITY CLERK: OKAY.

>> PLEASE START MY TIME AGAIN. SO YEAH, FLOCK LIED. BUT YOU KNOW, THEY WORK WITH I.C.E. YOU SHOULD NOT BE CONTRACTING WITH PEOPLE THAT YOU KNOW ARE LIARS. ALTHOUGH, I DON'T KNOW ALL YOU ALL TELL THE TRUTH, YOU KNOW I'M A TRUTH TELLER. LIES AREN'T GOOD AND YOU SHOULDN'T BE DEALING WITH PEOPLE YOU KNOW, YOU KNOW LIED TO YOU, YOU KNOW THAT THEY CURRENTLY HAVE PARTNERSHIPS WITH I.C.E., AND YOU KNOW THEY HAVE ALREADY, YOU KNOW, TURNED OVER INFORMATION TO I.C.E. IN OTHER JURISDICTIONS. AND "IT'S NOT REAL" IS NOTORIOUS FOR SURVEILLANCE. AND THEY ARE HAVING A HOLOCAUST RIGHT NOW. AND YOU KNOW THAT THIS IS ONE OF THE THINGS THAT THEY DO IS SURVEIL. AND YOU KNOW THAT YOU CANNOT CONTROL ANY DATA THAT GOES THROUGH FLOCK. AND THEY'RE FASCISTS. 45 IS A FASCIST AUTHORITARIAN, TRYING TO BE A KING IN THE UNITED STATES OF -- I WON'T EVEN SAY THAT, IN TURTLE ISLAND. SO WHY WOULD YOU SUPPORT FASCISM IN THIS WAY THAT SUPPORTS SURVEILLANCE, USED BY I.C.E., FOLLOWS WOMEN AROUND THAT ARE SEEKING ABORTIONS AND ARREST THEM. I MEAN, YOU KNOW, ARE SUPPOSED TO BE A SANCTUARY CITY BUT SANCTUARY FOR WHO? HUMANITY ISN'T PART OF YOUR EQUATION.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS DENISE CARRILLO. DENISE, IT SHOWS YOU ARE UNMUTED. NOPE. YOU ARE MUTED AGAIN. WE CAN'T HEAR YOU, DENISE.

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IT SHOWS YOU ARE UNMUTED, BUT IF YOU ARE TALKING, WE CAN'T HEAR YOU.

>> CAN YOU HEAR ME NOW?

>> CITY CLERK: YES.

>> OKAY, THANK YOU. I JUST WANT TO SAY THANK YOU TO EVERYONE WHO HAS SPOKEN IN DEFENSE OF SANCTUARY CITY. I'M SURE YOU ARE AWARE, BERKELEY IS LARGELY AWARE OF DOCUMENTED AND MIXED STATUS INDIVIDUALS AND I MYSELF AM PROUD THAT I AM MIXED STATUS, I WOULDN'T BE HERE WITHOUT, I DON'T BELIEVE BERKELEY WOULD BE THE CITY IT IS WITHOUT IMMIGRANT KNOWLEDGE AND CONTRIBUTIONS. OUR SAFETY SHOULDN'T BE COMPROMISED BUT UNFORTUNATELY THIS HAS ALWAYS BEEN A REALITY. BERKELEY CANNOT CONTINUE TO CALL ITSELF A SANCTUARY CITY IF IT CONTRACTS WITH FLOCK. IF IT WANTS TO PROTECT COMMUNITIES, BE TRANSPARENT, HOLD ITSELF ACCOUNTABLE AND LISTEN TO OUR VOICES. I URGE YOU TO MAINTAIN YOUR PROMISE OF BERKELEY BEING A SANCTUARY CITY BY OPPOSING THE CONTRACT WITH FLOCK SAFETY AND VOTING NO IN OCTOBER AND DO EVERYTHING IN YOUR POWER TO KEEP SURVEILLANCE SYSTEMS OUT OF OUR COMMUNITY. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: LAST RAISED HAND IS MARILYN KUNG. WAIT, MARILYN LOWERED HER HAND. THERE IT IS.

>> HI, MARILYN KUNG FROM DISTRICT 3. I'M A CHILD OF IMMIGRANTS

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AND I IMPLORE THE COUNCIL TO REJECT THE CONTRACT WITH FLOCK. THIS WILL JUST PROVIDE MORE AMMO TO THE AUTHORITARIAN REGIME IN THE WHITE HOUSE. THANK YOU.

>> CITY CLERK: OKAY, THAT'S ALL.

>> MAYOR ISHII: THANK YOU. THANK YOU ALL SO MUCH FOR YOUR COMMENTS. AS MENTIONED WE WILL ADDRESS THIS IN OCTOBER. IN THE MEANTIME WE WILL HAVE AN INFORMATION SESSION. SO I WANT TO MAKE SURE IF YOU ARE ALL ARE INTERESTED IN COMING TO THAT, I HAD MY STAFF PUT A PIECE OF PAPER ON THE BACK, YOU CAN WRITE DOWN YOUR INFORMATION, FIRST NAME, LAST NAME, EMAIL, WE CAN SEND YOU INFORMATION ABOUT IT WHEN IT COMES OUT. I KNOW THERE ARE SPECIFIC GROUPS SO WE WILL MAKE SURE TO INVITE YOU AS WELL. THANK YOU, ALL. I THINK KIT IS HOLDING IT UP IN THE AIR. A PIECE OF PAPER IN THE BACK. THANK YOU. WE ARE GOING TO MOVE ONTO ITEM 25, THE PROPOSED SANCTUARY CITY ORDINANCE. I'M GOING TO GIVE A LITTLE BIT A BACKGROUND HERE TO INTRODUCE. ACTUALLY, IF YOU ALL WANT TO START GETTING SET UP? ARE YOU GOING TO STAY HERE? OKAY. OKAY, GREAT. OKAY, SO, WE TALKED ABOUT IT EARLIER. SOME FOLKS HAVE MENTIONED IT. THERE'S GOING TO BE PRESENTATIONS. JUST SO YOU KNOW, IF YOU WANT TO STAND UP, YOU ARE GOING TO BE STANDING FOR A LITTLE BIT. YOU MAY WANT TO WAIT. UP TO YOU, BUT JUST SO YOU KNOW, YOU MIGHT BE STANDING FOR A LITTLE WHILE. OKAY, I'M PROUD TO BE A MAYOR OF THE FIRST EVER SANCTUARY CITY. WE STARTED

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AS A SANCTUARY IN THE 70'S DURING THE U.S./VIETNAM WAR AND THEN IN THE 80'S. IN JANUARY WE REAFFIRMED OUR SANCTUARY STATUS WITH A RESOLUTION. WHICH RECOMMENDED I, THE MAYOR, CREATE A TASK FORCE, WHICH I DID. WE HAVE BEEN MEETING MONTHLY AND I'M REALLY PROUD OF THE PARTNERSHIPS WE HAVE FORMED THERE. THE OTHER PIECE WAS TO PARTICIPATE IN THE PROCESS OF CODIFYING BERKELEY'S SANCTUARY PROTECTIONS THROUGH A CITY ORDINANCE. APRIL 15TH, THE CITY COUNCIL PASSED A REFERRAL TO THE CITY ATTORNEY TO RETURN TO COUNCIL WITH A RECOMMENDATION REGARDING THE CODIFICATION OF POLICIES THROUGH A CITY ORDINANCE. SINCE APRIL, THE CITY ATTORNEY'S OFFICE HAS RESEARCHED OTHER SANCTUARY CITY ORDINANCES, MET WITH THE TASK FORCE, LEGAL COMMITTEE AND TALKED WITH INTERNAL CITY STAKEHOLDERS. I WANT TO THANK THE EAST BAY COMMUNITY LAW CENTER FOR REPRESENTING THE HARD WORK OF THE LEGAL COMMITTEE. TONIGHT THE CITY ATTORNEY IS HERE WITH HER STAFF TO PRESENT THAT RECOMMENDATION OF A SANCTUARY ORDINANCE. THE PURPOSE OF THE ORDINANCE IS TO MAKE SURE WE BRING TOGETHER AND FURTHER CLARIFY THE DEFINITIONS, TERMS AND CONDITIONS FOR OUR STAFF AND COMMUNITY. THE COINCIDENTAL TIMELINESS OF THIS IS NOT LOST ON ME. YESTERDAY THE SUPREME COURT LAID THE PATHWAY TO RACIAL PROFILE BY COLOR OF SKIN AND LANGUAGE THEY SPEAK. YOU CANNOT USE RACE FOR COLLEGE OR SCHOOL ADMISSIONS BUT RACE AND LANGUAGE ARE NOW TOOLS FOR IMMIGRATION HARASSMENT. THIS

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ORDINANCE IS A REFLECTION OF BERKELEY VALUES AND CODIFIES THE PROTECTIONS WE HAVE HONORED AND FOLLOWED BY RESOLUTION FOR DECADES. ALSO TO GIVE YOU A BRIEF HEAD'S UP I WILL BE PROPOSE AN AMENDMENT ON TWO SECTIONS ON TRANSPARENCY AND ENFORCEMENT. SPECIFICALLY REQUIRING AN ANNUAL REPORT OF THE AGGREGATED DATA AND ADOPTING SAN FRANCISCO'S LANGUAGE ON ENFORCEMENT. [APPLAUSE] THANK YOU. I WANT TO THANK THE CITY ATTORNEY AND HER STAFF FOR THE MONTHS OF WORK THEY HAVE PUT INTO CODIFYING OUR SANCTUARY CITY RESOLUTIONS AND NOW I WOULD LIKE TO TURN IT OVER TO OUR CITY ATTORNEY, FARIMAH BROWN.

>> THANK YOU, IT'S MY PLEASURE TO INTRODUCE DEPUTY CITY ATTORNEY KATRINA EILAND WHO IS A HIGHLY RESPECTED ATTORNEY IN MY OFFICE AND HAS BEEN WORKING VERY HARD ON THIS ORDINANCE. AND SHE WILL PRESENT THE SANCTUARY ITEM.

>> SORRY ABOUT THE DELAY, HONORABLE MAYOR AND MEMBERS OF THE CITY COUNCIL, THANK FOR THE OPPORTUNITY TO PRESENT ON THIS IMPORTANT MATTER. MY NAME IS KATRINA EILAND A DEPUTY IN THE CITY ATTORNEY'S OFFICE. I WILL WALK YOU THROUGH THE BACKGROUND AND FEATURES OF THE DRAFT SANCTUARY ORDINANCE ON THE AGENDA TONIGHT. I WILL BEGIN WITH HIGHLIGHTS AROUND THE HISTORY OF BERKELEY SANCTUARY POLICY, MAYOR ISHII ALREADY GAVE YOU A LITTLE BACKGROUND ABOUT. THEN DISCUSS THE SANCTUARY CITY RESOLUTION IN PLACE AND ABOUT THE CITY COUNCIL'S REFERRAL TO CODIFY IN THE

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MUNICIPAL CODE BEFORE WALKING THROUGH THE KEY FEATURES OF THE PROPOSED ORDINANCE. AS MAYOR ISHII MENTIONED THERE'S A LONG HISTORY OF BERKELEY BEING A SANCTUARY CITY. IN FACT, BERKELEY WAS THE FIRST SANCTUARY CITY IN THE NATION IN 1971 FOR VIETNAM CONSCIENTIOUS OBJECTIVES. IN 1986 IT REAFFIRMED IN THE FACE OF REFUGEES FLEEING PERSECUTION IN CENTRAL AMERICA. AND THEN OVER THE YEARS BETWEEN 2007-2025, BERKELEY HAS PASSED A NUMBER OF DIFFERENT RESOLUTIONS REAFFIRMING AND EXPANDING ON THE SANCTUARY POLICY IN LIGHT OF VARIOUS THREATS TO IMMIGRANTS IN OUR COMMUNITY OVER THE YEARS. THAT BRINGS US TO THE CURRENT SANCTUARY RESOLUTION, WHICH WAS PASSED IN JANUARY 2025. AND THERE'S SOME KEY FEATURES TO THAT RESOLUTION. THE PRIMARY ONE BEING IT PROHIBITS CITY DEPARTMENTS AND EMPLOYEES FROM USING CITY RESOURCES TO ASSIST IN FEDERAL IMMIGRATION ENFORCEMENT. THAT'S THE CORE THE RESOLUTION. IT REQUIRES CITY DEPARTMENTS AND EMPLOYEES TO PROVIDE EQUAL ACCESS TO CITIZENS REGARDLESS OF IMMIGRATION STATUS AND REQUIRES CITY DEPARTMENTS AND PERSONNEL NOT TO CONSENT TO SEARCHES BY FEDERAL IMMIGRATION ENFORCEMENTS UNLESS THEY HAVE JUDICIAL WARRANTS BACKED BY PROBABLY CAUSE. IN THAT THERE WAS ACREATION OF A TASK FORCE TO PARTICIPATE IN THE PROCESS OF CODIFYING THE POLICY INTO AN ORDINANCE. THAT LED, AS MAYOR MENTIONED TO THE APRIL REFERRAL TO OUR OFFICE. IN RESPONSE TO COMMUNITY FEEDBACK AND DIRECTION FROM THE MAYOR'S TASK FORCE,

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THE CITY COUNCIL REFERRED TO THE CITY ATTORNEY'S OFFICE A PROPOSAL TO CREATE A NEW SANCTUARY ORDINANCE TO REPLACE THE CITY'S SANCTUARY RESOLUTION. THE CITY ATTORNEY'S OFFICE THEN DEVELOPED A DRAFT ORDINANCE BASED ON POLICY DIRECTION FROM THE TASK FORCE AND VARIOUS CITY STAKEHOLDERS OVER SEVERAL MONTHS. THAT BRINGS US TO THE DRAFT ORDINANCE THAT IS BEFORE THE COUNCIL TONIGHT. IT IS LARGELY SIMILAR IN SUBSTANCE TO THE COUNCIL'S JANUARY 2025 RESOLUTION, IN THAT THE CORE OF IT IS FORBIDDING CITY AGENCIES OR PERSONNEL FROM USING CITY RESOURCES TO ASSIST WITH IMMIGRATION ENFORCEMENT, BY SPECIFICALLY PROHIBITING INQUIRING INTO CITIZENSHIP OR IMMIGRATION STATUS OR CONSENTING TO SEARCH OF NONPUBLIC CITY PROPERTY WITHOUT VALID WARRANTS OR SUBPOENAS AND PRIOR RESTRICTION DO NOT DENY ACCESS TO BENEFITS BASED ON CITIZENSHIP OR IMMIGRATION STATUS. THOSE ARE THE PARTS OF THE ORDINANCE THAT ARE LIKE THE RESOLUTION. BUT THERE ARE ALSO A FEW NEW FEATURES IN RESPONSE TO STAKEHOLDER FEEDBACK. ONE IS PUBLIC REPORTING. THE ORDINANCE WOULD REQUIRE PUBLIC REPORTING OF CONTACTS MADE BY THE CITY TO FEDERAL OFFICIALS OR MADE TO THE CITY BY SUCH OFFICIALS IF THE CITY RESPONDS. IT ALSO PROVIDES A NUMBER OF DEFINITIONS AND MAKES THE ORDINANCE CLEARER IN THAT IT HAS DEFINED TERMS THAT ARE USED UNIFORMLY THROUGHOUT. ONE OF THOSE NEW DEFINITIONS IS OF PROTECTED PERSONAL INFORMATION. THE ORDINANCE CLARIFIES BETWEEN IMMIGRATION STATUS

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INFORMATION AND OTHER TYPES OF PERSONAL INFORMATION AND MAKES CLEAR THE LIMITATIONS FOR SHARING ON EACH. FINALLY, IT MAKES ITS APPLICABILITY CLEAR ITS CITY POLICY ON PARTICIPATION OF IMMIGRATION ENFORCEMENT APPLIES EQUALLY TO IMMIGRATION ENFORCEMENT ACTIONS WHEREVER THEY OCCUR, IN SCHOOLS, AFTER SCHOOL PROGRAMS, HOSPITALS, PLACES OF WORSHIP, ET CETERA. THE ORDINANCE IS IMPORTANT IT BRINGS BERKELEY IN LINE WITH NEIGHBORING CITIES WHICH ALSO HAVE ORDINANCE INSTEAD OF RESOLUTIONS. IT CODIFIES POLICY IN MUNICIPAL CODE, WHICH MAKES SURE CITY AND PERSONNEL ARE ON NOTICE OF APPLICABLE REQUIREMENTS. IT CLARIFIES CITY POLICY BY DEFINING TERMS PREVIOUSLY UNDEFINED IN THE RESOLUTION. AND CLARIFIES PRIOR RESOLUTIONS ARE SUPERSEDED AND CREATES ONE CLEAR CITY LAW. AND WITH THAT, I WILL TURN IT BACK OVER. THANK YOU.

>> THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THANK YOU, I JUST WANT TO SAY THANK YOU AGAIN, APPRECIATION TO THE CITY ATTORNEY'S OFFICE, I KNOW HOW MUCH WORK YOU PUT INTO THIS AND HOW MUCH CARE. I WANT TO SAY THANK YOU, KATRINA AND THANK YOU, COURSE TO FARIMAH AS WELL FOR LEADING THE TEAM. AND OF COURSE, THANK YOU TO OUR PARTNERS WHO HAVE BEEN SO INVOLVED AND ENGAGED. YOUR FEEDBACK WAS VERY IMPORTANT. I HOPE YOU FEEL YOUR CONCERNS WERE HEARD THROUGHOUT THE PROCESS. ALSO, THANK YOU TO MY STAFF WHO HAS BEEN HELPING US ALONG THE WAY.

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THANKS, JULIE. SO, JUST AS I MENTIONED EARLIER, THIS ORDINANCE BRINGS THE RULES GUIDING TO ONE PLACE WITH GREATER CLARITY. I'M COMMITTED TO WORKING WITH THE CITY MANAGER TO ENSURE THAT ALL OF OUR STAFF ARE TRAINED ON THE SANCTUARY ORDINANCE AND RECEIVE KNOW YOUR RIGHTS TRAINING IN THE WORKPLACE. IT'S GREAT IF WE PASS IT BUT WE NEED TO MAKE SURE IT'S ACTUALLY IMPLEMENTED. YOU HAVE MY WORD WE WILL FOLLOW THROUGH ON THAT AS WELL. I WANT TO BRING UP THE AMENDMENT NOW, I THINK THAT MAKES SENSE BEFORE YOU ALL SPEAK. AND THEN WE HEAR FROM THE COUNCILMEMBERS AS WELL. SO WE HEARD FROM THE COMMUNITY THERE'S A STRONG DESIRE TO STRENGTHEN THE TRANSPARENCY AND ENFORCEMENT SECTIONS. IN THAT SPIRIT ON BEHALF OF OUR BROWN ACT CIRCLE, COUNCILMEMBERS BLACKABY, LUNAPARRA AND HUMBERT, I WOULD LIKE TO ADD TWO. I AM ON ZOOM, IF YOU COULD PROMOTE ME, PLEASE, MARK. I WILL SHARE MY SCREEN. SOMETIMES IT'S EASIER TO HAVE IT UP ON THE SCREEN SO FOLKS CAN SEE IT. OKAY. THANK YOU. OKAY, FIRST TO STRENGTH ENTRANCE PAIR REIGN SY WE WOULD LIKE TO SUGGEST AN AMENDMENT. THE AMENDMENT WOULD READ AS IT SAYS SECTION 13.114.040 REPORTING AND TRANSPARENCY DATA, AMEND SUBSECTION D TO READ, D, ALL CITY AGENCIES SHALL REPORT IN WRITING TO THE CITY COUNCIL ANY REQUESTS DESCRIBED IN SUBSECTION A WITHIN TEN BUSINESS DAYS OF THE REQUEST, WITH INSTRUCTION TO REPORT SUCH REQUEST AS AN INFORMATION ITEM ON THE NEXT AVAILABLE AGENDA FOR A REGULAR

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MEETING OF THE CITY COUNCIL. THE BERKELEY POLICE DEPARTMENT SHALL INCLUDE AN AGGREGATED ANNUAL SUMMARY OF REQUESTS REPORTED TO THE CITY COUNCIL IN ITS REGAN WALL REPORT. AND REPLACE SECTION A WITH LANGUAGE FOUND IN THE SAN FRANCISCO ORDINANCE. THAT IS A BIT CLEAR. I WILL MOVE THAT UP. IN UNDERTAKING THE ADOPTION ENFORCEMENT OF CHAPTER 13.114, THE CITY IS ASSUMING AND UNDERTAKING ONLY TO PROMOTE THE GENERAL WELFARE, NOT TO INTEND RIGHTS OF BREACH WHICH THE CITY IS LIABLE FOR MONEY DAMAGES THAT SUCH BREACH CAUSED INJURY. THIS SHALL NOT BE CONSTRUED TO LIMIT OR PRESCRIBED ANY OTHER EXISTING RIGHTS OR REMEDIES POSSESSED BY SUCH PERSON. WE WORK WITH THE CITY ATTORNEY'S OFFICE ON THE LANGUAGE WITH THEM. OKAY, I WILL KEEP THAT UP THERE. APOLOGIES. OKAY, ARE THERE ANY CLARIFYING QUESTIONS FROM COUNCILMEMBERS? NOPE? OKAY, PUBLIC COMMENT THEN? COME ON UP.

>> I'M GIVING HER MY MINUTE.

>> THANK YOU, ABIGAIL. GOOD EVENING, MAYOR ISHII, CITY COUNCIL MEMBERS, MY NAME IS [INDISCERNIBLE], DIRECTOR OF THE MULTI-CULTURAL INSTITUTE. AS AN ORGANIZATION WE ARE STILL COMMITTED TO MAKING SURE EVERY RESIDENT IN OUR COMMUNITY REGARDLESS OF IMMIGRATION STATUS IS ABLE TO LIVE WITH SAFETY AND DIGNITY. I WANT TO THANK YOU ALL FOR THE SUPPORT AND ADVOCACY YOU HAVE DONE FOR OUR IMMIGRANT COMMUNITY THUS FAR AND RHODE REMIND YOU, MANY RESIDENTS, LAWS, AND POLICIES ON PAPER ARE NOT ENOUGH. I URGE

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YOU TO STRENGTHEN THIS ORDINANCE AND INCLUDE A PRIVATE RIGHT TO ACTION AND MORE MEANINGFUL AND ROBUST ACCOUNTABILITY PROVISIONS SO OUR COMMUNITY COULD HAVE ACCESS TO JUSTICE AND TRULY BE PROTECTED. WITHOUT ENFORCEMENT RIGHTS CAN REMAIN THEORETICAL INSTEAD OF REAL. IT ENSURES THOSE HARMED CAN SEEK REMEDIES WHEN HARM OCCURS. IT EMPOWERS WORKERS, TENANTS, AND FAMILIES TO EXERT THE RIGHTS WITH THE BACKING OF THE LAW. AT THE SAME TIME ACCOUNTABILITY MEASURES FOR CITY AGENCIES ANCON TRACTORS ARE E CENTRAL. TRANSPARENCY BUILDS TRUST. THAT BERKELEY IS TRULY LIVING ITS VALUES AS A PLACE COMMITTED TO EQUITY AND JUSTICE. OUR FAMILIES AND MAYBES DESERVE MORE THAN PROMISES; THEY DESERVE PROTECTIONS THAT ARE ENFORCEABLE. YOU ARE SETTING A PRECEDENT FOR OTHER LOCAL CITIES, OUR STATE AND NATION. STRENGTHEN OUR ORDINANCE AND DO OUR FAMILIES JUSTICE. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, COUNCIL, I'M READING TESTIMONY FROM A COMMUNITY MEMBER WHO CHOSE TO REMAIN ANONYMOUS TONIGHT. HELLO, MY NAME IS -- PEREZ, I LIVE IN BERKELEY, I AM ORIGINALLY FROM GUATEMALA, I HAVE TWO DAUGHTERS, AGES 19 AND 10. SINCE I STARTED LIVING IN THE UNITED STATES, I HAVE WORKED AND PAID MY TAXES. MY FAMILY AND I HAVE FOUND OUR SELFS IN A LOT OF ANGUISH WITH THE DIE POORTATION. DEPORTATION, MY DAUGHTER HAS BEEN HAVING PANIC ATTACKS. MANY US DIDN'T CHOOSE TO LEAVE OUR HOME COUNTRIES BUT

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RATHER WERE FORCED TO FLEE THE VIOLENCE TO PROVIDE A SAFE UP BRINGING FOR OUR CHILDREN AND SEARCH FOR BETTER OPPORTUNITIES. REGARDLESS OF OUR CIRCUMSTANCES WE HAVE EXPANDED OUR ROOTS AND MADE BOTH COUNTRIES OUR HOME. I ASK YOU PASS THIS ORDINANCE AND HAVE EMPATHY FOR US. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THANK YOU.

>> HI, EVERYBODY. MY NAME IS LISA HOFMANN; I'M A CO EXECUTIVE DIRECTOR AT BERKELEY SANCTUARY -- SANCTUARY SUPPORTERS RESISTED ARREST BY PROTECTING REFUGEES FLEEING VIOLENCE AND PERSECUTION. AS MAYOR ISHII AND KATRINA EILAND SHARED FOR MORE THAN 50 YEARS BERKELEY HAS STOOD AS AN EXAMPLE THAT SANCTUARY CITIES KEEP PEOPLE SAFE. NOW WE ARE COUNTING ON THIS COUNCIL TO CONTINUE THAT LEGACY. WE APPRECIATE YOUR PARTNERSHIP AND THE CHANGES THAT REFLECT SOME OF OUR SUGGESTIONS AND COMPROMISES. THE DRAFT ORDINANCE INCLUDES STRONGER DEFINITIONS AND CLEARER LIMITS ON COOPERATION WITH IMMIGRATION ENFORCEMENT AGENCIES. THE 10-DAY REPORTING REQUIREMENT AND ANNUAL REPORT ARE CRITICAL TO MAKE SURE ADVOCATE ARE AWARE OF IMMIGRATION ENFORCEMENT IN BERKELEY. FOR THESE REASONS WE SUPPORT THE PASSAGE OF THE ORDINANCE WITH ONE MAJOR CONCERN. THE CURRENT ORDINANCE IS STILL NOT TRANSPARENT ENOUGH ABOUT HOW VIOLATIONS WILL BE ADDRESSED. FOR EXAMPLE, ONE OF OUR CLIENTS IS A SINGLE MOTHER WITH A PENDING ASYLUM CASE WHO IS THE SOLE PROVIDER FOR HER TWO YOUNG CHILDREN,

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IF SHE WERE DETAINED OR DEPORTED AS A RESULT OF THE CITY'S UNLAWFUL ACTION THERE'S NOTHING THE CITY WOULD DO TO SUPPORT HER CHILDREN. RIGHT NOW ALL THEY COULD RELY ON ARE VAGUE PROCEDURES. IT FALLS SHORT BY NOT TAKING RESPONSIBILITY IF HARM OCCURS. A PRIVATE RIGHT OF ACTION IS NECESSARY WHEN THE CONSEQUENCES OF VIOLATING THIS ORDINANCE INCLUDE PROLONGED DETENTION, FAMILY SEPARATION, DEPORTATION, AND EVEN DEATH FOR OUR COMMUNITY MEMBERS. IF BERKELEY TRULY STANDS COMMITTED TO UPHOLDING THIS LAW, THERE SHOULD BE NO CONCERN IN MY ABILITY, AS IT SHALL NEVER BE BROKEN.

>> MAYOR ISHII: THANK YOU.

>> [SPEAKING SPANISH]

>> MAYOR ISHII: OKAY, A MINUTE FROM HER. TO TRANSLATE. DO YOU WANT TO TRANSLATE A LITTLE BIT BEFORE HE FINISHES? YOU WANT TO FINISH FIRST? OKAY, AFTER? I WANT TO MAKE SURE. IT'S A LOT TO TRANSLATE AT ONCE.

>> [SPEAKING SPANISH] [APPLAUSE]

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, TO ALL CITY COUNCIL MEMBERS, MY NAME IS [INDISCERNIBLE], I HAVE LIVED IN BERKELEY FOR 30 YEARS. I WORK AT U.C. BERKELEY AS A GARDENER. I'M A FATHER OF ONE DAUGHTER. WE HEAR EVERY DAY ABOUT I.C.E. AIDS WITHIN OUR HARD WORKING COMMUNITIES. WE ONLY WORK FOR OUR FAMILIES AND COMMUNITY. WE ARE

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YOUR GARDENERS, YOUR PAINTERS, WE TAKE CARE OF YOUR HOMES, WE TAKE CARE OF YOUR LOVED ONES, CHILDREN, SENIORS, WE CLEAN UP YOUR HOME, OFFICES AND BUSINESSES EVERY DAY. TODAY TRUMP POLICIES ARE TO TERRORIZE AND SEPARATE OUR FAMILIES FROM WORKING COMMUNITIES BY USING RACIAL HATE AS IT USED TO BE IN THE TIME OF SLAVERY. WE SHOULD NOT LET THIS HAPPEN AND WE SHOULD NOT TOLERATE IT. WE MUST STOP IT. I WANT TO REMIND YOU THAT WE THE PEOPLE CITIZENS KNOW HOW TO MARCH. WE VOTE AND WE KNOW HOW TO DEFEND AND FIGHT FOR THE RIGHTS OF OUR LOVED ONES. I HOPE YOU AS CITY COUNCIL OF THE CITY OF BERKELEY WILL PASS THE CITY ORDINANCE SO WE STOP THE ABUSES TOWARD OUR IMMIGRANT COMMUNITIES. WE HAVE TO DEFEND THE UNDOCUMENTED IMMIGRANT COMMUNITIES. NO ONE IS ILLEGAL ON STOLEN LAND. THANK YOU BECAUSE I KNOW YOU WILL PASS THIS CITY ORDINANCE.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING, CITY COUNCIL AND MAYOR ISHII. MY NAME IS MANUEL, I'M COMMUNITY ORGANIZER AT [INDISCERNIBLE], I LIVE IN OAKLAND AND COMMUTE TO BERKELEY EVERY DAY. THESE DAYS OUR IMMIGRANT COMMUNITIES LIVE IN FEAR BECAUSE OF THIS ADMINISTRATION. TERROR AND FEAR THEY ARE PUTTING IN OUR COMMUNITIES. UNLAWFULLY DEPORTING TO COUNTRIES THEY DON'T KNOW. THEY ARE RACIAL PROFILING IMMIGRANTS WHEN THEY DETAIN, INTERROGATE IMGRAPTS BASED ON THE SKIN COLOR, THE TYPE OF WORK

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THEY DO AND THEIR LANGUAGE. AND THEY ARE ALSO TAKING THE LAW IN THEIR HANDS BY NOT ALLOWING DUE PROCESS AND THIS IS A CRIME. OUR COMMUNITIES ARE ALSO AFRAID THAT THEY DO NOT WANT TO GO OUTSIDE THEIR HOMES. CAN I HAVE ONE MORE MINUTE?

>> MAYOR ISHII: SOMEONE IN THE BACK. OKAY.

>> FOR EXAMPLE, ON SUNDAY I WAS EBSC HOSTED A WORKSHOP, WE INVITED A LOT OF PEOPLE. AND A LOT OF PEOPLE SAY THAT THEY WANT TO COME BUT THEY DIDN'T, AND THEY EXPRESSED BECAUSE OF FEAR. AND THAT WAS TO PREPARE PEOPLE TO COME AND SHARE THEIR TESTIMONY HERE AT THIS MEETING TONIGHT. THAT'S THE LEVEL OF FEAR WE ARE FACING RIGHT NOW. MANY OF THE PEOPLE WHO INVITED, I'M ASKING THE CITY COUNCIL MEMBERS TONIGHT TO PLEASE PASS THE CITY ORDINANCE THAT IS TRANSPARENT, TRUSTFUL AND RESPONSIBILITY. THANK YOU VERY MUCH BECAUSE I KNOW YOU WILL PASS THIS CITY ORDINANCE. THANK YOU SO MUCH.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING. MY NAME IS GLENDA AND I'M HERE TO SHARE A COMMENT FROM A COMMUNITY MEMBER WHO WAS TOO SCARED TO SPEAK HERSELF. MY NAME IS BEATRICE MARTINEZ. I'M A VOLUNTEER AT THE SANCTUARY. I'M ORIGINALLY FROM EL SALVADOR AND HAVE BEEN LIVING IN THE UNITED STATES FOR 27 YEARS. YOU HAVE HAD TEMPORARY PROTECTED STATUS FOR 23 YEARS. I WORK AT A CARE CENTER FOR SENIORS AS A HOUSEKEEPER. I HAVE TWO SONS THAT ARE 45 AND 47

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YEARS OLD. I HELP CONTRIBUTE TO MY COMMUNITY THROUGH MY WORK. I HAVE PAID TAXES THE ENTIRE TIME I HAVE LIVED IN THE U.S. I PAY MY ELECTRICITY BILL, WATER BILL, RENT AND HAVE EVEN CONTRIBUTED TO THE ECONOMY THROUGH MY OWN CONSUMPTION. AS IMMIGRANTS, WE HELP NOT ONLY --

>> MAYOR ISHII: THANK YOU. ANOTHER MINUTE OVER HERE.

>> AS IMMIGRANTS WE HELP NOT ONLY THE U.S. ECONOMY BUT ALSO OUR CITIES IN WHICH WE LIVE TO BE MORE ECONOMICALLY PROSPEROUS AND PRODUCTIVE. TODAY I LIVE IN FEAR KNOWING THAT AT ANY MOMENT I CAN BE DEPORTED, REGARDLESS OF WHETHER I HAVE LEGAL STATUS OR NOT. IT TERRIFIES ME TO KNOW THAT I CAN BE SEPARATED FROM MY FAMILY. KEEPING FAMILIES TOGETHER IS VERY IMPORTANT SO THAT WE CAN ACCOMPLISH OUR DREAMS AND PROGRESS TOGETHER IN THIS COUNTRY. I WOULD FEEL VERY HAPPY TO KNOW THAT THE BERKELEY CITY COUNCIL WILL PASS THE ORDINANCE SO THAT THE PEOPLE THAT LIVE, WORK AND TRAVEL TO BERKELEY CAN FEEL SAFE. I ASK THAT YOU PASS THIS ORDINANCE AND BE AN EXAMPLE TO OTHER CITIES AND COUNTIES. I ALSO ASK THAT THIS ORDINANCE BE TRANSPARENT, TRUSTWORTHY AND THAT IT BRINGS SECURITY --

>> MAYOR ISHII: THANK YOU. THANKS SO MUCH. [APPLAUSE]

>> OKAY, HI, THIRD TIME IS A CHARM. MY NAME IS ROSA, I'VE BEEN ACTUALLY A RESIDENT IN BERKELEY FOR THREE YEARS AND PLEASE, PLEASE, PLEASE, PASS THIS ORDINANCE AS A DAUGHTER FROM TWO

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IMMIGRANT PARENTS, JAPANESE AND MEXICAN, AS AN ALUMNI OF BERKELEY, AS A LEGAL ASSISTANT WHO WORKS WITH THE UNDOCUMENTED COMMUNITY EVERY SINGLE DAY. WE HAVE BEEN HAVING A LOT OF ISSUES OF THEM EVEN WANTING TO REACH OUT TO OUR OFFICE ANYMORE BECAUSE THEY THINK WE ARE IN CAHOOTS WITH I.C.E. AND ORDINANCES LIKE THIS HELPS ESTABLISH TRUST THAT IS ALREADY BEING LOST THROUGH PRIOR ADMINISTRATIONS, THE CURRENT ADMINISTRATION, HISTORY, YOU KNOW. SO I JUST REALLY URGE THE COUNTRY, I TRUST YOU GUYS WILL PASS THE ORDINANCE BUT AS SOMEONE WHO SEES THE FIRSTHAND REPERCUSSIONS OF THIS ON A DAILY BASIS, I REALLY HOPE YOU DON'T LET ME DOWN. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> [SPEAKING SPANISH]

>> HI, MY NAME IS EMMA AND I WILL BE TRANSLATING HIS MESSAGE FOR YOU ALL. MY NAME IS FELIX AND I'M REPRESENTING EAST BAY SANCTUARY; I'M FROM EL SALVADOR AND HAVE LIVED IN THE UNITED STATES FOR THE PAST 26 YEARS, I WORK IN A RECYCLING COMPANY IN THE BAY AREA AND I HAVE THREE CHILDREN, 16, 15 AND 6 YEARS OLD. MY WIFE AND I ALONG WITH MILLIONS OF IMMIGRANTS WORK HARD, PAY TAXES, AND INVEST IN THIS COUNTRY'S ECONOMY. WE ARE HONEST PEOPLE WHO WORK HARD TO HELP OUR CHILDREN SUCCEED. WE ARE NOT CRIMINALS. WE LIVE UNDER CONSTANT FEAR DUE TO SO MANY DEPORTATIONS HAPPENING RIGHT NOW. WE ARE AFRAID OF BEING

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DEPORTED AND SEPARATED FROM OUR FAMILIES. I ASK THE BERKELEY CITY COUNCIL MEMBERS OF THIS BEAUTIFUL CITY TO PASS THIS ORDINANCE SO PEOPLE WHO VISIT BERKELEY FEEL SAFE. AND I HOPE THE CITY ORDINANCE WILL BE TRANSPARENT, TRUSTWORTHY, SAFE, AND IN ACCORDANCE WITH THE LAW. THANK YOU FOR PASSING THE CITY ORDINANCE. THANK YOU SO MUCH.

>> MAYOR ISHII: THANK YOU. THANK YOU VERY MUCH. [APPLAUSE]

>> [SPEAKING SPANISH]

>> MAYOR ISHII: SORRY, DO YOU WANT TO PULL THE MIC A LITTLE CLOSER.

>> [SPEAKING SPANISH]

>> HELLO, GOOD EVENING, MY NAME IS CLAUDIA DE SALVA, I'M FROM HONDURAS, A COMMUNITY LEADER, LIVING IN UNITED STATES TO 25 YEARS, I HAVE BEEN LIVING WITH MY AMAZING HUSBAND. WE ARE PARENTS TO TWO CHILDREN, 29-YEAR-OLD AND OUR DAUGHTER, 21-YEAR-OLD. WE ARE ALSO GRANDPARENTS TO OUR GRANDSON WHO IS 8 YEARS OLD.

>> [SPEAKING SPANISH]

>> INTERPRETER: I WORK AS A CAREGIVER TO A GIRL WHO HAS SPECIAL NEEDS AND I'M A TRAINED SPECIALIST IN CARING FOR SENIOR CITIZENS. I LOVE MY JOB EVEN THOUGH IT COULD BE HARD BUT WHEN I DO MY JOB I DO IT WITH LOTS OF LOVE.

>> [SPEAKING SPANISH]

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>> INTERPRETER: I REMEMBER DURING COVID-19 PANDEMIC, WE WERE OFTEN REFERRED TO AS ESSENTIAL WORKERS. WE ARE NOW BEING REFERRED TO AS CRIMINALS. WE ARE NOT CRIMINALS. WE ARE HARD WORKING PEOPLE. WE ARE NOT A BURDEN TO THIS COUNTRY OR DEPENDENT ON GOVERNMENT ASSIST ANCE, ON THE CONTRARY, WE CONTRIBUTE TO THIS COUNTRY'S ECONOMY.

>> [SPEAKING SPANISH]

>> MAYOR ISHII: SOMEONE ELSE GAVE YOU A MINUTE FROM THE AUDIENCE.

>> [SPEAKING SPANISH]

>> INTERPRETER: THE CURRENT POLITICAL SITUATION STIRS UP FEAR, TENSION AND WORRY, LEADS TO DEPRESSION AND SADNESS BECAUSE WE CAN'T LIVE AND WORK IN PEACE.

>> [SPEAKING SPANISH]

>> INTERPRETER: WITH MASS DEPORTATIONS, CONSTRUCTION, AGRICULTURE AND SERVICE ARE BEING AFFECTED. MANY HAVE BEEN FORCED TO ABANDON THEIR JOBS OUT OF FEAR OF BEING DEPORTED.

>> [SPEAKING SPANISH]

>> INTERPRETER: FOR THESE REASONS I ASK THE COUNCIL PASS THIS ORDINANCE SO THAT OUR COMMUNITY AND OUR RIGHTS ARE PROTECTED. AND BY PASSING THIS ORDINANCE YOU SERVE AS AN EXAMPLE TO OTHER CITIES AND COUNTIES, THANK YOU FOR BEING ON OUR SIDE AND PASSING THIS ORDINANCE.

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>> MAYOR ISHII: THANK YOU.

>> [SPEAKING SPANISH]

>> PROTECT OURSELVES.

>> I'M DREW PEYTON, I'M A PASTOR AT FIRST PRESBYTERIAN CHURCH AND A DAD. THANK YOU SO MUCH FOR THE WORK THAT'S GONE INTO THIS. THERE IS NO WAY TO TALK ABOUT WHAT'S GOING ON WITHOUT SOUNDING CRAZY. WE ARE FACING ESCALATING AUTHORITARIANISM AND BUILDING OF A MASKED PRIVATE ARMY BENT ON DISAPPEARING OUR NEIGHBORS AND TEARING OUR COMMUNITIES APART. WE NEED TO STAND UP IN ALL OF THE PLACES AND WAYS WE CAN. THIS ORDINANCE HELPS TO PRESERVE THE RULE OF LAW AND KEEPS PEOPLE SAFE. IT ALSO RESONATES WITH THE OLDEST AND DEEPEST CONVICTIONS OF OUR FAITH TRADITIONS AND OUR ANCESTORS WHO LIVED TO MAKE THIS WORLD SAFE FOR THE PEOPLE THEY LOVE. IN THESE TIMES I THINK IT'S IMPORTANT NOT ONLY TO RESIST THE INSANITY SPEWING FROM THE CAPITOL BUT TO IMAGINE, EMBODY, TO ENACT THE SORT OF WORLD WE WISH TO LIVE IN. I THINK WE CAN DO THAT IN PART BY PASSING THIS ORDINANCE WITH THE AMENDMENTS RECOMMENDED.

>> MAYOR ISHII: THANKS.

>> THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> BRIAN -- SECURE JUSTICE AGAIN. IN THE LAST SIX MONTHS WE HAVE PROBABLY BEEN ASKED TO REVIEW 30-35 DIFFERENT SANCTUARY CITY

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PROPOSALS AND WE HAVE ONLY ENDORSED TWO. WE HAVE EITHER TURNED INTO UNENFORCEABLE RESOLUTIONS OR RESTATING STATE LAW AND WE AREN'T INTERESTED IN PERFORMATIVE ART. YOU ARE RAISING THE BAR, IT'S APPROPRIATE THAT THE ORIGINAL SANCTUARY CITY IS DOING SO AND WE CAN DO THAT AND SUPPORT THIS ORDINANCE WITH THE AMENDMENTS. REALLY APPRECIATE THE COMMUNITY GROUPS HAVE DONE IN PUSHING FOR THIS, THE MAYOR, YOUR STAFF, THE WORK YOU HAVE DONE, FARIMAH, BABY FARIMAH, SORRY, I DON'T KNOW YOUR NAME, FARIMAH JUNIOR. YOU ALL HAVE DONE GREAT WORK AND THIS DOES SET A GREAT PRECEDENT FOR FOLKS SO HOPEFULLY OTHERS WILL FOLLOW YOU.

>> MAYOR ISHII: THANK YOU. HER NAME IS KATRINA, JUST FYI.

>> KIT SAGINOR, I WANT TO ADD MY THANKS TO OTHERS IN THE WORK YOU HAVE DONE TO DO THIS. YOU KNOW THIS IS A BEGINNING, IT'S NOT A FINAL THING, THERE'S MORE WORK TO BE DONE. IT IS SUCH A TOUGH ISSUE THAT WE ARE DEALING WITH NATIONALLY, BUT I WAS AT IMMIGRATION COURT IN SAN FRANCISCO YESTERDAY AND GOT SUCH A STRONG REMINDER THAT PEOPLE'S WORTH, THEIR WORTH AS HUMAN BEINGS AND COMMUNITY MEMBERS HAS NOTHING TO DO WITH WHAT THEIR STATUS MIGHT BE IN THIS COUNTRY AND TO PROTECT PEOPLE FROM INJUSTICES IS SO IMPORTANT. SO THANKS SO MUCH FOR GETTING THIS ORDINANCE TOGETHER RATHER QUICKLY, REALLY. AND I ALSO WILL BE EAGER TO SEE WHAT MORE HAPPENS HERE. THANK YOU.

>> MAYOR ISHII: THANK YOU, KIT. [APPLAUSE]

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>> GOOD EVENING, EVERYONE. MY NAME IS [INDISCERNIBLE], I'M A U.C. BERKELEY SENIOR, I'M HERE IN STRONG SUPPORT OF THE SANCTUARY CITY ORDINANCE. MANY OF MY FELLOW STUDENTS WHO ARE UNDOCUMENTED LIVE IN DAILY FEARS EVEN JUST WALKING TO CLASS. WE CAN REDUCE FEAR AND MISINFORMATION WHEN THINGS LIKE UNMARKED VANS APPEAR CAMPUS. THANK YOU TO THE COUNCIL, THE CITY ATTORNEY'S OFFICE, AND SANCTUARY CITY TASK FORCE FOR ALL THE CONTINUED DEDICATION. I'M ALL FOR THE WORK REGARDLESS OF IMMIGRATION STATUS, I HOPE WE CAN CONTINUE TO PROTECT OUR COMMUNITY FROM SURVEILLANCE CAMERAS TIED TO THE TRUMP AGENDA. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> YOU JUST WANTED TO YIELD MY MINUTE.

>> GOOD EVENING, MY NAME IS ANGELICA, I'M A CURRENT BERKELEY RESIDENT ATTENDING U.C. BERKELEY. I'M ORIGINALLY FROM THE INLAND EMPIRE IN SOUTHERN CALIFORNIA, BY LARGE MASSES OF LAND, HOUSES AND COMMUNITIES. LIKE NEIGHBORS IN L.A., THROUGHOUT CALIFORNIA ARE BEING DEEPLY AFFECTED BY THE ONGOING I.C.E. RAIDS, UNCONSTITUTIONAL KIDNAPPINGS AND SWEEPS TAKING PLACE FROM DOORSTEPS. AS OF YESTERDAY THE SUPREME COURT GRANTED THE TRUMP'S ADMINISTRATION TO PAUSE TEMPORARY RESTRAINING ORDER PROTECTING IMMIGRANT COMMUNITIES ERUPTING MORE FEAR IN OUR COMMUNITIES, RACIAL PROFILING ON OUR COMMUNITY MEMBERS IS UNDOUBTEDLY NOT

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INCLUSIVE TO OUR COMMUNITIES IN SOUTHERN CALIFORNIA. I SHARE THIS INFORMATION WITH YOU ALL TODAY I FIRMLY BELIEVE THIS IS AN IMPORTANT MOMENT TO EMPHASIZE THE RESPONSIBILITY THAT BERKELEY HOLDS AS A SANCTUARY CITY. THE TRUMP ADMINISTRATION HAS MADE NO SECRET ABOUT ITS DESIRES TO TARGET BERKELEY AND ITS RESIDENTS, SANCTUARY CITIES AND SUPPORT FOR IMMIGRANTS, LGBTQ+, AND REPRODUCTIVE FREEDOM. THIS ADMINISTRATION IS WILLING TO INFLICT TRAUMA AND VIOLENCE ON THE COMMUNITIES. WE NEED TO STAND UP TO TRUMP AND MAKE IT CLEAR THAT BERKELEY IS A CITY THAT PRIORITIZES SAFETY FOR ALL OF ITS RESIDENTS WHERE ALL OF US CAN WORK, GO TO SCHOOL, USE THE HOSPITAL WITHOUT FEAR. WHILE I'M GLAD TO SEE THE CITY WILL FURTHER ITS SANCTUARY CITY PROTECTIONS WITH THE ORDINANCE I WOULD LIKE TO SEE THE CITY TAKE ON MORE ACCOUNTABILITY AND TRANSPARENT HOW THE LAW WILL BE ENFORCED IF IT'S BROKEN. WHAT DOES ACCOUNTABILITY LOOK LIKE BEYOND ADMINISTRATIVE PROCEDURES AND HOW AFFECTED INDIVIDUALS OBTAIN JUSTICE FOR HARMS ESPECIALLY WHEN THEY ARE AFFECTED. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE] AND THANK YOU BOTH FOR HELPING WITH TRANSLATING TODAY.

>> HI, MY NAME IS DANNY SALIA, I'M AN UNDOCUMENTED IMMIGRANT, DACA RECIPIENT AND WITH CSO, LEGACY ORGANIZATION THAT FIGHTS FOR IMMIGRATION RIGHTS AND VICTIMS OF POLICE CRIMES. I'M HERE TO URGE THE CITY TO VOTE YES WITH THE ACCOUNTABILITY LANGUAGE

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BECAUSE ALL OUR COMMUNITIES ARE INTERCONNECTED AND FOLKS DESERVE TO FEEL SAFE IN WHATEVER CITY THEY ARE IN, REGARDLESS OF THEIR IMMIGRATION STATUS. ESPECIALLY AT A TIME WHEN IMMIGRANT RIGHTS ARE UNDER ATTACK BY A WANNABE THOR TORIAN PRESIDENT. WE NEED BERKELEY TO HOLD THE LINE, FOLLOW CITIES LIKE CHICAGO IN DEFENDING IMMIGRANT COMMUNITIES. THEY AREN'T AFRAID TO FIGHT TRUMP'S ATTACKS, THEY DOMESTIC -- DEMONSTRATED IN LOS ANGELES, INDIANAPOLIS, CHICAGO. WHEN IMMIGRANT RIGHTS ARE UNDER ATTACK, WE FIGHT BACK. THANK YOU.

>> MAYOR ISHII: THANK YOU. THANK YOU ALSO FOR TRANSLATING. [APPLAUSE]

>> I DON'T SEE ANY DIFFICULTY WITH LANGUAGE THAT PREVENTS THE CITY FROM BEING EXPOSED TO LIABILITY. IT DOESN'T PRECLUDE COUNCIL FROM ACTUALLY GOING FURTHER TO THE COMMUNITY THAT IS UNDER OUR CONTROL. BECAUSE WHEREVER YOU HAVE FEAR, YOU HAVE RAMPANT FEAR RIGHT NOW AND SOMETIMES ITS DISPLACED. YOU ALSO WILL HAVE PREDATORS THAT COULD BE EMPLOYERS, THEY COULD BE NEIGHBORS, THEY COULD BE LANDLORDS WHO WILL EXPLOIT THAT FEAR. AND SO THERE'S NOTHING PRECLUDING COUNCIL FROM ACTUALLY LOOKING AT SOME OTHER MEANS OF PROTECTING PERSONS IN OUR COMMUNITY. SO THAT THEY AREN'T ADDITIONALLY EXPLOITED, IN ADDITION TO WHAT THEY ARE GOING THROUGH WITH I.C.I. -- I.C.E. ALSO, IT'S NOT ONLY UNDOCUMENTED RESIDENTS, IT'S PERMANENT RESIDENTS, PEOPLE

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APPLYING FOR VISAS, THIS IS REALLY WIDESPREAD. THANK YOU.

>> MAYOR ISHII: THANK YOU, CAROL. [APPLAUSE]

>> HI, GOOD EVENING. MY NAME IS ABIGAIL ESPERANZA I'M THE CO DIRECTOR OF THE IMMIGRATION UNIT OF THE EAST BAY LAW CENTER. I WANT TO THANK EVERYBODY HERE FORETHOUGHTFUL DRAFTING OF THE ORDINANCE, SO MANY OF YOU GAVE YOUR TIME AND EXPERTISE, AND THE MAYOR ADDING THE TRANSPARENCY AND ACCOUNTABILITY MEASURES. WITH THESE ADDITIONS I'M SPEAKING IN SUPPORT OF THE ORDINANCE AND I URGE YOU TO PASS IT. SANCTUARY CITY POLICIES KEEP COMMUNITIES SAFER BY BUILDING TRUST WITH RESIDENTS LOCAL POLICE AND GOVERNMENT. THIS ORDINANCE IS A VITAL STEP TO REAFFIRMING BERKELEY'S COMMITMENT TO BEING A SANCTUARY CITY. AS AN IMMIGRATION ATTORNEY I MEET EVERY DAY WITH MEMBERS WHO ARE TERRORIZED BY THE CURRENT ADMINISTRATION UNLAWFUL IMMIGRATION ENFORCEMENT ACTION AND THIS IS A STEP TOWARD BUILDING TRUST IN BERKELEY AND CONTINUE BUILDING TRUST SO WE CAN FACE THIS FIGHT TOGETHER. SO THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE] SO FOLKS, THERE ARE FIVE HANDS ONLINE. YOU JUST WANT TO CHECK IN. DO WE WANT TO KEEP ROLLING THROUGH? OKAY. I'M SEEING HEADS NOD YES. WE ARE GOING TO MOVE ONLINE.

>> CITY CLERK: YES, SO NOW IS THE TIME IF YOU WANT TO SPEAK ON THE SANCTUARY CITY ORDINANCE ON ZOOM TO RAISE YOUR HAND. THE

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FIRST SPEAKER IS ALIZA.

>> GOOD EVENING, MADAM MAYOR, COUNCILMEMBERS AND COMMUNITY. MY NAME IS ALIZA KOZMEED, I'M SPEAKING ON BEHALF OF ALAMEDA COUNTY SUPERVISOR BASS. WE APPLAUD THE PROACTIVE MEASURES BERKELEY IS TAKING TO PROTECT OUR IMMIGRANT COMMUNITIES AND WE PLEDGE TO CONTINUE DOING OUR PART TO RESOURCE OUR COMMUNITIES BY FINDING KNOW YOUR RIGHTS TRAININGS, THE RAPID RESPONSE HOTLINE, COMMUNITY ORGANIZING AND DEPORTATION DEFENSE. AS WE ARE DOING EVERYTHING IN OUR POWER TO PROTECT OUR IMMIGRANT COMMUNITIES ITS VITAL WE UPHOLD CONSTITUTIONAL RIGHTS, INCLUDING PRIVACY RIGHTS AND THE DIGNITY OF EVERYBODY IN OUR COMMUNITY, ESPECIALLY OUR IMMIGRANTS. I ACKNOWLEDGE AND APPRECIATE THE COMMUNITY'S COMMENTS INCLUDING WAYS THE ORDINANCE COULD POTENTIALLY BE MADE EVEN STRONGER. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE] AND JUST TO NOTE ALI ZA HAS BEEN COMING TO THE COMMUNITY TASK FORCE MEETINGS SO THANK YOU FOR COMING AND REPRESENTING THE SUPERVISOR.

>> CITY CLERK: OKAY, NEXT SPEAKER IS CHERYL DAVILA, FORMER COUNCILMEMBER.

>> I HAVE A MINUTE FROM AR -- ARMANDO AND ROBERT DAVILA THAT SHOULD BE ONLINE. IF YOU COULD START MY TIME AGAIN.

>> CITY CLERK: ARMANDO?

>> ARMANDO.

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>> CITY CLERK: ARMANDO.

>> MAYOR ISHII: ARE THEY HERE? IN A PHONE NUMBER?

>> CITY CLERK: I SEE ROBERT BUT NOT ARMANDO. HE IS HERE, MAYBE HE GOT LOGGED OFF, BUT ANYWAY.

>> MAYOR ISHII: WE WILL JUST GIVE YOU THE TWO MINUTES YOU'VE GOT THEN.

>> CITY CLERK: --

>> SO FOR ONE, I WANT TO THANK ALL THE IMMIGRANT COMMUNITY WHO CAME OUT TO THE MEETING TONIGHT AND ALL WHO ARE REPRESENTING SOMEONE WHO IS AFRAID TO COME OUT. MY HUSBAND'S PARENTS WERE IMMIGRANTS. THE CITY OF BERKELEY SHOULD PASS A SOLID STRONG ORDINANCE. AND WITH THOSE AMENDMENTS, MY ONLY CONCERN, ONE OF MY CONCERNS IS THAT WHAT IF YOU TALKED ABOUT THE FEDERAL IMMIGRATION ENFORCEMENT THROUGHOUT THE DOCUMENT, THE ORDINANCE. BUT WHAT ABOUT THE FEDERAL BUREAU OF INVESTIGATION? OR THE CIA OR HOMELAND SECURITY, OR SOME OTHER POLICE DEPARTMENT OR, I KNOW, I MEAN, SOME OTHER AGENCY OR ARMED GUARDS? THE MARINES. OR, YOU KNOW, WHO KNOWS WHO THEY ARE GOING TO SEND. SO I DON'T KNOW IF FEDERAL IMMIGRATION ENFORCEMENT INCLUDES ALL THAT. SO YOU SHOULD, I WOULD SAY, EXPLICITLY CALL THOSE OUT, IF THEY ARE NOT ALREADY. I DIDN'T FINISH READING THE ORDINANCE, BECAUSE I DON'T HAVE TO. BUT I SUMMARIZED, I SKIMMED IT. BUT, YEAH, YOU NEED TO ALSO, I MEAN, AND I HOPE THAT YOU WON'T BE SELECTIVE IN

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IMMIGRANTS THAT YOU CHOOSE TO SUPPORT AND PROVIDE A SANCTUARY CITY TO. BECAUSE WE KNOW YOU'RE NOT KEEN ON PALESTINIANS WHO COULD BE IMMIGRANTS. I DON'T KNOW HOW YOU FEEL ABOUT HAITIANS OR SUDAN OR LEBANESE OR YEMEN OR ANY OF THOSE COUNTRIES.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS SPEAKER WITH A PHONE NUMBER ENDING IN 405.

>> I HAVE LIVED IN BERKELEY SINCE 1952 AND I LIVED BY WHATEVER ENVIRONMENT THEY ARE IN, MAKE IT BETTER. THIS ORDINANCE WILL CERTAINLY MAKE BERKELEY BETTER. SO I URGE THE COUNCIL TO ENFORCE IT AND I ALSO WANT TO EXPRESS GRATITUDE TO EACH COUNCILMEMBER FOR GIVING TIME, ENERGY, FOCUS, AND I HOPE AFFIRMATION TO THIS ORDINANCE. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS DANIEL BROWNSON.

>> THE ONLY THING WRONG WITH THIS ORDINANCE IS DOESN'T HAVE ENOUGH TEETH. BUT IT'S A GOOD STEP FORWARD. SANCTUARY FOREVER. SURVEILLANCE NEVER. FREE PALESTINE. [APPLAUSE]

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: LAST SPEAKER IS MARISA.

>> THANK YOU. I JUST WANT TO ADD THAT IT'S REALLY IMPORTANT THAT THIS ORDINANCE, I REALLY WANT TO THANK EVERYONE, OF COURSE, THAT HAS WORKED ON IT. BUT IT'S REALLY IMPORTANT WE ADD REPORTING

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REQUIREMENTS WHEN THE CITY DOES SHARE DATA WITH IMMIGRATION ENFORCEMENT AGENCIES. I THINK IT'S THE MISSING PIECE AND HOPEFULLY IT WILL MAKE IT INTO THE ORDINANCE. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: OKAY, THAT'S ALL, NO MORE SPEAKERS.

>> MAYOR ISHII: OKAY, THANK YOU VERY MUCH. WE WILL MOVE ONTO COUNCILMEMBER COMMENTS. JUST A REMINDER, FOLKS, WE WILL HAVE OUR FIVE-MINUTE CLOCK UP THERE. OKAY, COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANKS, MADAM MAYOR. AND THANK YOU EVERYBODY WHO PARTICIPATED TONIGHT AND OVER THE PAST MANY MONTHS. I ALSO WANT TO THANK OUR CITY ATTORNEY AND HER TEAM FOR THE ANALYSIS RESEARCH AND CONSULTATIONS WITH THE MAYOR, THE CITY MANAGER AND MEMBERS OF THE MAYOR'S SANCTUARY CITY TASK FORCE TO DEVELOP THE FIRST BERKELEY ORDINANCE TO CODIFY THE CITY OF BERKELEY AS A SANCTUARY CITY. THE PROPOSED ORDINANCE BUILDS ON THE CITY'S LATEST SANCTUARY CITY REAFFIRMATION RESOLUTION WHICH I AUTHORED IN JANUARY WITH MAYOR ISHII, COUNCILMEMBER LUNAPARRA AND TAPLIN. I AM PROUD TO PUT MY NAME ON THIS; IT'S THE RIGHT THING TO DO. SUPPORTING OUR IMMIGRATION COMMUNITY IS PERSONAL, IT'S PERSONAL TO ME. MY PARTNER LARRY AND HIS FOUR SIBLINGS AND HIS PARENTS IMMIGRATED FROM VIETNAM AFTER THE FALL OF CYGAN. LARRY WAS BORN IN A REFUGEE CAMP IN ARKANSAS, HIS FAMILY SPONSORED BY ANOTHER FAMILY AND SETTLED IN HUSTON. -- HOUSTON. OUR LIVES ARE SO

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ENRICHED, THEY ARE CONTRIBUTED TO OUR LIVES AND MY LIFE WOULD NOT BE THE SAME WITHOUT OUR IMMIGRANT COMMUNITY. I'M PROUD TO STAND WITH OUR FRIENDS AND NEIGHBORS AND ADVOCATE IN SUPPORT OF THIS RESOLUTION, IN SUPPORT OF THIS ORDINANCE. AS THE CITY ATTORNEY'S OFFICE PRESENTED TONIGHT, THIS NEW ORDINANCE DOES MAKE A FEW REALLY SIGNIFICANT CHANGES THAT BUILD ON WHAT WE DID IN JANUARY. FIRST IT CREATES A NEW REPORTING PROCEDURE SO PEOPLE WILL KNOW ABOUT INCIDENTS AS SOON AS THEY HAPPEN AND WE WILL HAVE AN ANNUAL REPORT BACK EVERY YEAR. BROADENS IT TO INCLUDE MORE INFORMATION THAT COULD BE USED TO TRACE IMMIGRATION STATUS AND PREVENTS CITY OFFICIALS FROM DISCLOSING TO FEDERAL OFFICIALS. AND CLEAR DEFINITIONS UNDEFINED IN OUR ORIGINAL RESOLUTION. FOURTH IT MAKES CLEAR THAT CITY POLICY APPLIES EQUALLY TO IMMIGRATION ENFORCEMENT ACTION TO SCHOOLS, AFTER SCHOOL PROGRAMS, HOSPITALS, PLACES OF WORSHIP AND MORE. FINALLY, IT MAKES CLEAR WHAT WE HAVE DONE IN PRIOR RESOLUTIONS ARE SUPERSEDED FOR CLARITY, THIS REPRESENTS THE LATEST AND GREATEST EFFORT HOW WE ARE DEFINING OURSELVES AS A SANG WEIR RY CITY. PUTTING BERKELEY'S SANCTUARY CITY STANDING INTO AN ORDINANCE HELPS TO ENSURE IT'S CLEARLY CODIFIED IN CITY LAW NOW AND IN THE FUTURE. I WANT TO THANK ALL OF OUR COMMUNITY PARTNERS FOR THEIR HARD WORKS, FOR OUR IMMIGRANT FRIENDS AND NEIGHBORS EACH AND EVERY DAY. THEY TRULY ARE ON THE FRONT LINES OF THIS FIGHT. AND

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WE STAND WITH THEM. I VALUE THEIR SUPPORT AND ADVOCACY AROUND TONIGHT'S ORDINANCE, WHICH HAS BROUGHT US TO THIS POINT. WE CERTAINLY WOULD NOT BE HERE WITHOUT YOU, IN PARTICULAR, LISA, MARY, ABIGAIL AND REBEKAH AND SO MANY OTHERS WE CAN'T NAME BUT WE APPRECIATE YOUR PARTICIPATION. I WOULD LIKE TO THANK THE MAYOR FOR HER AMENDMENTS AND COLLEAGUES AND I'M PROUD AND HONORED TO VOTE FOR THIS ORDINANCE TONIGHT. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER HUMBERT?

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I WANT TO THANK YOU AGAIN, THE MAYOR AND HER STAFF FOR ALL OF THEIR WORK ON THIS ORDINANCE TO CODIFY OUR SANCTUARY CITY POLICIES AND INCLUDING ME AS A CO-SPONSOR ON THIS ITEM. I HAVE A PERSONAL CONNECTION TO IMMIGRANTS, BOTH MY DAUGHTERS ARE IMMIGRANTS FROM CHINA AND I COUNSEL THEM EVERY DAY, KEEP YOUR REAL I.D. IN YOUR WALLET AND KEEP A PHOTOGRAPH OF THE FRONT PAGE OF YOUR PASSPORT. I WORRY ABOUT THEM. I WANT TO THANK ALSO THE INDIVIDUALS AND ORGANIZATIONS WHO HAVE ADVOCATED FOR THIS AND THE CITY ATTORNEY'S OFFICE FOR THEIR WORK TO MAKE IT WORKABLE AND AIRTIGHT, REALLY HARD WORK ON THAT. AT THIS POINT, HONESTLY, I FEEL THIS ORDINANCE REFLECTS SOMETHING EVEN BROADER AND MORE FUNDAMENTAL THAN JUST BEING A SANG -- SANCTUARY CITY AS WE PREVIOUSLY CALLED IT. WHAT WE ARE REALLY DOING IS REAFFIRMING WE ARE A CIVIL LIBERTIES CITY, AMERICAN CONSTITUTION CITY. IT'S

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SHOCKING THAT OTHERS WON'T DEFEND THEIR RESIDENTS. THE IDEA A FEDERAL AGENT CAN ABDUCT JUST FOR THE COLOR OF THEIR SKIN OR LANGUAGE THEY GREW UP SPEAKING IS UNCONSCIONABLE AND FASCIST, THE PARALLELS TO 1930'S GERMANY ARE CLEAR AND COMPELLING AND FRIGHT EPPING AND WE ARE THERE. WE SWORE AN OATH TO UPHOLD AND DEFEND THE U.S. CONSTITUTION AND THAT IS PRECISELY WHAT WE ARE DOING HERE TONIGHT. DECLARING THE FORM OF MUNICIPAL LAW THAT THE CITY OF BERKELEY AND VARIOUS DEPARTMENTS AND IT'S STAFF WILL HAVE NO PART, WILL NOT COLLABORATE IN THE DISMANTLING OF OR HARD EARNED CONSTITUTIONAL FREEDOMS. THE STEPS AREN'T JUST PROTECTING IMMIGRANTS AND PEOPLE OF COLOR THOUGH; IT'S ABOUT PROTECTING ALL OF US. BECAUSE WE KNOW FROM HISTORY, THE CURRENT ADMINISTRATION'S OWN RHETORIC, HE SAYS IT, THEY SAY IT, WE SHOULD BELIEVE IT, THEY DO NOT PLAN TO STOP HERE. WE MUST DRAW A CLEAR AND LEGAL LINE IN THE SAND TO SAY WE WILL NOT TAKE PART IN EXTRA JUDICIAL FEDERAL ACTIONS AND THAT'S WHAT WE ARE DOING TONIGHT. THANK YOU FOR EVERYBODY INVOLVED FOR YOUR GOOD WORK AND COURAGE AND THANK YOU TO EVERYONE WHO HAS COME AND SPOKEN TONIGHT ABOUT THIS ORDINANCE. I'M PROUD TO BE A CO-SPONSOR AND TO VOTE FOR THIS TONIGHT. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER TREGUB?

>> I. TREGUB: THANK YOU. THOSE OF YOU WHO HAVE HEARD THIS BEFORE, APOLOGIES IN ADVANCE. BUT I THINK IT IS APPROPRIATE TO

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SHARE MY LIFESTORY. I AM AN IMMIGRANT. I AM A SON AND A GRANDSON OF IMMIGRANTS. WE WERE ABLE TO COME TO THIS COUNTRY BUT FOR THE GRACE OF GOD AND IMMIGRATION POLICIES IN THIS NATION THAT WERE BASED ON UNDERSTANDING THE STRENGTH OF OUR COUNTRY BEING ELEVATED THEN OUR COUNTRY IS MORE DIVERSE. MY GRANDFATHER FOUGHT THE NAZIS IN WORLD WAR II AND SURVIVED A GROWING AUTHORITARIANISM IN WHAT WAS FORMERLY PRIOR TO IT BEING UKRAINE, MY COUNTRY OF BIRTH, THE SOVIET UNION. WE WERE ABLE TO GET HIM HERE AFTER HE FACED ATTACKS ON HIS JEWISH FAITH. WE WERE ABLE TO GET HIM HERE THROUGH ASYLUM. TODAY MARKS ALMOST A YEAR SINCE HIS PASSING. AND AS HEARTWRENCHING AS IT WAS TO LOSE HIM, THE ONE THING THAT KEEPS ME UP AT NIGHT WHEN YOU LOOK AT HORRENDOUS STORIES EVERY SINGLE DAY EMERGING FROM ALL OVER OUR COUNTRY THAT HE DID NOT HAVE TO BEAR WITNESS TO WHAT HE SPENT HIS ENTIRE LIFETIME FIGHTING. WHAT IS GOING ON IN THIS COUNTRY UNDER THIS FEDERAL ADMINISTRATION IS BOTH TARGETED AND INDISCRIMINATE. IT IS TARGETED BECAUSE AS SOME HAVE MENTIONED, THE SUPREME COURTS POLICY NOW IS TO NORMALIZE RACIAL PROFILING. IT IS INDISCRIMINATE BECAUSE IT IS SPECIFICALLY SET UP TO INSTILL FEAR AMONG ALL. IT IS GOING AFTER NOT THE "LOWEST OF THE LOW" BUT EVERYBODY WHO IS, HAS ALWAYS BEEN A HARD-WORKING CONTRIBUTING MEMBER TO THIS NATION. SUCH AS SOUTH KOREAN NATIONALS THAT WERE DETAINED OR SOME WOULD SAY KIDNAPPED BY U.S. IMMIGRATION

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AUTHORITIES JUST A FEW DAYS AGO AT A HYUNDAI FACTORY IN GEORGIA. AND THERE ARE MANY OTHER STORIES LIKE THAT. WHAT WE HAVE BEFORE US TONIGHT IS OUR COMMUNITY RESPONSE. I WANT TO THANK THE MAYOR, THE CO-SPONSORS, THEIR RESPECTIVE STAFF MEMBERS, AND A SPECIAL THANK YOU TO FARIMAH, KATRINA AND ALL ON HER TEAM, AS WELL AS CITY STAFF. I AM PROUD THAT OUR COMMUNITY RESPONDS OF HEART, SOUL, COURAGE, AND LOVE. ALSO HAS, AS ITS PRODUCT, ONE OF THE STRONGEST ORDINANCES IN THE NATION. IT IS MY HOPE THIS ORDINANCE, WHICH I AM PROUD TO VOTE FOR TONIGHT, WILL ALSO BE SOMETHING THAT MY ANCESTORS AND THE ANCESTORS OF MY LOVED ONE, THE DAUGHTER OF A FILIPINO FARM WORKER WILL BE PROUD. WE WILL CONTINUE TOGETHER TO FIGHT BACK USING ALL AVAILABLE LEGAL MEANS BECAUSE AN INJURY TO ONE, IS AN INJURY TO ALL, ALWAYS. SI SE PUEDE. [APPLAUSE]

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. I FIRST WANT TO GIVE A REALLY BIG SHOUT OUT TO ALL THE COMMUNITY PARTNERS IN THE SANCTUARY CITY TASK FORCE. A SPECIAL SHOUT OUT TO THE ORGANIZATIONS IN THE BERKELEY IMMIGRATION COLLABORATIVE. [NAMING ORGANIZATIONS RAPIDLY] I WANT TO THANK THE CITY ATTORNEY'S OFFICE, MAINLY KATRINA AND MY COLLEAGUES MAYOR ISHII AND COUNCILMEMBERS BLACKABY AND HUMBERT FOR THEIR COLLABORATION TO FINE-TUNE SOME OF THE LANGUAGE CHANGES. WE HAVE BEEN ASKED WHY THIS MATTERS AND

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IT'S TRUE AS COUNCILMEMBER BLACKABY SAID, THEY ARE SUBSTANTIVE LANGUAGE CHANGES THAT CLARIFY POLICY, IT'S AN OPPORTUNITY TO SHOW WE WILL NOT BACK DOWN IN THE FACE OF AUTHORITARIANISM. EVEN AS OTHERS KLAOB RATE, BERKELEY WILL STAY STRONG AND LINK ARMS WITH IMMIGRANTS, QUEER PEOPLE, PEOPLE SEEKING ABORTIONS AND ALL THOSE WHO LIVE, WORK, AND VISIT OUR BEAUTIFUL CITY. I'M ALSO AWARE OF AN ELECTED OFFICIAL AND DAUGHTER OF MEXICAN IMMIGRANTS AND AS A YOUNG PERSON I'M IN SPACES WHERE PEOPLE LIKE ME OFTEN AREN'T WELCOME. I'M COMMITTED TO USE THIS PLATFORM GIVEN TO ME BY THE PEOPLE OF DISTRICT 7 TO STAND UP AND FIGHT FOR IMMIGRANTS AND THANKFUL FOR MY COMMUNITY SUPPORT. ESPECIALLY WHEN TRUMP'S HAND PICKED SUPREME COURT RULED SKIN COLOR OR LANGUAGE COULD BE USED, WHEN HIGHEST LEVELS OF GOVERNMENT ARE CODIFYING THIS INTO LAW AND SENDING MASKED MEN TO KIDNAP PEOPLE OFF OUR STREET WE MUST DO EVERYTHING IN OUR POWER TO FIGHT BACK. TONIGHT AS WE PASS THE FIRST READING OF THIS ORDINANCE, TOMORROW WE WILL TRAIN OUR COMMUNITY WHEN I.C.E. SHOWS UP AND PEOPLE WILL HAVE DIGNITY. AS COUNCILMEMBER TREGUB SAID, SI SE PUEDE. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: THANK YOU VERY MUCH, MADAM MAYOR. I WANT TO THANK YOU AND THE COUNCILMEMBERS WHO CO-SPONSORED THIS ITEM. COUNCILMEMBERS BLACKABY, LUNAPARRA, HUMBERT AND ESPECIALLY WANT TO RECOGNIZE AS COUNCILMEMBER BLACKABY NOTED, THE RESOLUTION

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THAT WAS FIRST PASSED. I THINK WE CAN ALL IDENTIFY WITH THAT. ALL OF US OP THIS COUNCIL WE WANT YOU TO KNOW YOU ARE WELCOME HERE AND WE ARE PROUD TO TAKE THIS STEP TO CODIFY THE VALUES AND THE RESOLUTION THAT WE HAVE HAD, BUT JUST TO MAKE IT VERY CLEAR, MAKE IT SOMETHING THAT YOU CAN READ EASILY WHEN YOU LOOK AT OUR WEBSITE AND LOOK UP THE BERKELEY MUNICIPAL CODE. LIKE SO MANY HERE ON THIS DAIS, LIKE SO MANY OF YOU, MY FAMILY AND WE ARE ALSO IMMIGRANTS, MY FATHER CAME TO THIS COUNTRY AS AN IMMIGRANT FROM INDIA IN 1969. YOU KNOW, I JUST REALLY BELIEVE AND I'VE SEEN IN MY OWN LIFE THAT IMMIGRANTS ENRICH OUR CITY, OUR STATE AND OUR COUNTRY AND IT IS TRULY HEARTBREAKING TO SEE THE VICIOUSNESS THIS ADMINISTRATION IS JUST GOING AFTER PEOPLE, LIKE THE PEOPLE WHO CAME HERE TONIGHT ARE JUST SIMPLY TRYING TO LIVE HONEST LIVES AND DO DIGNIFIED WORK AND TAKE CARE OF THEIR FAMILIES. THESE ARE NOT CRIMINALS. AND WE REALLY -- I'M GRATEFUL WE CAN PASS THIS ORDINANCE TONIGHT. SI SE PUEDE.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER O'KEEFE.

>> S. O'KEEFE: ALREADY. THANK YOU, I THINK IT'S BEEN SAID A NUMBER OF TIMES, THANK YOU TO ALL WHO WORKED ON THIS, I KNOW MANY, MANY PEOPLE ON THIS DAIS. THANK YOU SO MUCH. AS A FORMER IMMIGRATION ATTORNEY WHO, IS THE EAST BAY COLLECTIVE REPRESENTATIVE HERE? I INTERNED, THANK YOU FOR THE WORK YOU DO. AS THAT BACKGROUND, PROTECTING AND ADVOCATING FOR IMMIGRANTS IS

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A CALLING THAT LIVES DEEPLY IN MY HEART. I'M PROUD TO BE SUPPORTING THIS TONIGHT. I THINK IT REPRESENTS OUR STRONGEST COMMUNITY VALUES, NOT JUST TO PROTECT THE HAPPINESS AND SECURITY AND LIVES OF ALL OF OUR RESIDENTS BUT ALSO TO STAND UP AGAINST THE HATE AND IGNORANT-FUELED EROSION OF THE RULE OF LAW THAT IS THREATENING ALL OF US AND ESPECIALLY THREATENING OUR MOST VULNERABLE COMMUNITY MEMBERS. AS AN ELECTED OFFICIAL, THE COMMUNITY PLACED ITS TRUST IN ALL OF US TO ACT BOLDLY AND FAIRLY AND FROM A PLACE OF CARE AND LOVE FOR OUR COMMUNITY. I HOPE THIS ORDINANCE BRINGS A SMALL AMOUNT OF PEACE TO ALL THOSE IN BERKELEY WHO I KNOW ARE SCARED, AND WHO ARE SUFFERING. I WISH WE COULD DO MORE TO ENSURE YOUR SAFETY. AND I WON'T PRETEND THESE LAWS ARE ENOUGH TO PROTECT YOU. BUT I HOPE THAT YOU KNOW THAT WE STAND WITH YOU AND CARE ABOUT YOU AND WILL NOT GIVE UP ON YOU. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THANK YOU. OTHER COMMENTS?

>> T. TAPLIN: SORRY, I HADN'T PREPARED TO SPEAK, I WANT TO COMMEND THE SPEAKERS TONIGHT, I KNOW IT'S NOT EASY TO COME AND SHARE YOUR STORIES AND MAKE YOURSELVES VULNERABLE. I WANT TO RECOGNIZE THE VERY REAL POWER IN YOUR DOING SO. I WANT TO THANK THE MAYOR AND TASK FORCE AND THE CITY ATTORNEY'S OFFICE AND THANK MY COLLEAGUES FOR SHARING THEIR STORIES *. I WILL BE VOTING YES AND I'M VERY PROUD WE ARE TAKING THIS STEP. AND I

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FEEL IMMENSELY GRATEFUL TO EVERYONE IN THE ROOM TONIGHT. AND I WANT TO THANK YOU FOR TRUSTING US AND WALKING WITH US AND KNOW THAT WE ARE HERE FOR YOU. THANK YOU ALL SO MUCH.

>> MAYOR ISHII: THANK YOU. I JUST WANT TO ADD, YOU KNOW I HAVE GOTTEN A CHANCE TO SPEAK QUITE A BIT ALREADY. BUT I AM SO HONORED TO BE MAYOR OF A CITY THAT REALLY, WHERE WE CAN AGREE ON SOMETHING LIKE THIS. I DON'T TAKE THAT LIGHTLY. THERE ARE MAYORS IN OTHER CITIES AROUND THE COUNTRY RIGHT NOW THAT CAN'T BE A SANCTUARY CITY, CAN'T EVEN BE AN IMMIGRANT-FRIENDLY CITY WHICH I THINK IS THE WATER-DOWN VERSION SO FOR US TO TAKE THIS STEP AND TO DO IT, I'M HOPING UNANIMOUSLY, I'M JUST SO INCREDIBLY PROUD. IN THE MEETINGS WE HAVE WITH OUR SANCTUARY TASK FORCE, FOR ME THERE'S AN OVERWHELMING FEELING OF COMMUNITY AND JUST LOVE AND SUPPORT. I'M SO, SO GRATEFUL TO ALL THE COMMUNITY MEMBERS AND COMMUNITY ORGANIZATIONS THAT HAVE BEEN A PART OF IT. IT'S ABSOLUTELY BEEN, YOU KNOW, ONE OF THE MOST TOUCHING AND INSPIRING PARTS OF MY WORK THAT I'VE BEEN ABLE TO DO IN THE LAST EIGHTISH MONTHS NOW. SO I JUST WANT TO SAY THANK YOU ALL SO MUCH TO OUR COMMUNITY MEMBERS WHO CAME OUT TO SPEAK IN FAVOR OF THIS. AND THANK YOU SO MUCH TO OUR STAFF WHO HAVE REALLY NOT ONLY DONE THE WORK TO MAKE THIS HAPPEN BUT I KNOW WILL ALSO DO THE WORK TO IMPLEMENT IT. SO THANK YOU VERY MUCH. AND WITH THAT I WOULD LIKE TO MOVE THE MOTION, INCLUDING OUR TWO AMENDMENTS WE DISCUSSED AS

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WELL.

>> M. HUMBERT: SECOND.

>> MAYOR ISHII: THANK YOU. CAN WE TAKE THE ROLL, ACTUALLY? SURE.

>> MAYOR ISHII: THANKS.

>> CITY CLERK: YES, TO ADOPT FIRST READING OF THE SANCTUARY CITY ORDINANCE INCLUDING THE TWO AMENDMENTS READ INTO THE REPORT BY MAYOR ISHII, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES *.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE, TIMES 100.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES, TIMES 1,000.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

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>> MAYOR ISHII: YES.

>> CITY CLERK: MOTION CARRIES.

>> MAYOR ISHII: THANK YOU ALL. [APPLAUSE] THAT WAS OUR FINAL ITEM ON THE ACTION CALENDAR. IS THERE A MOTION TO ADJOURN?

>> SECOND.

>> MAYOR ISHII: SORRY, YES, WE DO. APOLOGIES. IS THERE ANY OTHER PUBLIC COMMENT FROM NON-AGENDA ITEMS?

>> I WILL BE BRIEF SO YOU CAN BE OUT OF HERE, JACK WANTED TO GIVE THIS COMMENT FROM THE BEGINNING BUT HE HAD TO LEAVE. TAKING MY RENT BOARD HAT OFF, -- CLUB APPROVED -- JACK SENT YOU ALL AN EMAIL ASKING YOU ALL TO GET INVOLVED. I WOULD ENCOURAGE YOU TO REACH OUT TO YOUR CONSTITUENTS THIS IS GOING TO BE A SHORT TURN OUT, LOW TURN OUT ELECTION, MAKE SURE WE DO EVERYTHING WE CAN TO GET OUT THE VOTE IN BERKELEY AND HOPEFULLY WE WILL REACH OUT SOON TO COLLABORATE ON THIS MEASURE.

>> MAYOR ISHII: THANK YOU. THANK YOU SO MUCH. I DON'T SEE ANY OTHER NON-AGENDA PUBLIC COMMENT ONLINE. OKAY, WITH THAT, IS THERE A MOTION TO ADJOURN?

>> T. TAPLIN: SO MOVED.

>> MAYOR ISHII: A SECOND?

>> SECOND.

>> MAYOR ISHII: OKAY.

>> CITY CLERK: ALL RIGHT.

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>> MAYOR ISHII: WAS THERE ANY OPPOSITION TO ADJOURNING? OKAY,

VERY GOOD. THEN WE ARE ADJOURNED. THANK YOU. [ADJOURNED 9:40 P.

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